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SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,** Respondents.	Case No. _____ **VERIFIED PETITION FOR WRIT OF MANDATE** [Code Civ. Proc. § 1085] (1) Writ of Mandate -- Failure to Perform Mandatory Duty (Pen. Code § 679.10(b)); (2) Writ of Mandate -- Failure to Comply With Reason-Giving Requirement (§ 679.10(g)); (3) Writ of Mandate -- Failure to Apply Rebuttable Presumption of Helpfulness (§ 679.10(h)); (4) Declaratory Relief (Code Civ. Proc. § 1060) *[Unlimited Civil]* *[Trial by Court]*

INTRODUCTION

1. This is a verified petition for an ordinary writ of mandate pursuant to Code of Civil Procedure section 1085, to compel Respondent California Highway Patrol ("CHP") and the named individual Respondents, in their official capacities, to perform mandatory, non-discretionary duties owed to Petitioner under California Penal Code section 679.10 (as amended by AB 1261, Stats. 2023, ch. 679, eff. Jan. 1, 2024). The duties at issue are the duties of a state law-enforcement "certifying entity" and "certifying official" to: (a) certify a Form I-918,

Supplement B, U Nonimmigrant Status Certification when the statutory elements are met; (b) apply the statutory rebuttable presumption of victim helpfulness; and (c) issue any denial in writing accompanied by a written explanation of the specific reasons for that denial.

2. On April 9, 2026, Petitioner submitted to CHP a verified, pre-completed Form I-918, Supplement B, together with an eight-page supporting legal-and-evidentiary memorandum, a verbatim transcript of CHP's own dashcam recording of the underlying incident, the CHP arrest-investigation report, CHP's own Penal Code section 851.6 detention certificate reclassifying the arrest as "a detention only, not an arrest" for "insufficient grounds for making a criminal complaint," and additional documentary exhibits. CHP File No. 390.18437.17620. POST Case No. PUBLIC-26-000371.

3. On April 20, 2026—eleven days after submission—Respondent G. Serrato, Captain and Commander of the CHP Dublin Area, denied the certification request in a five-sentence letter that nowhere identifies which element of Penal Code section 679.10 or 8 U.S.C. section 1101(a)(15)(U) Petitioner allegedly fails, nowhere engages with the dashcam evidence in CHP's own custody, and nowhere reconciles its conclusion with CHP's own prior section 851.6 determination that the underlying arrest lacked legal justification. The denial states only that the incident "does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code," "does not meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii)," and "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC."

4. Petitioner is a victim of multiple enumerated qualifying offenses listed in 8 U.S.C. section 1101(a)(15)(U)(iii) and incorporated by reference into Penal Code section 679.10: false imprisonment/unlawful criminal restraint, felonious assault/battery, obstruction of justice, and perjury. CHP's own contemporaneous documentary record—the dashcam audio-video recording, the arrest report, and the section 851.6 detention certificate—establishes these offenses on its

face. Petitioner has cooperated with every investigative channel available to him and has never refused or failed to provide any information or assistance reasonably requested. The statutory rebuttable presumption of helpfulness under Penal Code section 679.10(h) attaches and is uncontroverted.

5. By this petition, Petitioner respectfully requests that this Court: (a) issue a peremptory writ of mandate vacating the April 20, 2026 denial; (b) compel Respondents to reconsider the certification request under the correct legal standard, including the rebuttable presumption of helpfulness; (c) compel Respondents to comply with the reason-giving requirement imposed by Penal Code section 679.10(g) by issuing any future denial in writing with a specific, individualized statement of the factual and legal basis tied to identified statutory elements; and (d) declare that the April 20, 2026 denial is facially deficient as a matter of law for failure to satisfy the requirements of section 679.10(g).

6. **Petitioner does not ask this Court to substitute its judgment for Respondents'.** Petitioner asks only that this Court compel Respondents to apply the correct legal standards, exercise the discretion conferred by law on the documentary record actually before them, and comply with the procedural duties the Legislature has imposed.

ROADMAP FOR THE COURT

7. This Petition presents three documentary propositions that, if accepted, compel writ relief without requiring this Court to make any contested factual determination:

First, CHP's own dashcam audio-video recording (Exhibit 5) contradicts CHP's own sworn arrest report (Exhibit 6) on four discrete material points—the asserted odor of alcohol, slurred speech, confusion/disorientation, and "beverage present." The contradictions are not matters of interpretation; they are absences (the

asserted alcohol odor is never once verbalized on the recording) and direct mismatches (the cup actually contained urine, as Officer Melano expressly identified by name). These contradictions, viewed in CHP's own evidence, independently establish qualifying criminal activity under 8 U.S.C. section 1101(a)(15)(U)(iii)—including false imprisonment, obstruction of justice, and perjury under Penal Code section 118.

Second, CHP's own Penal Code section 851.6 detention certificate (Exhibit 7) reclassified the arrest as "a detention only, not an arrest" for "insufficient grounds for making a criminal complaint." This is CHP's own contemporaneous formal determination, four days after the incident, that the restraint was without legal justification. The April 20, 2026 denial nowhere reconciles its "no qualifying criminal activity" conclusion with CHP's own contrary determination.

Third, Penal Code section 679.10(h) creates a rebuttable presumption of victim helpfulness when the victim has not refused or failed to provide reasonably requested information or assistance. Petitioner's documented cooperation—the citizen complaint that initiated the investigation, the POST complaint, the DMV proceedings, and the production of the dashcam transcript—is uncontradicted. CHP's denial letter contains no finding of refusal or failure to cooperate and identifies no fact that could rebut the presumption. The presumption therefore stands unrebutted as a matter of law.

8. The relief sought is targeted and modest: vacate the conclusory denial; require Respondents to reconsider under the correct legal standards; and require any future denial to comply with the written-reasons mandate of section 679.10(g). This Petition does not ask this Court to compel a particular outcome on the certification merits; it asks this Court to compel a lawful process.

JURISDICTION AND VENUE

9. This Court has jurisdiction over this action pursuant to Article VI, section 10 of the California Constitution and Code of Civil Procedure section 1085, which authorize the superior court to issue writs of mandate to compel performance of an act "which the law specially enjoins, as a duty resulting from an office, trust, or station" by any "tribunal, corporation, board, or person."

10. **Venue lies in this County under Code of Civil Procedure section 393(b).** This action is brought against a state law-enforcement agency and against public officers for acts done by them in virtue of their offices. Under Code of Civil Procedure section 393(b), the proper county is "the county where the cause, or some part of the cause, arose." The cause—or, at a minimum, a substantial part of it—arose in Alameda County because: (a) the underlying November 1, 2024 incident on which the certification request is based occurred on Interstate 580 East in Livermore, Alameda County; (b) the forcible handcuffing, transport, and involuntary blood draw all occurred at the CHP Dublin Area Office, 4999 Gleason Drive, Dublin, Alameda County; (c) Petitioner's certification request was submitted to a CHP investigator at the CHP Dublin Area Office in Alameda County; and (d) the April 20, 2026 denial letter at issue in this petition was authored, signed, and issued by the Commander of the CHP Dublin Area, on CHP Dublin Area letterhead, from the CHP Dublin Area office in Alameda County.

11. **Petitioner has no plain, speedy, and adequate remedy in the ordinary course of law.** Penal Code section 679.10 does not provide an administrative appeal, an internal grievance process, or any other agency-level remedy by which a denial of certification may be reviewed. The federal U-visa adjudication conducted by U.S. Citizenship and Immigration Services is not an adequate substitute remedy because USCIS lacks any authority to certify or to compel a state certifying entity to certify on Form I-918, Supplement B, and a U-visa petition cannot be filed without a properly executed Supplement B. Mandamus is the traditional, and here the exclusive, remedy. (Code Civ. Proc., § 1086.)

PARTIES

12. Petitioner BRENDAN NGEHSI NEWANFORBI (also known of record as Brendan Ngwa Nforbi) is a natural person and resident of San Joaquin County, California. Petitioner is a noncitizen of the United States and a Class A Commercial Driver's License holder whose A-Number is 203-115-087. Petitioner is the victim of the qualifying criminal activity that is the subject of the certification request denied by the April 20, 2026 letter at issue in this petition.

13. Respondent **CALIFORNIA HIGHWAY PATROL** is a department of the State of California. CHP is a "certifying entity" within the meaning of Penal Code section 679.10(a)(1) and is statutorily obligated to process certification requests under Form I-918, Supplement B. CHP's Dublin Area office is located at 4999 Gleason Drive, Dublin, California 94568.

14. Respondent **G. SERRATO, sued in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area,** authored, signed, and issued the April 20, 2026 denial letter on CHP Dublin Area letterhead under his name and title. As the Commander of the Dublin Area, Respondent Serrato exercises supervisory and final decisional authority over certifications processed out of the Dublin Area office and is a "certifying official" within the meaning of Penal Code section 679.10(b).

15. Respondent **GARY PAUL, sued in his official capacity as Lieutenant of the California Highway Patrol Dublin Area,** is the official who acknowledged receipt of Petitioner's April 9, 2026 certification request by return e-mail on April 10, 2026, and who is identified in the April 20, 2026 denial letter as the contact point for "any additional questions." Respondent Paul is a CHP supervisory official with responsibility for processing the certification request and is a "certifying official" within the meaning of Penal Code section 679.10(b).

16. Respondent **ERIC DUTRA, sued in his official capacity as Sergeant of the California Highway Patrol Dublin Area,** is the investigator assigned to CHP Citizen Complaint File No. 390.18437.17620 by the March 26, 2026 correspondence of Respondent Serrato, and is the official to whom Petitioner submitted the formal certification request on April 9, 2026. As the assigned investigator and designated recipient on the Supplement B, Respondent Dutra is a "certifying official" within the meaning of Penal Code section 679.10(b).

17. Petitioner is informed and believes, and on that basis alleges, that DOES 1 through 10, inclusive, are other CHP employees and officials who participated in the decision-making giving rise to the April 20, 2026 denial. Petitioner will amend this petition to allege their true names and capacities when ascertained.

STATUTORY AND LEGAL FRAMEWORK

A. Ordinary Writ of Mandate Under Code of Civil Procedure Section 1085

18. Code of Civil Procedure section 1085 authorizes the issuance of a writ of mandate by any court "to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station." The traditional elements are: (a) a clear, present, and ministerial duty in the respondent; (b) a clear, present, and beneficial right in the petitioner to performance of that duty; and (c) the absence of a plain, speedy, and adequate alternative remedy in the ordinary course of law.

19. **"Shall" creates a ministerial duty enforceable by writ.** A statutory directive in mandatory form imposes a ministerial duty, the breach of which is enforceable by writ. (See Gov. Code § 14 ["shall" is mandatory, "may" is permissive]; *Haggis v. City of Los Angeles* (2000) 22 Cal.4th 490, 498-499 ["shall" is ordinarily mandatory for purposes of Government Code section 815.6]; *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 443 ["shall" creates a

duty]; *Kavanaugh v. West Sonoma County Union High School Dist.* (2003) 29 Cal.4th 911, 916 [discretionary immunity does not apply to ministerial acts].)

20. **Mandate lies to correct abuse of discretion.** Although a court will not substitute its judgment for an agency's on a purely discretionary decision, mandate lies (a) to compel an agency to exercise its discretion at all where it has refused to do so; (b) to compel an agency to apply the correct legal standard; and (c) to set aside a decision that reflects a failure to proceed in the manner required by law, or that is arbitrary, capricious, or wholly unsupported by the record. (See *Saleeby v. State Bar* (1985) 39 Cal.3d 547, 562 [in traditional mandamus, court determines whether agency action was arbitrary, capricious, or without evidentiary support, and whether it failed to conform to the law]; *Carloss v. County of Alameda* (2015) 242 Cal.App.4th 116 [decision is abuse of discretion if arbitrary, capricious, entirely lacking in evidentiary support, or without reasonable or rational basis as a matter of law]; *SN Sands Corp. v. City and County of San Francisco* (2008) 167 Cal.App.4th 185, 189 [same]; *Western/California, Ltd. v. Dry Creek Joint Elementary Sch. Dist.* (1996) 50 Cal.App.4th 1461, 1496-1497 [same]; *Bunnett v. Regents of University of California* (1995) 35 Cal.App.4th 843, 848.)

21. **An agency decision that ignores the agency's own contrary evidence and prior determinations is arbitrary and capricious as a matter of law.** A decision is arbitrary and capricious if it fails to address relevant evidence, fails to articulate a rational connection between the facts found and the decision made, or is so devoid of factual support as to be irrational. A decision that ignores the agency's own exculpatory evidence and contradicts the agency's own prior contemporaneous determinations is, by definition, both arbitrary and contrary to the substantial-evidence rule under section 1085.

B. Federal U-Visa Law: 8 U.S.C. Section 1101(a)(15)(U)

22. The U nonimmigrant visa was created by the Victims of Trafficking and Violence

Protection Act of 2000, Pub. L. 106-386, codified at 8 U.S.C. section 1101(a)(15)(U). It is available to noncitizens who: (i) have suffered substantial physical or mental abuse as a result of having been a victim of qualifying criminal activity; (ii) possess information concerning that criminal activity; (iii) have been helpful, are being helpful, or are likely to be helpful in the investigation or prosecution of the criminal activity; and (iv) the criminal activity violated the laws of the United States or occurred in the United States or its territories or possessions.

23. The list of "qualifying criminal activity" in 8 U.S.C. section 1101(a)(15)(U)(iii) is broad and includes, among numerous other offenses: **false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, perjury,** and "any similar activity" in violation of federal, state, or local criminal law. The certification of victim helpfulness on Form I-918, Supplement B—signed by a certifying official of a federal, state, or local law-enforcement agency, prosecutor, judge, or other authority—is a prerequisite for the federal U-visa petition.

24. The certifying agency does not adjudicate the U-visa itself. As the U.S. Department of Homeland Security and the California Attorney General have repeatedly explained, the Form I-918, Supplement B is a factual certification only; USCIS independently conducts all eligibility, background, and adjudicatory determinations and has sole authority to grant or deny the visa. The certifier merely attests to the agency's factual knowledge of victimization and helpfulness.

C. California Penal Code Section 679.10 (as Amended by AB 1261, eff. Jan. 1, 2024)

25. California Penal Code section 679.10, originally enacted by SB 674 (Stats. 2015, ch. 721), then strengthened by AB 917 (Stats. 2019, ch. 576) and AB 1261 (Stats. 2023, ch. 679, eff. Jan. 1, 2024), imposes affirmative, non-discretionary obligations on California state and local law-enforcement agencies ("certifying entities") and designated officials ("certifying officials") concerning Form I-918, Supplement B certifications. CHP is a "certifying entity" within the meaning of subdivision (a)(1) ("a state or local law enforcement agency").

26. **Mandatory certification.** Section 679.10 directs that, upon request of a victim of qualifying criminal activity, a certifying entity "shall" complete and certify Form I-918, Supplement B when the statutory elements are met. The Legislature's use of "shall" imposes a mandatory, ministerial duty enforceable by writ of mandate. (*Haggis*, supra, 22 Cal.4th at pp. 498-499; *Common Cause*, supra, 49 Cal.3d at p. 443.)

27. **Rebuttable presumption of helpfulness (subdivision (h)).** Section 679.10(h) creates a "rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" in the detection, investigation, or prosecution of the qualifying criminal activity if the victim has not refused or failed to provide information and assistance reasonably requested by the certifying entity. The presumption operates against the certifying entity and may be overcome only by evidence of refusal or failure to cooperate. An agency that fails to apply a controlling statutory presumption commits legal error reviewable by mandamus.

28. **Thirty-day processing deadline (subdivision (j)).** Section 679.10(j) requires that a certifying entity "shall process" a Form I-918, Supplement B certification request within 30 days of the request, with shorter deadlines in specified circumstances.

29. **No prosecution required (subdivision (k)).** Section 679.10(k) provides that "[a] current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." Whether a prosecution has occurred is therefore legally irrelevant to the certification determination, and any denial that rests, expressly or implicitly, on the absence of charges or prosecution is contrary to law.

30. **Reason-giving requirement (subdivision (g)) — AB 1261's central procedural reform.** Section 679.10(g), as amended by AB 1261, requires that a certifying entity that does not

certify must provide the requester with a written explanation of the specific reasons for the denial. The Legislature expressly imposed a procedural duty of meaningful explanation precisely to forestall conclusory, pro-forma, or boilerplate refusals that frustrate both the requester's ability to understand the basis for denial and any reviewing court's ability to evaluate the agency's reasoning. The duty to provide written, specific reasons is itself ministerial: it does not depend on the merits of the underlying certification decision.

31. **Limited grounds for withdrawal (subdivision (l)).** A certifying official may withdraw a certification only if the victim refuses to provide information and assistance reasonably requested. No comparable cabining provision exists for an initial denial precisely because the Legislature anticipated that the presumption of helpfulness and the reason-giving requirement together would constrain denial discretion.

32. **Attorney General guidance.** The California Attorney General has issued Information Bulletins (most recently DLE-2024-05) instructing all state and local law enforcement agencies—including CHP—that under AB 1261 they "shall process" certification requests within the statutory timeline; that the rebuttable presumption of helpfulness applies; that no prosecution is required; that the reason-giving requirement is a substantive procedural obligation that conclusory letters do not satisfy; and that certification shall not be denied on grounds such as the victim's criminal record, immigration history, or the absence of filed charges. The Attorney General's interpretation of section 679.10 is entitled to substantial weight.

FACTUAL ALLEGATIONS

A. Petitioner's Background and the Initial Encounter

33. Petitioner is a noncitizen of the United States who holds a Class A commercial driver's license (CDL) issued by the California Department of Motor Vehicles. Before the events of

November 1, 2024, Petitioner was employed as a commercial truck driver through Centerline Drivers, LLC, earning weekly wages averaging approximately $900 to $2,800 depending on assignment, reflected on twenty-six consecutive weekly pay stubs covering the pay periods from May 5, 2024 through January 3, 2025.

34. On the early morning of November 1, 2024, Petitioner was lawfully parked on the shoulder of Interstate 580 East in Livermore, Alameda County, California. The vehicle had been parked because Petitioner—a CDL holder trained in commercial-driver fatigue protocols—chose to pull over and rest rather than continue driving while fatigued. The vehicle was not moving, was not the subject of any traffic violation, and was not the subject of any complaint of impaired driving.

B. The November 1, 2024 Incident — As Recorded on CHP's Own Dashcam

35. CHP Officers Santiago Meza-Gonzalez (Badge No. 023295) and Jose Melano (Badge No. 023054) approached the parked vehicle for what they described as a welfare check. The encounter that followed was recorded in its entirety by CHP's own dashboard camera (the "dashcam"). A verbatim, timestamped transcript of the dashcam recording is in Petitioner's possession and was provided to CHP with the certification request as Exhibit A to the supporting memorandum.

36. **The cup of urine.** The officers initially expressed concern about a cup of liquid in the vehicle. At approximately timestamp 00:58:59, Officer Melano conclusively identified the liquid by name: "This is piss. It smells like piss." From that moment on, the sole articulated basis for suspicion—the possibility that the cup contained an alcoholic beverage—was definitively eliminated by the officers themselves on the recording.

37. **Petitioner exhibited no objective signs of impairment.** Throughout the recorded

encounter Petitioner: correctly identified his physical location as Livermore (transcript at 01:00:41); read distant highway signs—"Isabella Avenue, Portola Avenue"—located approximately fifty yards away (01:00:44); spelled his last name on request, letter by letter (00:59:57); engaged in coherent and extended conversation about commercial-driver fatigue protocols and his own CDL training and practices (01:01:21 through 01:01:56); discussed vehicle alternator mechanics with the officers (01:44:21 through 01:45:37); and performed a Modified Romberg Balance test, estimating thirty seconds at forty-three seconds—well within the normal range (01:08:40 through 01:08:45). Neither officer verbalized detection of any odor of alcohol from the vehicle, from Petitioner's breath, or from Petitioner's person at any point recorded on the dashcam.

38. **Arrest based solely on the lawful refusal of a voluntary test.** At timestamp 01:10:54, Officer Meza-Gonzalez expressly informed Petitioner that he was "not required to do this" in reference to a preliminary alcohol screening (PAS) test. Petitioner exercised the right Officer Meza-Gonzalez had just confirmed by declining the PAS. Approximately twenty seconds later, between 01:11:15 and 01:11:33, Officer Meza-Gonzalez placed Petitioner in handcuffs and announced he was under arrest.

C. The Forcible Handcuffing, Transport, and Involuntary Blood Draw

39. After the arrest, Officer Meza-Gonzalez transported Petitioner in restraints to the CHP Dublin Area Office at 4999 Gleason Drive, Dublin, Alameda County. While in custody at the Dublin Area Office, Officer Melano told Petitioner, with respect to a chemical test Petitioner had refused, "If you don't do it we're gonna get it anyways" (transcript at 01:37:36).

40. Approximately three and one-half hours after the initial encounter, at or about 02:38 hours, phlebotomist Aziza Ghaleb extracted two vials of blood from Petitioner's right arm at the CHP Dublin Area Office. The blood draw was performed under color of a warrant whose factual

predicate—a sworn report by Officer Meza-Gonzalez—is directly contradicted by CHP's own dashcam recording, as set forth in the Smoking Guns section below.

41. Following the blood draw, Petitioner was transported to Santa Rita Jail in Alameda County, where he was held from Friday through the following Wednesday on a parole hold instituted on the basis of the fabricated arrest report, during which time Petitioner was confined with detainees accused of violent offenses, including homicide.

D. CHP's Own Section 851.6 Detention Certificate: The Arrest Lacked Justification

42. On November 5, 2024—four days after the incident—CHP issued a Penal Code section 851.6 Detention Certificate (Dublin CHP-01991), in which CHP itself retroactively reclassified the November 1, 2024 incident as "a detention only, not an arrest," and certified that there were "insufficient grounds for making a criminal complaint." The 851.6 certificate is CHP's own contemporaneous, formal determination, made by CHP and not by Petitioner or any reviewing tribunal, that the arrest lacked legal justification. No criminal charges have ever been filed against Petitioner arising from the November 1, 2024 incident, nor has any prosecutor sought to do so.

E. The Smoking Guns: Side-by-Side Comparison of CHP's Sworn Report Against CHP's Own Dash

43. The CHP Arrest-Investigation Report (CHP Form 202, Case No. RJ68845) authored by Officer Meza-Gonzalez and submitted under penalty of perjury contains, on its face, four discrete sworn assertions that are directly contradicted by CHP's own dashcam recording in CHP's own custody. The contradictions are not matters of credibility or interpretation; they are absences and direct mismatches that may be verified by the agency itself simply by listening to and watching its own recording. The four contradictions are presented below in side-by-side format for the Court's convenience:

44. **Smoking Gun No. 1 — The Asserted "Strong Distinct Odor of an Alcoholic Beverage."**

CHP Sworn Report (Exhibit 6): Officer Meza-Gonzalez asserts that he "could smell the distinct odor of an alcoholic beverage emitting from within the vehicle" and "from Newanforbi's breath and person."

CHP Dashcam (Exhibit 5): Neither officer verbalizes detection of any odor of alcohol—from the vehicle, from Petitioner's breath, or from Petitioner's person—at any point during the entire recording. The only odor either officer discusses is the odor of urine from the cup, which Officer Melano expressly identifies by name at 00:58:59: "This is piss. It smells like piss."

Legal effect: The sworn assertion is the factual predicate for the warrant that authorized the involuntary blood draw, for the arrest, and for the DMV per se suspension. A sworn statement directly contradicted by the agency's own audio-video recording constitutes fabrication of evidence and perjury under Penal Code section 118.

45. **Smoking Gun No. 2 — The Asserted "Slurred" Speech.**

CHP Sworn Report (Exhibit 6): The CHP 202 report characterizes Petitioner's speech as "Slurred."

CHP Dashcam (Exhibit 5): Audio captures Petitioner speaking coherently throughout the encounter. He spells his last name letter by letter (00:59:57); engages in extended fluent conversation about commercial-driver fatigue protocols (01:01:21 through 01:01:56); discusses alternator mechanics in technical detail (01:44:21 through 01:45:37);

and at no recorded moment does either officer verbally characterize Petitioner's speech as slurred, hesitant, or impaired.

Legal effect: A categorical sworn assertion of slurred speech that is contradicted by the audio recording is, on its face, perjury under Penal Code section 118 and obstruction of justice under 8 U.S.C. section 1101(a)(15)(U)(iii).

46. **Smoking Gun No. 3 — The Asserted "Very Confused and Disoriented" Demeanor.**

CHP Sworn Report (Exhibit 6): The CHP 202 report describes Petitioner as "very confused and disoriented."

CHP Dashcam (Exhibit 5): Petitioner correctly identifies his location as Livermore (01:00:41); reads distant highway signs ("Isabella Avenue, Portola Avenue") located approximately fifty yards away (01:00:44); accurately recites his origin (Oakland) and destination (Stockton) (01:01:21 through 01:01:56); and provides a cogent professional explanation of commercial-driver fatigue protocols.

Legal effect: The sworn characterization is materially false. There is no rational way to reconcile a sworn statement of confusion and disorientation with audio-video showing situational awareness, sign reading at fifty yards, and articulate professional discussion.

47. **Smoking Gun No. 4 — The Asserted "Beverage Present: Yes."**

CHP Sworn Report (Exhibit 6): The CHP 202 report checks "BEVERAGE PRESENT: YES," implying an alcoholic beverage was present in the vehicle.

CHP Dashcam (Exhibit 5): The only liquid found in the vehicle was the cup of urine. An empty Mike's Hard Lemonade can was observed at 01:00:09; the officers did not describe it as containing any liquid; and Petitioner denied having consumed it.

Legal effect: A categorical sworn affirmation that an alcoholic beverage was "present" when the recording shows only urine and an empty can constitutes a material false statement supporting the warrant, arrest, and APS suspension.

48. **Synthesis.** There is no rational way to reconcile the four sworn assertions in the CHP report with the audio and video content of CHP's own dashcam recording. Each contradiction, viewed in light of CHP's own evidence, independently constitutes obstruction of justice and perjury under 8 U.S.C. section 1101(a)(15)(U)(iii)—both of which are enumerated qualifying offenses for U-visa certification. CHP's April 20, 2026 conclusion that "this incident does not meet the standard of qualifying criminal activity" is therefore not just legally questionable; it is contrary to CHP's own contemporaneous documentary record.

F. Timeline of the Incident, the Cover-Up, and the Certification Request

49. The documentary record before this Court establishes the following uncontested chronology:

November 1, 2024 (early morning) — The Incident. CHP officers approach Petitioner's lawfully parked vehicle on I-580 East in Livermore for a welfare check; identify a cup of urine; falsely report odor of alcohol, slurred speech, and confusion; arrest Petitioner after he exercises his statutory right to decline a voluntary PAS test; obtain a warrant for an involuntary blood draw based on the materially false sworn report; extract two vials of Petitioner's blood at the CHP Dublin Area Office at approximately 02:38

hours; transport Petitioner to Santa Rita Jail under a parole hold.

November 1 through November 6, 2024 — Detention at Santa Rita Jail. Petitioner is confined at Santa Rita Jail in Alameda County from Friday through the following Wednesday on the parole hold triggered by the false report, confined with detainees accused of violent offenses.

November 5, 2024 — CHP's Own Admission. CHP issues the Penal Code section 851.6 Detention Certificate (Dublin CHP-01991), reclassifying the November 1 arrest as "a detention only, not an arrest" and certifying "insufficient grounds for making a criminal complaint." No criminal charges are filed; no prosecutor proceeds.

January 24, 2025 — DMV APS Hearing. Based on the same false CHP report, the DMV imposes an administrative per se suspension of Petitioner's Class A CDL.

February 20, 2025 through February 19, 2026 — One-Year CDL Suspension. Petitioner is barred from commercial driving for one full year as a direct, foreseeable, and concrete consequence of the false report.

March 23, 2026 — POST Complaint Forwarded. The Commission on Peace Officer Standards and Training forwards Petitioner's complaint to CHP as Case No. PUBLIC-26-000371.

March 26, 2026 — Investigator Assigned. Respondent Serrato issues correspondence on CHP Dublin Area letterhead acknowledging the citizen complaint and assigning Respondent Dutra as the investigating sergeant.

April 9, 2026 (2:00 p.m.) — Certification Request Transmitted. Petitioner

transmits to Respondent Dutra, with copy to Respondent Serrato, the formal request for U-visa certification, the pre-completed Form I-918, Supplement B, the eight-page legal-and-evidentiary memorandum, the verbatim dashcam transcript, the CHP 202 report, the section 851.6 detention certificate, his sworn declaration, the pay stubs and wage notice, the DMV documentation, and the March 26, 2026 assignment letter.

April 10, 2026 (10:33 a.m.) — Receipt Acknowledged. Respondent Paul acknowledges receipt by return e-mail and advises Petitioner that the request is "under review" and that he will be notified "by written correspondence."

April 20, 2026 — The Denial. Eleven days after submission, Respondent Serrato issues the one-page denial letter at issue in this Petition (File No. 390.18437.17620.26-050), declining to certify.

50. The chronology reflects that, between November 5, 2024 (CHP's own determination of insufficient grounds) and April 20, 2026 (the denial), CHP had nearly eighteen months of contemporaneous record and uncontradicted documentary evidence of qualifying criminal activity against Petitioner. CHP nevertheless issued a five-sentence boilerplate refusal that does not engage with any of that record.

G. Concrete, Ongoing, Quantifiable Harm From CHP's Refusal to Certify

51. The April 20, 2026 denial is not a theoretical or abstract administrative ruling. It blocks Petitioner from filing a federal U-visa petition with USCIS, which in turn carries direct, measurable, and ongoing consequences:

Lost wages — approximately $112,000 and continuing. Petitioner's documented pre-incident earnings as a commercial truck driver, reflected on twenty-six consecutive

weekly Centerline Drivers, LLC pay stubs averaging approximately $900 to $2,800 per week (Exhibits 9 and Exhibit E to the April 9, 2026 memorandum), place his lost wages during the one-year CDL suspension at approximately $112,000. The denial of certification prolongs Petitioner's exposure to immigration uncertainty and continues to impair his ability to obtain stable, full-time CDL employment.

Loss of U-visa eligibility window. Petitioner cannot apply for U-visa status with USCIS without an executed Form I-918, Supplement B. Each day the unlawful denial stands is a day Petitioner is foreclosed from petitioning for the very immigration relief Congress and the California Legislature created to protect him.

Continued professional and reputational harm. The unrebutted CHP characterization of the November 1, 2024 incident as a non-qualifying matter perpetuates the documentary record on which the DMV suspension was imposed and on which any future employment background check would draw.

Out-of-pocket and collateral economic costs. Costs of detention at Santa Rita Jail, transportation costs during the year-long CDL suspension, and other documented collateral expenses are within the scope of the harm caused by the denial.

52. The denial is the immediate, foreseeable, and proximate cause of Petitioner's continued exclusion from the federal U-visa application process. The harm continues to accrue every day the denial stands.

H. Petitioner's Documented Cooperation

53. Petitioner filed the CHP Citizen Complaint—designated File No. 390.18437.17620—which initiated the very CHP investigation now under way concerning the

November 1, 2024 incident. Without that complaint, no investigation would exist.

54. Petitioner filed a separate complaint with the Commission on Peace Officer Standards and Training. On March 23, 2026, POST forwarded the matter to CHP under Case No. PUBLIC-26-000371, expanding the investigative record before CHP.

55. Petitioner participated in DMV APS proceedings, preserving his statements under penalty of perjury and creating an additional administrative record of the incident.

56. Petitioner obtained, authenticated, transcribed, and produced the dashcam transcript—the single most exculpatory piece of evidence in the record, and the evidence that proves the contradictions set forth in the Smoking Guns section above. Without Petitioner's affirmative initiative, the dashcam evidence in CHP's own custody would not have been meaningfully compared against the sworn statements in the CHP report.

57. **Petitioner has never refused or failed to provide information or assistance reasonably requested by any investigating entity.** Penal Code section 679.10(h) therefore creates a rebuttable presumption that Petitioner has been, is being, and is likely to be helpful. Respondents have produced no evidence whatsoever of refusal or failure to cooperate. The presumption is uncontroverted.

I. The April 9, 2026 Formal Certification Request and the April 20, 2026 Denial

58. On April 9, 2026, Petitioner transmitted to Respondent Dutra by electronic mail, with copy to Respondent Serrato, the materials identified in paragraph 49 above. The transmission expressly invoked Penal Code section 679.10(j)'s thirty-day processing deadline and section 679.10(g)'s reason-giving requirement, expressly noting that "[a] generalized or pro forma denial would not satisfy this statutory obligation."

59. On April 10, 2026, Respondent Paul acknowledged receipt by return e-mail, advising Petitioner that the request was "under review."

60. On April 20, 2026, Respondent Serrato issued a one-page denial letter on CHP Dublin Area letterhead (File No. 390.18437.17620.26-050). The substantive paragraph of the letter reads, in its entirety:

> "Recently, you requested that the California Highway Patrol (CHP) Dublin Area certify your Form I-918 Supplement B, U Nonimmigrant Status Certification, stemming from an incident that occurred on November 1, 2024. A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code, nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC. Therefore, your request to certify your Form I-918, Supplement B, U Nonimmigrant Status Certification, was denied."

61. The April 20, 2026 letter is signed "G. SERRATO, Captain, Commander." It refers Petitioner with "any additional questions" to "Lieutenant Gary Paul at the CHP Dublin Area."

J. Facial Defects of the April 20, 2026 Denial

62. The April 20, 2026 denial is facially defective in at least the following independent respects, each of which is established by comparing the four corners of the denial letter to the four corners of the materials Petitioner submitted on April 9, 2026 and to CHP's own contemporaneous records (the dashcam recording, the CHP 202 report, the section 851.6 detention certificate):

(a) No element-by-element analysis. The denial does not identify which of the three statutory elements of section 679.10—victim of qualifying criminal activity, possession of information, or helpfulness—it concludes Petitioner fails to satisfy. It does not address possession-of-information or helpfulness at all.

(b) No identification of which "qualifying criminal activity" was considered or rejected. The denial does not name a single one of the enumerated offenses listed in 8 U.S.C. section 1101(a)(15)(U)(iii). It does not address false imprisonment/unlawful criminal restraint, felonious assault/battery, obstruction of justice, or perjury—the four specific enumerated offenses Petitioner identified by statute, element, and exhibit citation.

(c) Conclusory invocation of the "substantially similar" catch-all without any analysis. The denial recites that the review "found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC," but does not identify what activity was considered, what comparator offense was applied, or why the catch-all does not capture the documented conduct. A conclusory invocation of section 679.10(d) without any analytical content does not satisfy section 679.10(g).

(d) No engagement with CHP's own dashcam evidence. The denial does not mention the dashcam recording. It does not acknowledge that CHP's own dashcam exists, is in CHP's own custody, was excerpted in the supporting memorandum by timestamp, or contradicts the sworn statements in the CHP 202 report.

(e) No reconciliation with CHP's own section 851.6 detention certificate. The denial does not mention CHP's own November 5, 2024 detention certificate, which reclassified the arrest as "a detention only, not an arrest" and certified "insufficient grounds for making a criminal complaint."

(f) No mention of the rebuttable presumption of helpfulness. The denial does not acknowledge the section 679.10(h) presumption, does not analyze it, and does not state any evidentiary basis for rebutting it.

(g) Apparent reliance on a non-statutory "standard." The denial states the incident "does not meet the standard of qualifying criminal activity identified in Section 679.10." Section 679.10 incorporates the enumerated qualifying offenses by cross-reference; it does not establish a separate "standard" beyond those offenses and the "similar activity" catch-all. To the extent the denial relied on an unstated, non-enacted "standard," it applied an incorrect legal standard.

(h) Apparent application of an unstated prosecution or charge-filing requirement. The denial appears to treat the absence of a prosecution as relevant to certification, in derogation of Penal Code section 679.10(k), which expressly provides that prosecution and conviction are not required.

63. **The denial is arbitrary and capricious as a matter of law.** A decision is arbitrary and capricious if it fails to address relevant evidence, fails to articulate a rational connection between the facts found and the decision made, or is so devoid of factual support as to be irrational. (See *Saleeby*, *Carloss*, *SN Sands*, and *Western/California*, all cited supra at paragraph 20.) The April 20, 2026 denial fails on every measure. It does not mention—let alone address—CHP's own dashcam recording, the most probative evidence in the record. It does not reconcile its "no qualifying criminal activity" conclusion with CHP's own section 851.6 detention certificate. It ignores its own exculpatory evidence and contradicts its own prior contemporaneous determinations. A decision that ignores its own evidence and contradicts its own findings is arbitrary and capricious on its face.

ANTICIPATED DEFENSES PRE-EMPTIVELY ADDRESSED

64. To narrow the issues for this Court's adjudication, Petitioner addresses in advance the following defenses Respondents may be expected to raise:

A. The Government Claims Act Does Not Apply

65. The Government Claims Act (Gov. Code, § 810 et seq.) governs claims "for money or damages" against public entities. (Gov. Code, § 905.) This Petition seeks no money or damages. It seeks only a peremptory writ of mandate vacating an unlawful denial, an order compelling lawful reconsideration, and declaratory relief concerning the parties' rights under Penal Code section 679.10. Equitable relief of this kind is not subject to the Act's claim-presentation requirement. (See *Loehr v. Ventura County Community College Dist.* (1983) 147 Cal.App.3d 1071, 1080-1081 [claims for relief other than damages not subject to Government Claims Act]; *Holt v. Kelly* (1978) 20 Cal.3d 560, 565.)

B. There Is No Administrative Exhaustion Requirement

66. Penal Code section 679.10 provides no administrative appeal, no internal grievance procedure, and no other agency-level mechanism by which a denial of certification may be challenged. There is therefore no administrative remedy to exhaust. (Code Civ. Proc., § 1086.) The federal U-visa adjudication conducted by USCIS does not exhaust this state-law claim because USCIS lacks any authority to certify or to compel a state certifying entity to do so; without a properly executed Form I-918, Supplement B, a U-visa petition cannot be filed.

C. There Is No Federal Preemption

67. This action does not seek to compel the issuance of a U visa, does not seek to compel

any action by USCIS, and does not seek review of any federal immigration decision. It seeks only enforcement of state-law procedural and substantive duties that the California Legislature has imposed on a California state agency. The U-visa statute (8 U.S.C. § 1101(a)(15)(U)) does not preempt California's choice to impose mandatory certification duties on its own state agencies; to the contrary, the federal scheme depends on those state-law duties being honored.

D. Petitioner Does Not Ask the Court to Substitute Its Judgment for Respondents'

68. The relief sought is not a judicial certification of Petitioner's U-visa application. The relief sought is (a) vacatur of an unlawful denial; (b) reconsideration on the documentary record under the correct legal standards; and (c) compliance with the reason-giving mandate of section 679.10(g). Such relief is the heartland of mandate jurisdiction under Code of Civil Procedure section 1085, not a usurpation of administrative discretion.

E. The Refusal of a Voluntary PAS Test Is Not a "Refusal to Cooperate" Under § 679.10(h)

69. To the extent Respondents may suggest that Petitioner "refused to cooperate" by declining the voluntary preliminary alcohol screening test on November 1, 2024, that suggestion is foreclosed by the recorded fact that Officer Meza-Gonzalez expressly told Petitioner he was "not required to do this" (dashcam at 01:10:54). The voluntary refusal of a test the arresting officer described as voluntary is the exercise of a statutory right, not a refusal to cooperate within the meaning of section 679.10(h). The "helpfulness" inquiry under section 679.10(h) concerns the victim's cooperation with the certifying entity's investigation; Petitioner has been the principal driver of that investigation.

F. Absence of Filed Charges or Prosecution Is Not a Permissible Basis for Denial

70. Penal Code section 679.10(k) provides, in unambiguous terms, that "[a] current

investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." Any defense premised, expressly or implicitly, on the absence of filed charges against Officers Meza-Gonzalez and Melano is contrary to law.

G. The 30-Day Deadline of § 679.10(j) Is Not a Defense to a Premature Denial

71. CHP issued its denial eleven days after the request, well within the 30-day statutory window for processing. Petitioner does not premise this Petition on a missed deadline. Petitioner premises this Petition on what CHP did within that window: issue a denial that does not satisfy the substantive and procedural requirements of section 679.10.

FIRST CAUSE OF ACTION

WRIT OF MANDATE (Code Civ. Proc. § 1085)
Failure to Perform Mandatory Duty Under Penal Code Section 679.10(b)
(Against All Respondents)

72. Petitioner incorporates by reference paragraphs 1 through 71 as though fully set forth herein.

73. **Clear, present, ministerial duty.** Penal Code section 679.10 imposes upon CHP and its certifying officials a clear, present, and ministerial duty: upon receipt of a request for Form I-918, Supplement B certification, the certifying entity "shall process" the request within the statutory deadline and, where the three statutory elements are met, "shall" certify. The Legislature's use of "shall" imposes a mandatory, non-discretionary obligation. (Gov. Code, § 14; *Haggis*, supra, 22 Cal.4th at pp. 498-499; *Common Cause*, supra, 49 Cal.3d at p. 443; *Kavanaugh* , supra, 29 Cal.4th at p. 916 [discretionary immunity does not apply to ministerial acts].)

74. **Clear, present, beneficial right.** Petitioner has a clear, present, and beneficial right to performance of that duty. He is a noncitizen victim who has satisfied each statutory element. The U-visa adjudication for which Supplement B is a prerequisite carries direct, substantial personal benefits—the opportunity to apply for lawful nonimmigrant status, employment authorization, and protection against removal—that cannot be obtained by any alternate means absent a properly executed Supplement B.

75. **The three statutory elements are met.** First, Petitioner is a victim of multiple enumerated qualifying criminal activities listed in 8 U.S.C. section 1101(a)(15)(U)(iii) and incorporated into section 679.10—including but not limited to false imprisonment/unlawful criminal restraint (Cal. Pen. Code § 236), felonious assault and battery (Cal. Pen. Code § 242), obstruction of justice, and perjury (Cal. Pen. Code § 118)—as documented in CHP's own dashcam recording (paragraphs 44-48 above), CHP's own arrest report, and CHP's own Penal Code section 851.6 detention certificate. Second, Petitioner possesses information concerning the criminal activity; he is the direct victim and the sole civilian percipient witness, and he is the individual who identified, preserved, and produced the dashcam evidence. Third, Petitioner has been, is, and is likely to be helpful—a fact independently established by the rebuttable presumption of subdivision (h), corroborated by Petitioner's filing of the CHP citizen complaint, the POST complaint, the DMV proceedings, and his preservation and production of the dashcam transcript.

76. **Respondents failed to perform that mandatory duty.** By the April 20, 2026 denial, Respondents refused to certify on the asserted ground that the underlying conduct does not constitute "qualifying criminal activity." That refusal was: (a) based on an incorrect legal standard, in that it failed to consider any of the enumerated offenses Petitioner identified; (b) made without applying the rebuttable presumption of helpfulness; (c) wholly unsupported by, and irreconcilable with, the agency's own contemporaneous documentary record (dashcam recording

and section 851.6 certificate); and (d) inconsistent with section 679.10(k)'s explicit instruction that no prosecution is required.

77. **No adequate alternative remedy.** Penal Code section 679.10 affords no administrative appeal or grievance process; USCIS has no authority to compel state certification; and no comparable state-court process exists. Mandamus is the only adequate remedy. (Code Civ. Proc., § 1086.)

78. **Petitioner does not ask this Court to substitute its findings for Respondents'.** Petitioner asks only that Respondents (a) apply the correct legal standards and (b) make findings consistent with their own evidentiary record. A peremptory writ of mandate should issue (a) vacating and setting aside the April 20, 2026 denial; (b) commanding Respondents to reconsider Petitioner's certification request under the correct legal standard, including the enumerated qualifying offenses, the rebuttable presumption of helpfulness, the documentary record actually before the agency, and section 679.10(k)'s explicit instruction that prosecution and conviction are not required; and (c) commanding Respondents to issue a new written decision in compliance with section 679.10(g) within a date certain set by the Court.

SECOND CAUSE OF ACTION

WRIT OF MANDATE (Code Civ. Proc. § 1085)
Failure to Perform Ministerial Duty Under Penal Code Section 679.10(g)
(Reason-Giving Requirement)
(Against All Respondents)

79. Petitioner incorporates by reference paragraphs 1 through 71 as though fully set forth herein.

80. **The duty is ministerial, not discretionary.** Penal Code section 679.10(g), as amended by AB 1261, requires that a certifying entity that does not certify a Form I-918, Supplement B must provide a written explanation of the specific reasons for the denial. The duty to provide written, specific reasons is mandatory and ministerial; it does not depend on the merits of the underlying certification decision. An agency cannot avoid the reason-giving duty by characterizing its conclusion as discretionary. (Cf. *Haggis*, supra, 22 Cal.4th at pp. 498-499; *Common Cause*, supra, 49 Cal.3d at p. 443.)

81. **Legislative purpose.** The Legislature imposed this procedural duty in AB 1261 precisely to forestall the conclusory, pro-forma refusals that had previously frustrated the statutory scheme. A boilerplate denial that recites only that the incident "does not meet the standard" without identifying which element fails, which enumerated offense was considered, or what evidence was weighed is precisely what subdivision (g) was enacted to prohibit.

82. **Breach.** The April 20, 2026 denial fails subdivision (g) in eight independent respects, set forth in paragraph 62 above and incorporated here by reference. It does not identify which statutory element fails. It does not name a single enumerated qualifying offense considered or rejected. It does not engage with the dashcam evidence in CHP's own custody. It does not reconcile its conclusion with CHP's own section 851.6 detention certificate. It does not acknowledge or apply the rebuttable presumption of helpfulness. It does not explain what "standard of qualifying criminal activity" was applied, or how the "similar activity" catch-all in section 679.10(d) was analyzed. Reciting the words "the standard," "the standards," and "no substantially similar qualifying criminal activity" is not the same as providing the "specific reasons" the statute requires.

83. **Beneficial right and absence of adequate alternative remedy.** Petitioner has a clear, present, and beneficial right to a reasoned written decision that he can understand, evaluate, and—if necessary—judicially challenge. No administrative process exists by which the adequacy

of the denial's reasoning may be reviewed. Mandamus is the only adequate remedy.

84. **Relief sought.** A peremptory writ of mandate should issue compelling Respondents to comply with the ministerial duty imposed by Penal Code section 679.10(g) by issuing any future denial of Petitioner's certification request in writing, accompanied by a specific, individualized, written statement of the factual and legal basis tied to identified statutory elements, including (a) identification of which statutory element of section 679.10 is not satisfied; (b) analysis of each enumerated qualifying offense Petitioner identified (false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, perjury) and the "similar activity" catch-all in section 679.10(d); (c) the agency's specific basis, if any, for its application or non-application of the rebuttable presumption of helpfulness; and (d) an explanation of how the denial is reconciled with CHP's own dashcam recording and section 851.6 detention certificate.

THIRD CAUSE OF ACTION

WRIT OF MANDATE (Code Civ. Proc. § 1085)
Failure to Apply the Rebuttable Presumption of Helpfulness
Under Penal Code Section 679.10(h)
(Against All Respondents)

85. Petitioner incorporates by reference paragraphs 1 through 71 as though fully set forth herein.

86. **The presumption.** Penal Code section 679.10(h) creates a rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful where the victim has not refused or failed to provide information and assistance reasonably requested. The presumption is a statutory directive and is not optional. An agency that fails to apply a controlling statutory presumption commits legal error reviewable by mandamus.

87. **The presumption attaches as a matter of law on this record.** Petitioner has alleged—and CHP's own files corroborate—that he filed the citizen complaint that initiated the very CHP investigation now in progress; that he filed the POST complaint that triggered the March 23, 2026 forwarding to CHP; that he participated in DMV APS proceedings under penalty of perjury; and that he obtained, transcribed, and produced the dashcam transcript. He has never refused or failed to provide any information or assistance reasonably requested by CHP, POST, the DMV, or any other investigating entity.

88. **Respondents have not rebutted the presumption.** The April 20, 2026 denial letter contains no finding that Petitioner refused or failed to cooperate. The letter cites no fact that could rebut the presumption. The letter does not even mention helpfulness. On the face of the agency's own decision, no rebuttal evidence exists.

89. **The syllogism is therefore complete:** (i) section 679.10(h) creates a rebuttable presumption of helpfulness on the facts alleged; (ii) Petitioner has not refused or failed to provide any information or assistance reasonably requested; (iii) the denial cites no fact that could rebut the presumption; (iv) therefore the presumption stands unrebutted as a matter of law, and any denial premised on a lack of helpfulness is contrary to law and an abuse of discretion.

90. **Relief sought.** A peremptory writ of mandate should issue compelling Respondents, upon reconsideration of Petitioner's certification request, to apply the rebuttable presumption of helpfulness under Penal Code section 679.10(h); to identify in any future denial the specific evidentiary basis, if any, on which Respondents claim to rebut the presumption; and to refrain from any denial premised on a lack of helpfulness in the absence of evidence sufficient to rebut the presumption.

FOURTH CAUSE OF ACTION

DECLARATORY RELIEF (Code Civ. Proc. § 1060)
Facial Deficiency of the April 20, 2026 Denial and
Construction of Penal Code Section 679.10
(Against All Respondents)

91. Petitioner incorporates by reference paragraphs 1 through 71 as though fully set forth herein.

92. **Actual controversy.** An actual, present, and justiciable controversy exists between Petitioner and Respondents concerning the meaning and operation of Penal Code section 679.10 and the validity of the April 20, 2026 denial under that statute. Specifically: (a) whether a five-sentence conclusory denial that does not identify which statutory element fails, does not name any enumerated qualifying offense considered or rejected, does not engage with the agency's own contemporaneous record, and does not acknowledge the rebuttable presumption of helpfulness satisfies the reason-giving requirement of section 679.10(g); (b) whether the rebuttable presumption of helpfulness under section 679.10(h) applies on the documented facts of Petitioner's request and, if so, whether Respondents have produced any evidence sufficient to rebut it; (c) whether the absence of a prosecution or filing of criminal charges is a legitimate basis for denial of certification in light of section 679.10(k); and (d) whether a conclusory invocation of the "substantially similar" catch-all in section 679.10(d), without identification of comparator offenses or analytical content, satisfies subdivision (g).

93. **Requested declarations.** Petitioner seeks a judicial declaration—directed to the construction of section 679.10 and the facial validity of the denial, not to the merits of the underlying certification decision—that:

a. Penal Code section 679.10(g), as amended by AB 1261, imposes a mandatory,

ministerial duty on a certifying entity to accompany any denial of a Form I-918, Supplement B certification request with a written explanation of the specific reasons for the denial, identified by reference to the statutory elements;

b. The reason-giving requirement of section 679.10(g) is not satisfied by conclusory, generalized, or pro-forma denials that recite only that the incident "does not meet the standard," do not identify which statutory element is not satisfied, do not name any enumerated qualifying offense considered or rejected, and do not engage with the agency's own contemporaneous record;

c. The April 20, 2026 denial letter, as a matter of law, does not satisfy the reason-giving requirement of section 679.10(g);

d. The rebuttable presumption of helpfulness under section 679.10(h) attaches in any case where the victim has not refused or failed to provide information and assistance reasonably requested, and may be overcome only by evidence of such refusal or failure documented by the certifying entity;

e. Section 679.10(k) prohibits any reliance, in support of a denial of certification, on the absence of a current investigation, the absence of charges filed, the closing of a case, or the absence of prosecution or conviction; and

f. A conclusory invocation of the "substantially similar" catch-all in section 679.10(d), without identification of comparator offenses or analytical content tied to the documentary record before the agency, is itself insufficient to satisfy section 679.10(g).

94. **Petitioner does not request a declaration that the underlying conduct constitutes qualifying criminal activity.** That determination is committed in the first instance to the

certifying entity. Petitioner requests only declarations construing the statute and addressing the facial sufficiency of the denial letter—classic questions of law squarely within this Court's competence.

95. **Necessity and propriety.** Declaratory relief is necessary and proper to resolve the controversy, to provide a clear judicial statement of the parties' respective rights and obligations under Penal Code section 679.10 (as amended by AB 1261), and to guide Respondents' reconsideration of Petitioner's request following any peremptory writ issued by this Court. Because CHP is a statewide certifying entity that receives and processes certification requests across the State, declaratory relief here will also guide CHP's handling of certification requests beyond Petitioner's individual case.

PUBLIC INTEREST AND STATEWIDE IMPACT

96. CHP is a statewide certifying entity. The construction of Penal Code section 679.10 that this Court adopts in resolving this Petition will guide CHP's handling of U-visa certification requests across the State. A ruling that conclusory boilerplate satisfies the reason-giving requirement would invite recurrent issuance of similar denials and frustrate the Legislature's central procedural reform under AB 1261. A ruling enforcing the statute's plain text would, conversely, restore the agency-accountability mechanism the Legislature enacted.

97. **Code of Civil Procedure section 1021.5 fee-shifting.** This action seeks to enforce an important right affecting the public interest—specifically, the rights of immigrant crime victims to meaningful, statutorily compliant adjudication of U-visa certification requests by California state law-enforcement agencies. Conferral of a significant benefit on a large class of persons—immigrant crime victims who must seek certification from CHP and similar statewide agencies—is the necessary and likely consequence of relief in this action. Petitioner reserves the right to seek attorneys' fees and costs under Code of Civil Procedure section 1021.5 in the event

he retains counsel and prevails.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully prays for judgment and relief as follows. Relief is presented in three tiers of increasing scope so that this Court may grant such relief as the record supports:

TIER 1 — Procedural Relief (Vacatur and Reason-Giving)

1. For issuance of an alternative writ of mandate, returnable at a time and place to be set by the Court, directing Respondents to show cause why a peremptory writ should not issue as prayed below;

2. For issuance of a peremptory writ of mandate commanding Respondents, jointly and severally, in their official capacities, to vacate and set aside the April 20, 2026 denial of Petitioner's request for execution of Form I-918, Supplement B (File No. 390.18437.17620.26-050);

3. For issuance of a peremptory writ of mandate commanding Respondents to issue any future denial of Petitioner's certification request in writing, accompanied by a specific, individualized written statement of the factual and legal basis tied to identified statutory elements, in compliance with the ministerial duty imposed by Penal Code section 679.10(g).

TIER 2 — Standards Relief (Correct Legal Standards on Reconsideration)

4. For issuance of a peremptory writ of mandate commanding Respondents, in any

reconsideration of Petitioner's certification request, to:

a. Apply the enumerated qualifying offenses listed in 8 U.S.C. section 1101(a)(15)(U)(iii), specifically including false imprisonment, unlawful criminal restraint, felonious assault, obstruction of justice, and perjury, and the "similar activity" provision of section 679.10(d);

b. Apply the rebuttable presumption of helpfulness under Penal Code section 679.10(h) and articulate the specific evidentiary basis, if any, on which Respondents claim to rebut the presumption;

c. Refrain from any reliance, express or implicit, on the absence of a current investigation, the absence of filed charges, the closing of a case, or the absence of prosecution or conviction, in accordance with Penal Code section 679.10(k);

d. Consider and engage with the entire documentary record submitted with the April 9, 2026 request, including CHP's own dashcam recording, the CHP Arrest-Investigation Report, and CHP's section 851.6 detention certificate;

e. Refrain from any reliance on the victim's exercise of statutorily protected rights (including the voluntary refusal of a preliminary alcohol screening test the officer himself described as voluntary) as a basis for finding refusal or failure to cooperate; and

f. Refrain from any reliance on the victim's criminal record, parole status, or immigration history;

TIER 3 — Substantive Relief (Conditional Certification Order)

5. In the alternative to Tier 2, for issuance of a peremptory writ of mandate directing Respondents to certify Petitioner's Form I-918, Supplement B within thirty (30) days after entry of judgment, **unless** within that same period Respondents file with this Court a new written decision that: (a) identifies the specific statutory element of section 679.10 that Respondents conclude is not satisfied; (b) ties that conclusion to specific evidence in the documentary record before the agency; (c) addresses each of the four "smoking gun" contradictions between the CHP arrest report and CHP's own dashcam recording set forth in paragraphs 44 through 48 of this Petition; (d) reconciles the conclusion with CHP's section 851.6 detention certificate; (e) acknowledges and applies the rebuttable presumption of helpfulness under section 679.10(h) and articulates the specific evidentiary basis for any rebuttal; and (f) is signed by the head of the agency or his or her designee under penalty of perjury;

Declaratory Relief

6. For a judgment declaring the parties' rights and obligations as set forth in paragraph 93 above;

Evidence Preservation

7. For an order directing Respondents and their agents, employees, and contractors to preserve, pending final resolution of this action, all evidence relating to the November 1, 2024 incident and the April 20, 2026 denial, including without limitation: (a) the complete, unedited dashcam audio-video recording from CHP Case No. RJ68845 in its native format and resolution; (b) all body-worn camera footage; (c) all dispatch and radio recordings; (d) all written reports, supplements, and notes; (e) all internal communications (e-mail, text, chat) concerning the November 1, 2024 incident or the April 9, 2026 certification request; and (f) all documents and electronically stored information

concerning CHP's review of Petitioner's certification request;

Jurisdiction, Fees, and Costs

8. For an order retaining jurisdiction pursuant to Code of Civil Procedure section 1097 to monitor compliance with any peremptory writ of mandate issued by this Court, for a period of not less than thirty-six (36) months following entry of judgment, with leave to Petitioner to seek further relief, including issuance of supplemental writs and contempt sanctions, in the event of non-compliance;

9. For Petitioner's costs of suit, including but not limited to filing fees, service fees, and reasonable expenses incurred herein, recoverable as a matter of right pursuant to Code of Civil Procedure section 1032;

10. For an award of reasonable attorneys' fees and costs pursuant to Code of Civil Procedure section 1021.5 and any other applicable fee-shifting provision, in an amount to be determined by the Court upon motion, in the event Petitioner retains counsel and prevails in this action; and

11. For such other and further relief as this Court deems just and proper.

ELECTION OF TRIAL BY COURT

Petitioner does not demand a jury trial and elects trial by the court on all issues so triable. Writ proceedings under Code of Civil Procedure section 1085 are equitable and not within the jury-trial right. (See Cal. Const., art. I, § 16; Code Civ. Proc., § 631.)

Dated: May 29, 2026

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Petitioner in the above-entitled action. I have read the foregoing Verified Petition for Writ of Mandate and know its contents. The matters stated therein are true of my own knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on May 29, 2026,

at Stockton, California.

/s/ Brendan Ngehsi Newanforbi

BRENDAN NGEHSI NEWANFORBI

INDEX OF EXHIBITS

The following exhibits are attached hereto and incorporated by reference. With the exception of Exhibit 1 (the denial letter itself), each exhibit was submitted to Respondents as part of Petitioner's April 9, 2026 certification request and is in CHP's own custody and possession.

Exhibit 1 — California Highway Patrol denial letter dated April 20, 2026 (File No. 390.18437.17620.26-050), signed by G. Serrato, Captain, Commander, CHP Dublin Area.

Exhibit 2 — Petitioner's April 9, 2026 Request for U Nonimmigrant Status Certification (four pages, with cover transmittal e-mail to Sgt. Eric Dutra cc'ing Capt. Serrato dated April 9, 2026 at 2:00 p.m.).

Exhibit 3 — Petitioner's April 9, 2026 Supporting Legal Analysis and Evidentiary Summary (eight pages).

Exhibit 4 — Form I-918, Supplement B, U Nonimmigrant Status Certification, pre-completed (five pages).

Exhibit 5 — Verbatim Timestamped Transcript of CHP Dashcam Recording, November 1, 2024 (Exhibit A to the April 9, 2026 supporting memorandum).

Exhibit 6 — CHP Arrest-Investigation Report (CHP Form 202, Case No. RJ68845) (Exhibit B to the April 9, 2026 supporting memorandum).

Exhibit 7 — California Penal Code section 851.6 Detention Certificate (Dublin CHP-01991), dated November 5, 2024 (Exhibit C to the April 9, 2026 supporting

memorandum).

Exhibit 8 — Petitioner's Sworn Declaration (Exhibit D to the April 9, 2026 supporting memorandum).

Exhibit 9 — Centerline Drivers, LLC Pay Stubs (twenty-six consecutive weeks, May 5, 2024 through January 3, 2025) and Wage Notice (Exhibits E and F to the April 9, 2026 supporting memorandum).

Exhibit 10 — California DMV Temporary License and APS Hearing Notice (Exhibit G to the April 9, 2026 supporting memorandum).

Exhibit 11 — CHP Complaint Assignment Letter from Captain G. Serrato dated March 26, 2026 (Exhibit H to the April 9, 2026 supporting memorandum).

Exhibit 12 — POST Letter of Acknowledgment, Case No. PUBLIC-26-000371, dated March 23, 2026.

Exhibit 13 — E-mail dated April 10, 2026 from Lieutenant Gary Paul, CHP Dublin Area, acknowledging receipt of Petitioner's April 9, 2026 certification request.

Exhibit 14 — California Attorney General Information Bulletin No. DLE-2024-05 ("AB 1261 Guidance on U Visa Certifications").

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Superior Court of California, County of Alameda

EXHIBIT 1

CHP Denial Letter

California Highway Patrol denial letter

dated April 20, 2026

(File No. 390.18437.17620.26-050)

signed by G. Serrato, Captain, Commander,

CHP Dublin Area

Referenced at Petition ¶¶ 3, 51, 60, 62–63

CALIFORNIA HIGHWAY PATROL

4999 Gleason Drive, Dublin, CA 94568 | (925) 828-0466

GAVIN NEWSOM, GOVERNOR

CALIFORNIA STATE TRANSPORTATION AGENCY

April 20, 2026

File No.: 390.18437.17620.26-050

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Re: Request for I-918 Supplement B Certification, Dated: April 9, 2026

Dear Mr. Newanforbi:

Recently, you requested that the California Highway Patrol (CHP) Dublin Area certify your Form I-918 Supplement B, U Nonimmigrant Status Certification, stemming from an incident that occurred on November 1, 2024. A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC. Therefore, your request to certify your Form I-918, Supplement B, U Nonimmigrant Status Certification, was denied.

If you have any additional questions, please contact Lieutenant Gary Paul at the CHP Dublin Area at (925) 828-0466.

Sincerely,

G. SERRATO, Captain
Commander

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

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EXHIBIT 2

Formal Certification Request

Petitioner's April 9, 2026 Request for

U Nonimmigrant Status Certification

(four pages, with cover transmittal e-mail

to Sgt. Dutra, cc: Capt. Serrato,

April 9, 2026 at 2:00 p.m.)

Referenced at Petition ¶¶ 48–49, 58

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
bnn.cdl@gmail.com
Telephone: (209) 801-4442

April 9, 2026

VIA EMAIL

Sergeant Eric Dutra, ID 19981
Dublin Area, California Highway Patrol
4999 Gleason Drive
Dublin, CA 94568

cc: Captain G. Serrato, Commander, Dublin Area CHP

Re: Formal Request for U Nonimmigrant Status Certification
Pursuant to Form I-918 Supplement B; 8 U.S.C. § 1101(a)(15)(U);
California Penal Code § 679.10 (as amended by AB 1261, eff. Jan. 1, 2024)
CHP File No.: 390.18437.17620
POST Complaint No.: PUBLIC-26-000371
A-Number: 203-115-087

Dear Sergeant Dutra:

I write respectfully to request that you, as the assigned certifying official, execute the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification, in connection with CHP File No. 390.18437.17620. This request is made pursuant to the Victims of Trafficking and Violence Protection Act of 2000 (VTVPA), 8 U.S.C. § 1101(a)(15)(U), and the mandatory certification provisions of California Penal Code § 679.10, as strengthened by AB 1261 (Stats. 2023, Ch. 679), effective January 1, 2024.

I am writing to you specifically because Captain G. Serrato's March 26, 2026 letter designated you as the assigned investigator for my citizen complaint. Additionally, the Commission on Peace Officer Standards and Training (POST) forwarded my complaint to CHP on March 23, 2026, under Case No. PUBLIC-26-000371, confirming that the matter is under active agency review. The enclosed Supplement B form has been pre-filled with the factual information required under the federal regulations and is ready for your review and signature.

I. CALIFORNIA LAW MANDATES CERTIFICATION

California Penal Code § 679.10 imposes affirmative, non-discretionary obligations on state law enforcement agencies—including CHP—to process U visa certification requests. Specifically:

> **Mandatory Processing:** Under § 679.10(j), a certifying entity "shall process a Form I-918 Supplement B certification within 30 days of request." This is not a discretionary guideline; it is a legislative mandate.
>
> **Rebuttable Presumption of Helpfulness:** Under § 679.10(h), there is a "rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. I have not refused any such request. To the contrary, I have affirmatively cooperated at every stage.
>
> **No Prosecution Required:** Under § 679.10(k), "a current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The CHP's investigation need not be complete—nor need it result in prosecution—for the certification to issue.
>
> **Limited Grounds for Withdrawal:** Under § 679.10(l), a certifying official "may only withdraw the certification if the victim refuses to provide information and assistance when reasonably requested." No such refusal has occurred here.

The California Attorney General's Information Bulletin No. DLE-2024-05, issued to all state and local law enforcement agencies, reaffirms these obligations and encourages agencies to "be vigilant in identifying and supporting immigrant crime victims who may be eligible for U visas."

II. THE STATUTORY ELEMENTS ARE SATISFIED

To obtain a U visa certification, three elements must be established: (1) the petitioner is a victim of qualifying criminal activity; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the investigation or prosecution. Each element is met here.

A. Qualifying Criminal Activity

On November 1, 2024, on Interstate 580 East in Livermore, Alameda County, CHP Officers Santiago Meza-Gonzalez (#023295) and Jose Melano (#023054) subjected me to criminal conduct constituting multiple qualifying offenses under 8 U.S.C. § 1101(a)(15)(U)(iii), including:

> **False Imprisonment / Unlawful Criminal Restraint** (Cal. Penal Code § 236)—I was unlawfully arrested, handcuffed, and detained; the arrest was subsequently reclassified as a "detention" in a revised report, an implicit acknowledgment that the initial restraint was without legal justification;
>
> **Felonious Assault / Battery** (Cal. Penal Code § 242)—an involuntary blood draw was performed on my person based on a misrepresented warrant, constituting an unlawful application of force;

Obstruction of Justice (analogous to Cal. Penal Code §§ 118, 182)—the officers fabricated sworn arrest reports that are directly contradicted by the CHP's own dashcam recording, constituting the creation of false evidence under penalty of perjury; and

Perjury (Cal. Penal Code § 118)—false statements in sworn reports contradicted by objective dashcam evidence.

Each of these offenses is independently enumerated as qualifying criminal activity under the VTVPA. The dashcam transcript—objective, contemporaneous evidence in CHP's own custody—corroborates these allegations and directly contradicts the officers' written reports.

B. Possession of Information

As the direct victim and sole civilian percipient witness to the November 1, 2024 incident, I possess firsthand information regarding every aspect of the qualifying criminal activity. I have gathered and preserved key evidence, including the dashcam transcript, the arrest report, and the certificate of detention—all of which I have made available to CHP through this complaint process.

C. Helpfulness

I have been helpful, am currently being helpful, and am likely to continue being helpful in the investigation of this criminal activity. My cooperation includes: filing the citizen complaint that initiated this investigation (File No. 390.18437.17620); filing a separate complaint with the Commission on Peace Officer Standards and Training (POST Case No. PUBLIC-26-000371); participating in DMV administrative proceedings related to the incident; gathering and preserving the dashcam transcript as objective evidence; and presenting all evidence to CHP and related agencies. At no time have I refused or failed to provide information or assistance reasonably requested by any investigating entity.

Under § 679.10(h), these facts create a rebuttable presumption of helpfulness that can only be overcome by evidence that I have refused to cooperate. No such evidence exists.

III. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

I have suffered substantial physical and mental abuse as a direct result of the qualifying criminal activity, including: physical pain from forcible handcuffing and an involuntary blood draw; the trauma and humiliation of an unlawful arrest and incarceration; extended detention triggered by a fabrication-induced parole hold; severe and ongoing emotional distress and anxiety; complete loss of my Commercial Driving License and livelihood for one full year (DMV suspension effective February 20, 2025 through February 19, 2026); and lasting reputational and economic harm that continues to this day. These consequences are well-documented in the record before CHP.

IV. IMPORTANT CLARIFICATIONS FOR THE CERTIFYING OFFICIAL

I respectfully call your attention to several points the Department of Homeland Security and the California Attorney General have emphasized for certifying officials:

Signing the certification does not grant a visa. The Form I-918 Supplement B is not a visa approval. It is a factual certification that the individual is or was a victim of qualifying criminal activity and has been helpful. USCIS independently adjudicates the visa petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone.

This certification concerns the officers' conduct, not the outcome of the complaint. The standard is whether the petitioner is a victim of qualifying criminal activity and has been helpful—not whether the investigation has concluded or discipline has been imposed. California law is explicit that no prosecution, conviction, or even a pending investigation is required.

CHP has a public-safety interest in certifying. As the DHS U Visa Law Enforcement Resource Guide emphasizes, certifying U visa petitions builds trust within communities, encourages crime reporting, and strengthens law enforcement's ability to detect, investigate, and prosecute criminal activity. CHP's cooperation here advances these goals.

V. TIME-SENSITIVE REQUEST AND 30-DAY STATUTORY DEADLINE

Please be advised that California Penal Code § 679.10(j) requires the certifying entity to process this certification request within 30 days of receipt. I respectfully request that CHP treat this letter as the formal date of request for purposes of the statutory clock. Accordingly, the deadline for processing this certification is **no later than May 9, 2026**.

Should CHP determine that it cannot certify this request, § 679.10(g) requires the certifying entity to provide "a written explanation of the specific reasons for the denial." A generalized or pro forma denial would not satisfy this statutory obligation.

VI. ENCLOSURES

Enclosed for your review and execution please find:

1. Completed Form I-918 Supplement B (unsigned, ready for signature)
2. POST Letter of Acknowledgment, Case No. PUBLIC-26-000371 (dated 03/23/2026)
3. CHP Complaint Assignment Letter from Captain Serrato (dated 03/26/2026)
4. Request for Certification and Supporting Legal Analysis (attached separately)

I appreciate your time and attention to this matter. This request is made in good faith and in the spirit of the legislative policy underlying both the VTVPA and California's Immigrant Victims of Crime Equity Act: that immigrant victims of crime who cooperate with law enforcement should have meaningful access to the protections Congress and the California Legislature have provided.

I remain available to provide any additional information you may require. You may reach me at the address and telephone number listed above, or by email at bnn.cdl@gmail.com. I look forward to your timely response within the statutory period.

Respectfully submitted,



Brendan N. Newanforbi
Pro Se Petitioner

Enclosures (4)
cc: Captain G. Serrato, Commander, Dublin Area CHP
Commission on POST, Intake and Disposition Bureau

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Superior Court of California, County of Alameda

EXHIBIT 3

Supporting Legal Analysis and Evidentiary Summary

Petitioner's April 9, 2026 Supporting

Legal Analysis and Evidentiary Summary

(eight pages)

Referenced at Petition ¶¶ 48–49

REQUEST FOR U NONIMMIGRANT STATUS CERTIFICATION

SUPPORTING LEGAL ANALYSIS AND EVIDENTIARY SUMMARY

Pursuant to Form I-918 Supplement B

8 U.S.C. § 1101(a)(15)(U); California Penal Code § 679.10

CHP File No. 390.18437.17620 | POST Case No. PUBLIC-26-000371

From: Brendan Ngehsi Newanforbi, Petitioner / Complainant

To: Sergeant Eric Dutra, Assigned Investigator, Dublin Area CHP

Date: April 9, 2026

Re: Evidentiary Basis for Certification of Form I-918 Supplement B

I. PURPOSE AND SCOPE

This memorandum provides a comprehensive evidentiary analysis in support of the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification. It is directed to Sergeant Eric Dutra in his capacity as the assigned investigator for CHP Citizen Complaint File No. 390.18437.17620 and as the designated certifying official on the enclosed Supplement B form.

The purpose of this memorandum is to demonstrate, through contemporaneous documentary evidence already in CHP's possession or attached hereto, that each statutory element for U visa certification is satisfied. This document is scoped exclusively to the evidentiary record and the applicable legal standards—it is not a legal brief or adversarial filing. It is a good-faith presentation of facts to assist the certifying official in making the certification determination required by law.

II. SUMMARY OF THE EVIDENTIARY RECORD

The following documentary evidence has been compiled and is referenced throughout this memorandum. Each exhibit is attached or is already within CHP's custody and control:

Exhibit A — CHP Dashcam Video Transcript. A verbatim, timestamped transcription of the audio and video recording captured by the CHP dashcam during the entire encounter on November 1, 2024, CHP Case No. RJ68845. This is the single most important piece of evidence in the record because it provides an objective, contemporaneous account of every statement made and every action taken by both officers and by the Petitioner.

Exhibit B — CHP Arrest-Investigation Report (CHP 202, Case No. RJ68845). The official five-page report prepared by Officer Meza-Gonzalez. This report contains the sworn statements that are directly contradicted by the dashcam recording, forming the evidentiary basis for the obstruction of justice and perjury elements of the qualifying criminal activity.

Exhibit C — Detention Certificate (Dublin CHP-01991, dated November 5, 2024). The official certificate issued under Penal Code § 851.6, in which CHP itself retroactively reclassified the arrest as "a detention only, not an arrest" and certified "insufficient grounds for making a criminal complaint." This is CHP's own admission that the arrest lacked legal justification.

Exhibit D — Declaration of Brendan Ngehsi Newanforbi. A sworn declaration under penalty of perjury detailing the physical and mental harms suffered as a direct result of the qualifying criminal activity, including the loss of livelihood, emotional distress, and financial hardship.

Exhibits E and F — Pay Stubs and Wage Notice (Centerline Drivers, LLC). Twenty-six consecutive weekly pay stubs from Centerline Drivers, LLC, covering the pay periods from May 5, 2024 through January 3, 2025, documenting Petitioner's earnings as a commercial truck driver immediately before the incident. These records establish both the Petitioner's livelihood and the quantum of economic harm caused by the DMV suspension.

Exhibit G — DMV Temporary License and APS Hearing Notice. Documentation from the California Department of Motor Vehicles showing the administrative per se (APS) suspension proceedings and the restriction/disqualification of Petitioner's Class A commercial driving privileges—a direct consequence of the officers' fabricated report.

Exhibit H — CHP Complaint Assignment Letter (Captain G. Serrato, March 26, 2026). CHP's own letter confirming receipt of the citizen complaint, assignment of Sergeant Eric Dutra as the investigator, and CHP's acknowledgment that the matter is under active investigation.

III. ELEMENT ONE: PETITIONER IS A VICTIM OF QUALIFYING CRIMINAL ACTIVITY

The first element requires that the Petitioner is or was a victim of one or more qualifying criminal offenses enumerated in 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence establishes victimization across four independently qualifying categories.

A. False Imprisonment / Unlawful Criminal Restraint (Cal. Penal Code § 236)

Penal Code § 236 defines false imprisonment as "the unlawful violation of the personal liberty of another." The evidence establishes each component:

The arrest lacked probable cause. The dashcam transcript (Exhibit A) reveals that the sole basis for the traffic stop was a welfare check on a lawfully parked vehicle. The only substance identified in the vehicle was urine in a cup. Officer Melano himself conclusively identified the liquid: "This is piss. It smells like piss." (Exhibit A, 00:58:59.) At that moment, the sole articulated basis for suspicion—that the cup contained alcohol—was definitively eliminated.

The Petitioner exhibited no objective signs of impairment. Throughout the encounter, the Petitioner correctly identified his location as Livermore (Exhibit A, 01:00:41); read

highway signs approximately 50 yards away (Exhibit A, 01:00:44); coherently explained his professional training as a commercial truck driver and his habit of pulling over when fatigued (Exhibit A, 01:01:21); and estimated 30 seconds at 43 seconds on the Modified Romberg Balance test—well within normal parameters (Exhibit A, 01:08:40–01:08:45). Critically, neither officer verbalized detecting any odor of alcohol from the Petitioner's person or breath at any point during the encounter, as confirmed by the complete dashcam audio.

The arrest was triggered solely by the PAS refusal. The dashcam recording captures the critical exchange: Officer Meza-Gonzalez explicitly advised the Petitioner, "You're not required to do this" (Exhibit A, 01:10:54), referring to the preliminary alcohol screening test. When the Petitioner exercised his lawful right to decline, Meza-Gonzalez immediately placed him under arrest. (Exhibit A, 01:11:15–01:11:33.) An arrest based solely on the exercise of a right the officer explicitly acknowledged was voluntary constitutes false imprisonment.

CHP itself admitted the arrest was unjustified. The Detention Certificate (Exhibit C) officially recharacterizes the incident as "a detention only, not an arrest" and certifies "insufficient grounds for making a criminal complaint." No criminal charges were ever filed. This is CHP's own contemporaneous determination that the Petitioner was restrained without lawful justification.

B. Felonious Assault / Battery (Cal. Penal Code § 242)

Battery under California law is any willful and unlawful use of force or violence upon the person of another. Cal. Penal Code § 242. The Petitioner was subjected to two distinct batteries:

Forcible handcuffing without probable cause. At 01:11:33, Officer Meza-Gonzalez placed handcuffs on the Petitioner and transported him to the CHP Dublin Area Office. (Exhibit A, 01:11:33; Exhibit B, p. 5.) Because the arrest itself was without probable cause —as CHP later conceded—the physical restraint constitutes an unlawful application of force.

Involuntary blood draw via misrepresented warrant. After the Petitioner exercised his right to refuse chemical testing, Officer Melano told him: "If you don't do it we're gonna get it anyways" (Exhibit A, 01:37:36). A warrant was obtained based on the fabricated CHP report, and at approximately 0238 hours, phlebotomist Aziza Ghaleb extracted two vials of blood from the Petitioner's right arm at the CHP Dublin Area Office. (Exhibit B, p. 5.) Because the warrant was procured through material misrepresentations in the sworn report —specifically, the fabricated "strong distinct odor of an alcoholic beverage" that the dashcam proves was never observed—the blood draw constitutes a forcible bodily intrusion based on fraudulent process.

C. Obstruction of Justice / Fabrication of Evidence

Obstruction of justice is an enumerated qualifying crime under 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence of fabrication is extensive and directly provable through a comparison of the CHP report (Exhibit B) against the dashcam transcript (Exhibit A):

Fabrication #1: "Strong distinct odor of an alcoholic beverage." The CHP report states that Officer Meza-Gonzalez "could smell the distinct odor of an alcoholic beverage emitting from within the vehicle" and "from Newanforbi's breath and person." (Exhibit B, pp. 4–5.) The dashcam transcript contains no contemporaneous verbalization of any alcohol odor at any point. The only odor discussed by either officer during the encounter was the odor of urine from the cup. (Exhibit A, 00:58:51–00:59:04.) This is not a matter of interpretation—it is a direct, provable contradiction between a sworn written statement and the objective audio recording.

Fabrication #2: "Slurred" speech. The CHP report characterizes the Petitioner's speech as "Slurred." (Exhibit B, p. 2.) The dashcam audio recording captures the Petitioner speaking coherently and articulately throughout the encounter. He identifies his location, reads distant highway signs, explains his professional background, and engages in extended, fluent conversation with both officers. The audio flatly contradicts the "slurred" characterization.

Fabrication #3: The Petitioner "seemed very confused and disoriented." The CHP report describes the Petitioner as "very confused and disoriented." (Exhibit B, p. 4.) The dashcam shows the Petitioner correctly identifying his location as Livermore (Exhibit A, 01:00:41), accurately reading highway signs (Exhibit A, 01:00:44), explaining his origin (Oakland) and destination (Stockton), and providing a coherent account of his professional practices as a CDL holder. (Exhibit A, 01:01:21–01:01:56.)

Fabrication #4: "Beverage present: Yes." The CHP report checks "BEVERAGE PRESENT: YES" (Exhibit B, p. 2), directly implying an alcoholic beverage was found in the vehicle. In fact, the only liquid found was the cup of urine, which Officer Melano definitively identified as such on the dashcam. No alcoholic beverage container was found containing alcohol—the "Mike's Hard Lemonade" can referenced at 01:00:09 was described as empty, and the Petitioner denied consuming it.

These fabrications are not minor discrepancies—they are the material misrepresentations upon which the entire arrest, the warrant for the involuntary blood draw, the parole hold, the booking at Santa Rita Jail, and the DMV suspension were predicated. They were made under penalty of perjury in a sworn law enforcement report. The dashcam evidence in CHP's own custody proves they are false.

D. Perjury (Cal. Penal Code § 118)

The sworn statements in the CHP 202 report (Exhibit B) that are contradicted by the dashcam recording (Exhibit A) independently constitute perjury under California Penal Code § 118. Officer Meza-Gonzalez's report was prepared under penalty of perjury and submitted to secure a search warrant from a magistrate. The false statements regarding the odor of alcohol, the Petitioner's speech, and his demeanor were material—they formed the factual predicate for the warrant, the arrest, and all subsequent proceedings.

IV. ELEMENT TWO: PETITIONER POSSESSES INFORMATION CONCERNING THE CRIMINAL ACTIVITY

The Petitioner is the direct victim and the sole civilian percipient witness to every aspect of the qualifying criminal activity. He possesses:

> Firsthand knowledge of the entire encounter, from initial contact through booking at Santa Rita Jail; the dashcam transcript (Exhibit A), which he obtained, authenticated, and produced—constituting the objective evidence that proves the fabrications in the CHP report; the CHP arrest report (Exhibit B), the Detention Certificate (Exhibit C), and the DMV records (Exhibit G), all of which he has analyzed, preserved, and made available to CHP and other investigating entities; and a detailed sworn declaration (Exhibit D) setting forth the full scope of physical and mental harms sustained.

This element is satisfied beyond any reasonable question. The Petitioner is not merely a passive victim—he is the individual who identified, preserved, and produced the key exculpatory evidence (the dashcam transcript) that proves the criminal activity occurred.

V. ELEMENT THREE: PETITIONER HAS BEEN, IS BEING, AND IS LIKELY TO BE HELPFUL

The helpfulness requirement under 8 U.S.C. § 1101(a)(15)(U)(i)(III) and California Penal Code § 679.10(b) is broadly construed. The Petitioner's cooperation is extensive and ongoing:

> **(1) Filing of the CHP Citizen Complaint.** Petitioner filed the citizen complaint that initiated CHP File No. 390.18437.17620—the very investigation Sergeant Dutra has been assigned to conduct. Without this complaint, there would be no investigation.
>
> **(2) POST Complaint.** Petitioner filed a separate complaint with the Commission on Peace Officer Standards and Training, which was forwarded to CHP on March 23, 2026, under Case No. PUBLIC-26-000371. This expanded the investigative record available to CHP.
>
> **(3) Preservation and Production of the Dashcam Transcript.** Petitioner obtained, transcribed, and produced the complete CHP dashcam recording (Exhibit A)—the single most important piece of evidence proving the criminal activity. This evidence is in CHP's own custody but would not have been meaningfully analyzed or compared against the officers' report without the Petitioner's initiative.
>
> **(4) DMV Administrative Proceedings.** Petitioner participated in the DMV APS hearing on January 24, 2025, preserving his rights under penalty of perjury and creating an additional official record of the incident.
>
> **(5) Government Tort Claim.** Petitioner filed a sworn government tort claim with the California Department of General Services within the statutory period, initiating formal investigation of the officers' conduct at the state level.
>
> **(6) No Refusal to Cooperate.** At no point has the Petitioner refused or failed to provide information or assistance reasonably requested by any investigating entity. Under California Penal Code § 679.10(h), this creates a rebuttable presumption that the Petitioner is helpful.

VI. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

While the "substantial physical or mental abuse" determination is ultimately made by USCIS—not the certifying official—the evidentiary record before CHP confirms the severity of the harm, which contextualizes the certification:

> **Physical harm:** Forcible handcuffing and an involuntary blood draw (two vials extracted from the right arm by phlebotomist Aziza Ghaleb at the CHP Dublin Area Office). (Exhibit B, p. 5.)
>
> **Extended detention:** Following the false arrest, a parole hold was instituted based on the fabricated report, extending the Petitioner's detention from the initial arrest through booking at Santa Rita Jail, where he was held from Friday until the following Wednesday without arraignment. (Exhibit D, ¶ 5.) During this period, the Petitioner was confined with individuals accused of violent crimes including homicide, creating conditions he feared for his personal safety. (Exhibit D, ¶ 5.)
>
> **Complete loss of livelihood:** The false arrest report triggered DMV administrative suspension proceedings. Following the APS hearing on January 24, 2025, the Petitioner's Class A commercial driving license was suspended for one full year (February 20, 2025 through February 19, 2026), disqualifying him from commercial driving. (Exhibit G.) The pay stubs (Exhibit E) document that the Petitioner was earning between approximately $900 and $2,800 per week as a commercial truck driver in the months before the incident. The Petitioner estimates total lost wages during the suspension period at approximately $112,000. (Exhibit D, ¶ 4.)
>
> **Severe emotional distress:** The Petitioner's sworn declaration details ongoing anxiety, panic attacks, flashbacks, a deteriorated sense of self-worth, humiliation in his spiritual and social community, and strained family relationships. (Exhibit D, ¶¶ 6–10.)

VII. THE CRITICAL DASHCAM-TO-REPORT CONTRADICTIONS: A SIDE-BY-SIDE ANALYSIS

Because the fabrication evidence is the foundation of the obstruction of justice and perjury elements, the following side-by-side comparison is provided for the certifying official's convenience:

1. Odor of Alcohol

> **CHP Report (Exhibit B, p. 4):** "I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle." Also: "the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person."
>
> **Dashcam (Exhibit A):** Neither officer verbalizes detecting any odor of alcohol at any point during the encounter. The only odor discussed is urine from the cup. (00:58:51–00:59:04.) Melano's later comment about sanitizing gloves references "piss everywhere"—not alcohol. (01:23:26.)

2. Speech

CHP Report (Exhibit B, p. 2): Characterizes Petitioner's speech as "Slurred."

Dashcam (Exhibit A): Audio captures the Petitioner speaking coherently throughout. He spells his last name on request ("N-E-W-W-A-N-F-O-R-B-I" at 00:59:57), discusses alternator mechanics with officers (01:44:21–01:45:37), and engages in extended articulate conversation about his CDL training and truck driving practices (01:01:21–01:01:56).

3. Demeanor / Orientation

CHP Report (Exhibit B, p. 4): Claims Petitioner "seemed very confused and disoriented."

Dashcam (Exhibit A): Petitioner correctly identifies his location as Livermore (01:00:41); reads distant highway signs ("Isabella Avenue, Portola Avenue" at 01:00:44); knows his origin (Oakland), destination (Stockton), and route; and provides a cogent explanation of commercial driver fatigue protocols (01:01:21).

4. Beverage Present

CHP Report (Exhibit B, p. 2): Checks "BEVERAGE PRESENT: YES."

Dashcam (Exhibit A): The only liquid found was urine in a cup. An empty Mike's Hard Lemonade can was found (01:00:09), but the Petitioner denied consuming it and no officer observed it to contain any liquid.

VIII. THE LEGAL STANDARD FOR CERTIFICATION

California Penal Code § 679.10 imposes a mandatory obligation on CHP as a state law enforcement certifying entity. The statute requires certification when three elements are met: (1) the petitioner was a victim of a qualifying crime; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the detection, investigation, or prosecution of the criminal activity. All three are satisfied here, as demonstrated above.

The following legal points are emphasized for the certifying official's consideration:

No prosecution or conviction is required. Section 679.10(k) provides that "[a] current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The fact that CHP declined to file charges against the Petitioner—and indeed conceded the arrest was unjustified—is irrelevant to the certification determination. What matters is whether the officers' conduct constituted qualifying criminal activity against the Petitioner.

Helpfulness is presumed. Section 679.10(h) creates "a rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested. The Petitioner has never refused any request for cooperation.

Certification must be processed within 30 days. Section 679.10(j) requires the certifying entity to process this request within 30 days of receipt.

Denial must be in writing with specific reasons. If CHP determines it cannot certify, § 679.10(g) requires a "written explanation of the specific reasons for the denial." A generalized or conclusory refusal does not satisfy this statutory obligation.

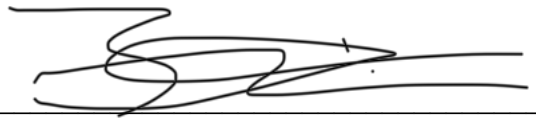
Signing the certification does not grant a visa. The Form I-918 Supplement B is a factual certification, not an immigration decision. USCIS independently adjudicates the petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone and does not prejudice any ongoing investigation. As the DHS U Visa Law Enforcement Resource Guide makes clear, the certification is simply a statement by the certifying official that, based on the facts known to the agency, the petitioner is or was a victim of qualifying criminal activity and has been helpful.

IX. CONCLUSION

The evidentiary record before CHP is overwhelming and largely self-proving. The dashcam recording—CHP's own evidence—establishes that Officers Meza-Gonzalez and Melano subjected the Petitioner to false imprisonment, felonious assault, and obstruction of justice on November 1, 2024. CHP's own Detention Certificate confirms the arrest lacked justification. The Petitioner has cooperated extensively with every available investigative channel and has never refused any request for assistance.

Every statutory element for U visa certification is satisfied. The Petitioner respectfully requests that Sergeant Dutra, as the designated certifying official, review the enclosed Form I-918 Supplement B and the supporting evidence, and execute the certification in accordance with California Penal Code § 679.10 and 8 U.S.C. § 1101(a)(15)(U).

Respectfully submitted,



Brendan Ngehsi Newanforbi
Petitioner / Complainant, Pro Se
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Stockton, CA 95204
(209) 801-4442 | bnn.cdl@gmail.com
April 9, 2026

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 4

Form I-918, Supplement B

Form I-918, Supplement B,

U Nonimmigrant Status Certification

(pre-completed, unsigned, ready for signature)

(five pages)

Referenced at Petition ¶¶ 1–2, 48

Supplement B, U Nonimmigrant Status Certification

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-918
OMB No. 1615-0104
Expires 02/28/2026

For USCIS Use Only	Remarks

► **START HERE - Type or print in black or blue ink.**

Part 1. Victim Information

1. Alien Registration Number (A-Number) (if any)
► **A-** 203115087

2.a. Family Name (Last Name): NGWA NFORBI
2.b. Given Name (First Name): NGEHSI
2.c. Middle Name: BRENDAN

Other Names Used (Include maiden names, nicknames, and aliases, if applicable.)

If you need extra space to provide additional names, use the space provided in **Part 7. Additional Information**.

3.a. Family Name (Last Name): NEWANFORBI
3.b. Given Name (First Name): BRENDAN
3.c. Middle Name: NGEHSI

4. Date of Birth (mm/dd/yyyy): 09/16/1996

5. Sex ☒ Male ☐ Female

Part 2. Agency Information

1. Name of Certifying Agency
CALIFORNIA HIGHWAY PATROL

Name of Certifying Official

2.a. Family Name (Last Name): DUTRA
2.b. Given Name (First Name): ERIC
2.c. Middle Name: N/A

3. Title and Division/Office of Certifying Official
SERGEANT

Name of Head of Certifying Agency

4.a. Family Name (Last Name): SERRATO
4.b. Given Name (First Name): GERARDO
4.c. Middle Name: N/A

Agency Address

5.a. Street Number and Name: 4999 GLEASON DRIVE
5.b. ☐ Apt. ☐ Ste. ☐ Flr. N/A
5.c. City or Town: DUBLIN
5.d. State: CA **5.f.** ZIP Code: 94568
5.g. Province: N/A
5.h. Postal Code: N/A
5.i. Country: UNITED STATES

Other Agency Information

6. Agency Type
☐ Federal ☒ State ☐ Local

7. Case Status
☒ On-going ☐ Completed
☐ Other N/A

8. Certifying Agency Category
☐ Judge ☒ Law Enforcement ☐ Prosecutor
☐ Other N/A

9. Case Number
390.18437.17620

10. FBI Number or SID Number (if applicable)
N/A

Part 3. Criminal Acts

If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.

1. The petitioner is a victim of criminal activity involving a violation of one of the following Federal, state, or local criminal offenses (or any similar activity). (Select **all applicable** boxes)

- ☐ Abduction
- ☐ Abusive Sexual Contact
- ☐ Attempt to Commit Any of the Named Crimes
- ☐ Being Held Hostage
- ☐ Blackmail
- ☐ Conspiracy to Commit Any of the Named Crimes
- ☐ Domestic Violence
- ☐ Extortion
- ☒ False Imprisonment
- ☒ Felonious Assault
- ☐ Female Genital Mutilation
- ☐ Fraud in Foreign Labor Contracting
- ☐ Incest
- ☐ Involuntary Servitude
- ☐ Kidnapping
- ☐ Manslaughter
- ☐ Murder
- ☒ Obstruction of Justice
- ☐ Peonage
- ☒ Perjury
- ☐ Prostitution
- ☐ Rape
- ☐ Sexual Assault
- ☐ Sexual Exploitation
- ☐ Slave Trade
- ☐ Solicitation to Commit Any of the Named Crimes
- ☐ Stalking
- ☐ Torture
- ☐ Trafficking
- ☒ Unlawful Criminal Restraint
- ☐ Witness Tampering

Provide the dates on which the criminal activity occurred.

2.a. Date (mm/dd/yyyy) 11/01/2024

2.b. Date (mm/dd/yyyy) N/A

2.c. Date (mm/dd/yyyy) N/A

2.d. Date (mm/dd/yyyy) N/A

3. List the statutory citations for the criminal activity being investigated or prosecuted, or that was investigated or prosecuted.

CALIFORNIA PENAL CODE § 236 (FALSE IMPRISONMENT / UNLAWFUL CRIMINAL

4.a. Did the criminal activity occur in the United States (including Indian country and military installations) or the territories or possessions of the United States?

☒ Yes ☐ No

4.b. If you answered "Yes," where did the criminal activity occur?

INTERSTATE 580 EAST, LIVERMORE, CA

5.a. Did the criminal activity violate a Federal extraterritorial jurisdiction statute?

☐ Yes ☒ No

5.b. If you answered "Yes," provide the statutory citation providing the authority for extraterritorial jurisdiction.

N/A

6. Briefly describe the criminal activity being investigated and/or prosecuted and the involvement of the petitioner named in **Part 1.** Attach copies of all relevant reports and findings.

ON NOVEMBER 1, 2024, IN ALAMEDA COUNTY, CHP OFFICERS SANTIAGO MEZA-GONZALEZ (#023295) AND JOSE MELANO (#023054) SUBJECTED PETITIONER BRENDAN NGEHSI NEWANFORBI TO FELONIOUS ASSAULT/BATTERY (INVOLUNTARY BLOOD DRAW VIA MISREPRESENTED WARRANT), IMPRISONMENT

7. Provide a description of any known or documented injury to the victim. Attach copies of all relevant reports and findings.

PETITIONER SUFFERED SUBSTANTIAL PHYSICAL AND MENTAL ABUSE AS A DIRECT RESULT OF THE QUALIFYING CRIMINAL ACTIVITY: PHYSICAL PAIN FROM HANDCUFFING AND THE INVOLUNTARY BLOOD DRAW; THE TRAUMA AND

Part 4. Helpfulness Of The Victim

For the following questions, if the victim is under 16 years of age, incompetent or incapacitated, then a parent, guardian, or next friend may act on behalf of the victim.

1. Does the victim possess information concerning the criminal activity listed in **Part 3.**? ☒ Yes ☐ No

2. Has the victim been helpful, is the victim being helpful, or is the victim likely to be helpful in the investigation or prosecution of the criminal activity detailed above? ☒ Yes ☐ No

3. Since the initiation of cooperation, has the victim refused or failed to provide assistance reasonably requested in the investigation or prosecution of the criminal activity detailed above? ☐ Yes ☒ No

If you answer "Yes" to **Item Numbers 1. - 3.**, provide an explanation in the space below. If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.

THE PETITIONER POSSESSES INFORMATION CONCERNING THE CRIMINAL ACTIVITY AS THE DIRECT VICTIM AND PRIMARY PERCIPIENT WITNESS. HE HAS BEEN HELPFUL, IS BEING HELPFUL, AND IS LIKELY TO BE HELPFUL IN THE INVESTIGATION OR PROSECUTION OF THE QUALIFYING CRIMINAL ACTIVITY THROUGH THE FILING AND ACTIVE REVIEW OF COMPLAINT ON THE CHP OFFICERS, INCLUDING GATHERING AND PRESERVING THE DASHCAM TRANSCRIPT (OBJECTIVE EVIDENCE CONTRADICTING THE OFFICERS' FABRICATED REPORT), FILING A COMPLAINT WITH THE COMMISSION ON PEACE OFFICER STANDARDS AND TRAINING, PARTICIPATING IN DMV PROCEEDINGS, AND PRESENTING ALL EVIDENCE TO THIS AGENCY HE HAS NOT REFUSED OR FAILED TO PROVIDE ANY ASSISTANCE REASONABLY REQUESTED.

4. Other. Include any additional information you would like to provide.

ADDITIONAL SUPPORTING EVIDENCE AND LEGAL ANALYSIS ARE CONTAINED IN THE ATTACHED REQUEST FOR CERTIFICATION PURSUANT TO FORM I-918 SUPPLEMENT B.

Part 5. Family Members Culpable In Criminal Activity

1. Are any of the victim's family members culpable or believed to be culpable in the criminal activity of which the petitioner is a victim? ☐ Yes ☒ No

If you answered "Yes," list the family members and their criminal involvement. (If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.)

2.a. Family Name (Last Name) N/A

2.b. Given Name (First Name) N/A

2.c. Middle Name N/A

2.d. Relationship
N/A

2.e. Involvement
N/A

3.a. Family Name (Last Name) N/A

3.b. Given Name (First Name) N/A

3.c. Middle Name N/A

3.d. Relationship
N/A

3.e. Involvement
N/A

4.a. Family Name (Last Name) N/A

4.b. Given Name (First Name) N/A

4.c. Middle Name N/A

4.d. Relationship
N/A

4.e. Involvement
N/A

Part 6. Certification

I am the head of the agency listed in **Part 2.** or I am the person in the agency who was specifically designated by the head of the agency to issue a U Nonimmigrant Status Certification on behalf of the agency. Based upon investigation of the facts, I certify, under penalty of perjury, that the individual identified in **Part 1.** is or was a victim of one or more of the crimes listed in **Part 3.** I certify that the above information is complete, true, and correct to the best of my knowledge, and that I have made and will make no promises regarding the above victim's ability to obtain a visa from U.S. Citizenship and Immigration Services (USCIS), based upon this certification. I further certify that if the victim unreasonably refuses to assist in the investigation or prosecution of the qualifying criminal activity of which he or she is a victim, I will notify USCIS.

1. Signature of Certifying Official (sign in ink)

➡

2. Date of Signature (mm/dd/yyyy)

3. Daytime Telephone Number

4. Fax Number

Part 7. Additional Information

If you need extra space to complete any item within this supplement, use the space below or attach a separate sheet of paper; type or print the agency's name, petitioner's name, and the Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number, Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet. If you need more space than what is provided, you may also make copies of this page to complete and file with this supplement.

1. Agency Name

CALIFORNIA HIGHWAY PATROL

Petitioner's Name

2.a. Family Name (Last Name) NGWA NFORBI

2.b. Given Name (First Name) NGEHSI

2.c. Middle Name BRENDAN

3. A-Number (if any)

► **A-** 203115087

4.a. Page Number 2 **4.b.** Part Number 3 **4.c.** Item Number 3

4.d. RESTRAINT); CALIFORNIA PENAL CODE § 242 (BATTERY / FELONIOUS ASSAULT); AND CONDUCT CONSTITUTING OBSTRUCTION OF JUSTICE (FABRICATION OF EVIDENCE UNDER PENALTY OF PERJURY, ANALOGOUS TO CAL. PENAL CODE §§ 118, 182).

5.a. Page Number 2 **5.b.** Part Number 3 **5.c.** Item Number 6

5.d. (UNLAWFUL ARREST LATER RECLASSIFIED AS DETENTION), AND OBSTRUCTION OF JUSTICE (FALSIFYING ARREST REPORTS CONTRADICTED BY DASHCAM EVIDENCE). THE VICTIM IN THIS CHP AGENCY COMPLAINT IS ACTIVELY PROSECUTING THESE ACTS AND CONTINUES TO ASSIST BY PRESERVING AND PRODUCING KEY EVIDENCE, INCLUDING THE DASHCAM TRANSCRIPT, ARREST REPORT, AND DETENTION CERTIFICATE.

6.a. Page Number 2 **6.b.** Part Number 3 **6.c.** Item Number 7

6.d. HUMILIATION OF ARREST AND INCARCERATION WITHOUT CAUSE; EXTENDED DETENTION DUE TO A FABRICATION-INDUCED PAROLE HOLD; SEVERE EMOTIONAL DISTRESS AND ANXIETY; COMPLETE LOSS OF HIS COMMERCIAL DRIVING LICENSE AND LIVELIHOOD FOR ONE YEAR (DMV SUSPENSION EFFECTIVE FEB. 20, 2025 – FEB. 19, 2026); AND LASTING REPUTATIONAL AND ECONOMIC HARM.

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 5

CHP Dashcam Recording Transcript

Verbatim Timestamped Transcript of

CHP Dashcam Recording

November 1, 2024

(CHP Case No. RJ68845)

Referenced at Petition ¶¶ 35–38, 44–48, 63

TRANSCRIPT OF CALIFORNIA HIGHWAY PATROL DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024

Location: Interstate 580 East, Livermore, Alameda County, California

CHP Case Number: RJ68845

Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording.

LEGEND:

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed text]: Actions, observations, or non-verbal events visible on recording

VERBATIM TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:45)

00:54:36 — [CHP vehicle heading eastbound on I-580.]

00:55:25 — [CHP vehicle begins to pull over onto shoulder and behind the Tesla.]

00:55:37 — [CHP vehicle comes to a full and complete stop; audio recording activates.]

00:55:53 — **Melano:** "It's a rental. Huh."

00:55:57 — [Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]

00:56:00 — [Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]

00:56:05 — [Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]

00:56:09 — **Melano:** "I think it's booze."

00:56:07 — [Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]

00:56:07 — **Melano:** "It wasn't here earlier when we passed by."

00:56:30 — **Melano:** "Oh look at this."

00:56:30 — [Meza-Gonzalez continues knocking on window to wake Plaintiff.]

00:56:40 — **Melano:** "Open the window."

00:56:43 — [Passenger side door is opened by Officer Joselyn Melano.]

00:56:46 — **Melano:** "Hello."

00:56:46 — **Plaintiff:** "Uh-huh."

00:56:47 — **Melano:** "Are you okay?"

00:56:48 — **Plaintiff:** "Yeah, we good."

00:56:49 — **Melano:** "Why are you here? Just tired?"

00:56:50 — [Plaintiff repeatedly says "no."]

00:56:52 — **Melano:** "What do you mean?"

00:56:54 — [Plaintiff repeatedly says "no."]

00:56:58 — **Plaintiff:** "We're good. We good, we good. Yeah we're straight."

00:57:05 — **Melano:** "OK. Where were you coming from?"

00:57:11 — **Plaintiff:** "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:35 — **Melano:** "OK. How long have you been here for?"

00:57:30 — **Plaintiff:** "I've been here at this place right here for, since a little after midnight."

00:57:39 — **Meza-Gonzalez:** "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — **Plaintiff:** "Oh parked at this parking lot right here?"

00:57:46 — **Meza-Gonzalez:** "This is not a parking lot."

00:57:49 — **Plaintiff:** "Two... two o'clock."

00:57:49 — [Plaintiff still groggy from sleep.]

00:57:51 — **Meza-Gonzalez:** "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — **Plaintiff:** "Yeah I should be home by like 1:30."

00:58:01 — **Meza-Gonzalez:** "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — **Plaintiff:** "Oh uh like 5-7 minutes."

00:58:07 — **Meza-Gonzalez:** "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — **Meza-Gonzalez:** "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — **Meza-Gonzalez:** "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:36 — **Plaintiff:** "Zero."

00:58:37 — **Meza-Gonzalez:** "You haven't had anything?"

00:58:38 — **Plaintiff:** "No, no."

00:58:34 — **Meza-Gonzalez:** "Okay. What's in that cup right there?"

00:58:46 — **Plaintiff:** "Don't drink it. Yeah don't drink it."

00:58:49 — **Melano:** "What is it? Let me see."

00:58:51 — **Melano:** "Is it water? No this is piss. This is pee."

00:58:57 — **Plaintiff:** "I don't know what that is."

00:58:59 — **Melano:** "I'm telling you it's piss. It smells like piss."

00:58:59 — [Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]

00:59:02 — **Meza-Gonzalez:** "No I'm not gonna smell that."

00:59:04 — **Melano:** "Yeah, I'm telling you it's piss."

00:59:05 — **Plaintiff:** "Oh, OK."

00:59:07 — **Melano:** "OK. Leave it there. Put it back."

00:59:12 — **Meza-Gonzalez:** "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:25 – 01:01:16)

00:59:20 — [Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]

00:59:25 — **Meza-Gonzalez:** "And then uh just hop out of your vehicle."

00:59:27 — **Melano:** "Where's your ID at?"

00:59:31 — **Meza-Gonzalez:** "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — **Melano:** "Yeah he said it's in his pocket bro."

00:59:36 — **Meza-Gonzalez:** "Pocket? OK."

00:59:38 — **Meza-Gonzalez:** "What's your first name?"

00:59:39 — **Plaintiff:** "Brendan, sir."

00:59:40 — **Meza-Gonzalez:** "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:38 — [Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]

00:59:46 — **Meza-Gonzalez:** "What's your last name?"

00:59:47 — **Plaintiff:** "Newanforbi."

00:59:50 — **Meza-Gonzalez:** "What's your last name?"

00:59:51 — **Plaintiff:** "Newanforbi."

00:59:53 — **Meza-Gonzalez:** "You could — you could stand here."

00:59:53 — [Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]

00:59:55 — **Meza-Gonzalez:** "So you said your last name was what?"

00:59:57 — **Plaintiff:** "NEW-WAN-FOR-BI."

01:00:00 — **Meza-Gonzalez:** "Newanforbi?"

01:00:01 — **Plaintiff:** "Yes."

00:59:46 — [Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]

01:00:02 — **Meza-Gonzalez:** "OK."

01:00:04 — **Meza-Gonzalez:** "Can I see your ID please?"

01:00:06 — **Melano:** "Meza?"

01:00:06 — [Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]

01:00:07 — **Meza-Gonzalez:** "Did you drink that?"

01:00:08 — **Plaintiff:** "No."

01:00:09 — **Melano:** "Mike's Hard Lemonade. Source alcohol."

01:00:09 — **Meza-Gonzalez:** "No? You didn't drink that?"

01:00:09 — [Plaintiff nods 'no.']

01:00:11 — **Meza-Gonzalez:** "You haven't drank anything since you've been parked?"

01:00:14 — **Plaintiff:** "No."

01:00:15 — **Meza-Gonzalez:** "OK. Can I see your ID? Your ID real quick?"

01:00:17 — [Plaintiff calmly presents ID to Meza-Gonzalez.]

01:00:19 — **Meza-Gonzalez:** "Alright sir, thank you."

01:00:21 — **Meza-Gonzalez:** "Brendan Newanforbi."

01:00:21 — [Officer reading the ID.]

01:00:22 — [Plaintiff quietly nods head yes.]

01:00:24 — **Meza-Gonzalez:** "Uh, do you still live on Cat Tail?"

01:00:26 — [Plaintiff nods head and says yes.]

01:00:28 — **Meza-Gonzalez:** "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — **Plaintiff:** "It wasn't all the way in Oakland."

01:00:37 — **Meza-Gonzalez:** "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — **Plaintiff:** "Yes."

01:00:40 — **Meza-Gonzalez:** "You know where you're at right now?"

01:00:41 — **Plaintiff:** "Right now, Livermore."

01:00:43 — **Meza-Gonzalez:** "You are in Livermore."

01:00:44 — [Plaintiff proceeds to read a highway sign about 50 yards away.]

01:00:44 — **Plaintiff:** "Isabella Avenue, Portola Avenue, ___ Avenue."

01:00:46 — **Meza-Gonzalez:** "Correct."

01:00:50 — **Meza-Gonzalez:** "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — **Plaintiff:** "No sir."

01:00:54 — **Meza-Gonzalez:** "Did you have any alcohol at the party?"

01:00:56 — **Plaintiff:** "No."

01:00:57 — **Meza-Gonzalez:** "No? OK."

01:00:57 — [Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]

01:01:16 — **Meza-Gonzalez:** "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — **Plaintiff:** "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — **Meza-Gonzalez:** "...when you're driving your personal vehicle?"

01:01:56 — **Plaintiff:** "...when I drive my personal vehicle."

01:01:58 — **Meza-Gonzalez:** "OK, is this your car though?"

01:01:59 — **Plaintiff:** "This is a rental."

01:02:02 — **Meza-Gonzalez:** "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — **Plaintiff:** "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — **Meza-Gonzalez:** "OK. Are you sick or injured?"

01:02:17 — **Plaintiff:** "Sorry?"

01:02:18 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:19 — [Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]

01:02:19 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:21 — **Plaintiff:** "Am I sick or injured physically? No."

01:02:26 — **Meza-Gonzalez:** "OK. Are you diabetic or epileptic?"

01:02:28 — **Plaintiff:** "I have — I have been diagnosed with pre-diabetes."

01:02:31 — **Meza-Gonzalez:** "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — **Plaintiff:** "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — **Meza-Gonzalez:** "OK. So you don't have any physical impairments?"

01:02:48 — **Plaintiff:** "Besides the pre-diabetes and the uh..."

01:02:51 — **Meza-Gonzalez:** "Can I have you spit out whatever is in your mouth?"

01:02:51 — [Meza-Gonzalez motions with circular motion, points at his mouth.]

01:02:53 — **Plaintiff:** "Oh I'm sorry, that's — that's just like spit."

01:02:53 — [Plaintiff leaning downward and away from Meza-Gonzalez.]

01:02:54 — **Meza-Gonzalez:** "Is it seeds or what is it?"

01:03:01 — **Plaintiff:** "That's a hotdog, from the hotdog stand."

01:03:05 — **Meza-Gonzalez:** "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — **Plaintiff:** "Sorry."

01:03:10 — **Meza-Gonzalez:** "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like

5 minutes of shut-eye right now?"

01:03:19 — **Plaintiff:** "Yeah like only been 7, yeah."

01:03:28 — **Meza-Gonzalez:** "OK. And what did you last eat? You said a hotdog?"

01:03:31 — **Plaintiff:** "Yeah."

01:03:32 — **Meza-Gonzalez:** "What time did you have the hotdog?"

01:03:34 — **Plaintiff:** "What time is it now sir?"

01:03:35 — **Meza-Gonzalez:** "Uh right now it's 1 AM."

01:03:42 — **Plaintiff:** "Maybe like 11:30."

01:03:47 — **Meza-Gonzalez:** "And you were driving correct? The car, the Tesla?"

01:03:50 — **Plaintiff:** "I was in the driver's seat, yes sir."

01:03:53 — **Meza-Gonzalez:** "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — **Plaintiff:** "Oakland, yes."

01:03:59 — **Meza-Gonzalez:** "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 — [Meza-Gonzalez making hand motions.]

01:04:07 — **Plaintiff:** "Yeah, I'm aware of that."

01:04:12 — **Meza-Gonzalez:** "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — **Plaintiff:** "No sir."

01:04:18 — **Meza-Gonzalez:** "Have you bumped your head recently? Like at all?"

01:04:21 — **Plaintiff:** "I'm not sure."

01:04:23 — **Meza-Gonzalez:** "OK."

01:04:29 — **Meza-Gonzalez:** "Are you under the care of a doctor or dentist?"

01:04:33 — **Plaintiff:** "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — **Meza-Gonzalez:** "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — **Plaintiff:** "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — **Meza-Gonzalez:** "OK. Have you taken any medication or drugs?"

01:04:56 — **Plaintiff:** "No drugs or medicine."

01:05:00 — **Meza-Gonzalez:** "No? OK."

01:05:00 — [Meza-Gonzalez proceeds to command Plaintiff to come to his car.]

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — **Meza-Gonzalez:** "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — **Plaintiff:** "Yes sir."

01:05:22 — **Meza-Gonzalez:** "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — **Meza-Gonzalez:** "Eyes test."

01:06:11 — **Meza-Gonzalez:** "Just continue looking at the tip of my finger, OK?"

01:06:54 — **Meza-Gonzalez:** "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — **Meza-Gonzalez:** "OK."

01:07:04 — [Ends HGN test.]

01:07:05 — **Meza-Gonzalez:** "You can relax."

01:07:06 — **Meza-Gonzalez:** "What do you drive?"

01:07:12 — **Plaintiff:** "I drive a uh Tesla Model Y."

01:07:14 — **Melano:** "You need a jacket or anything?"

01:07:15 — **Meza-Gonzalez:** "I'm good."

01:07:17 — **Meza-Gonzalez:** "Uh, a Tesla Model Y?"

01:07:18 — **Plaintiff:** "A Tesla Model Y."

01:07:21 — **Meza-Gonzalez:** "So you don't drive a, you said you drive a truck right?"

01:07:33 — **Plaintiff:** "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — **Plaintiff:** "Understood."

01:07:42 — **Meza-Gonzalez:** "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — **Plaintiff:** "Understood."

01:07:59 — **Meza-Gonzalez:** "OK, so tilt your head back and close your eyes."

01:08:02 — [Meza-Gonzalez starts timer.]

01:08:40 — [Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]

01:08:41 — **Meza-Gonzalez:** "Stop?"

01:08:44 — [Plaintiff nods head yes.]

01:08:45 — [Meza-Gonzalez stops timer.]

01:08:53 — [Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]

01:08:58 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — **Plaintiff:** "Really?"

01:09:20 — **Meza-Gonzalez:** "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — **Plaintiff:** "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — **Melano:** "We have other tests you could do."

01:09:44 — **Meza-Gonzalez:** "Yeah there's other ones we could do."

01:09:46 — **Plaintiff:** "So I haven't passed any of your tests yet?"

01:09:49 — **Meza-Gonzalez:** "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — **Melano:** "Yeah there's not pass or fail."

01:09:54 — **Plaintiff:** "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — **Meza-Gonzalez:** "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — **Meza-Gonzalez:** "Alright?"

01:10:12 — **Plaintiff:** "I don't think I — I don't know if I can balance on one knee."

01:10:14 — **Meza-Gonzalez:** "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — **Plaintiff:** "I mean I think we can do that. I mean..."

01:10:25 — **Melano:** "It's kind of sketch here bro."

01:10:26 — **Meza-Gonzalez:** "Is it 'cause it's on the side of the freeway?"

01:10:27 — **Melano:** "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

01:10:30 — **Meza-Gonzalez:** "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — **Meza-Gonzalez:** "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — **Plaintiff:** "So you're saying that I am required or not required?"

01:10:54 — **Meza-Gonzalez:** "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

01:11:01 — **Plaintiff:** "And if I choose not to consent to it?"

01:11:03 — **Meza-Gonzalez:** "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

01:11:11 — [Meza-Gonzalez and Melano calibrating breathalyzer.]

01:11:13 — **Meza-Gonzalez:** "Yes or no?"

01:11:15 — **Plaintiff:** "I don't consent to that."

01:11:16 — **Meza-Gonzalez:** "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

01:11:31 — **Meza-Gonzalez:** "Place your hands behind your back."

01:11:33 — **Meza-Gonzalez:** "Separate your feet, point your toes out and don't move, okay?"

01:11:33 — [Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]

01:11:36 — **Melano:** "Go ahead."

01:11:36 — [Melano radios dispatch.]

01:11:42 — **Dispatch:** "Uh so he is on parole for PC 289. He's also a 290 registrant. He's clear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — **Melano:** "He's on parole."

01:12:33 — **Meza-Gonzalez:** "You have the keys right?"

01:12:54 — **Meza-Gonzalez:** "I'm gonna just search you right now."

01:12:54 — [Meza-Gonzalez proceeds with pat down.]

01:13:01 — **Melano:** "You need a property bag or no?"

01:13:02 — **Meza-Gonzalez:** "I got a property bag."

01:13:05 — **Melano:** "OK, look you want me to hold it for you?"

01:13:05 — **Meza-Gonzalez:** "I don't have it on me though."

01:13:14 — [Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]

01:13:31 — **Meza-Gonzalez:** "What's this ankle bracelet for?"

01:13:33 — **Plaintiff:** "Like you said, I am on parole."

01:13:35 — **Melano:** "Yeah."

01:13:38 — **Meza-Gonzalez:** "So you're on post-community supervision?"

01:13:42 — **Plaintiff:** "Uh I think there's a difference between PRCS—"

01:13:43 — **Melano:** "Yeah, there is."

01:13:46 — **Plaintiff:** "PRCS, parole, and uh what's the other one, probation."

01:14:30 — **Melano:** "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — **Plaintiff:** "Not necessarily, I mean..."

01:14:34 — **Melano:** "Like do you want to take your phone with you or something?"

01:14:36 — **Plaintiff:** "Like my motor vehicle record, of course."

01:14:38 — **Melano:** "You want to take your phone with you?"

01:14:39 — **Plaintiff:** "Everybody would probably wanna take their phone."

01:14:42 — **Melano:** "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — **Melano:** "Like phone, wallet, keys."

01:14:53 — **Plaintiff:** "You haven't seen anything else in there that's of value?"

01:14:56 — **Melano:** "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — **Plaintiff:** "Phone, keys, wallet, paperwork."

01:15:06 — [Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]

01:15:54 — **Meza-Gonzalez:** "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — **Meza-Gonzalez:** "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — **Plaintiff:** "I don't know. It seems like torture."

01:16:37 — **Meza-Gonzalez:** "Well the thing is you need to make that decision now because if let's say you decide you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — **Meza-Gonzalez:** "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — **Meza-Gonzalez:** "You wanna choose a chemical breath or blood?"

01:17:13 — **Plaintiff:** "And then I can't drive whatsoever?"

01:17:16 — **Meza-Gonzalez:** "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 — [Meza-Gonzalez closes passenger door, enters driver door.]

01:18:32 — [Meza-Gonzalez: "You got a 130?"]

01:18:34 — **Melano:** "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 — [Melano continues searching vehicle.]

01:19:18 — [Meza-Gonzalez reads chemical test admonishment.]

01:20:49 — **Meza-Gonzalez:** "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — **Plaintiff:** "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — **Meza-Gonzalez:** "So even though you know that you're gonna get suspended?"

01:21:33 — **Plaintiff:** "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — **Plaintiff:** "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — **Meza-Gonzalez:** "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — **Plaintiff:** "I get that."

01:21:54 — **Meza-Gonzalez:** "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — **Plaintiff:** "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — **Meza-Gonzalez:** "So you're refusing to take a test?"

01:22:21 — **Meza-Gonzalez:** "OK."

01:23:11 — **Melano:** "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — **Meza-Gonzalez:** "But he said he was here for seven minutes."

01:23:17 — **Melano:** "Yeah plus we can't tell if—"

01:23:20 — **Melano:** "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — **Melano:** "Let me sanitize my gloves, there was piss everywhere. Gross."

01:23:33 — **Melano:** "Yeah you want to start your warrant?"

01:23:34 — **Meza-Gonzalez:** "I could start the CLETS."

01:23:36 — **Melano:** "Start your CLETS yeah."

01:24:17 — **Melano:** "Any additional charges because he's on parole?"

01:24:17 — **Meza-Gonzalez:** "What's the parole for?"

01:24:21 — **Melano:** "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — **Melano:** "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — **Melano:** "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — **Melano:** "This is the implied consent advisement."

01:36:58 — **Plaintiff:** "Implied consent advisement."

01:37:00 — **Melano:** "Yes sir."

01:37:00 — **Plaintiff:** "It's not a Miranda right?"

01:37:02 — **Melano:** "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — **Plaintiff:** "OK."

01:37:08 — **Melano:** "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 — [Melano reads implied consent advisement.]

01:37:35 — **Plaintiff:** "A choice huh?"

01:37:37 — **Melano:** "Yeah. Blood or breath?"

01:37:39 — **Plaintiff:** "Now when you say required by law, what does that mean?"

01:37:32 — **Melano:** "So you're required by law like you have to do it."

01:37:34 — **Plaintiff:** "And what if I don't?"

01:37:36 — **Melano:** "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:42 — **Plaintiff:** "Yeah we've already been through this man."

01:37:45 — **Melano:** "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — **Plaintiff:** "Sorry, sorry. Yeah we've already been through this."

01:37:49 — **Melano:** "Oh OK."

01:37:50 — **Plaintiff:** "Officer Meza and uh we're good to go."

01:37:53 — **Melano:** "About what? So you already told him which one you want?"

01:37:57 — **Plaintiff:** "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — **Melano:** "Oh Melano sir."

01:38:02 — **Plaintiff:** "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — **Melano:** "So which one are we doing sir? I'm asking you here."

01:38:08 — **Melano:** "Neither?"

01:38:09 — **Plaintiff:** "Yep."

01:38:10 — **Melano:** "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — **Plaintiff:** "I mean that's what Officer Meza said."

01:38:30 — **Melano:** "OK perfect, so you do understand though?"

01:38:35 — **Melano:** "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you

understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — **Melano:** "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — **Meza-Gonzalez:** "No alternator."

01:44:29 — **Melano:** "No? What keeps the battery charged then?"

01:44:34 — **Melano:** "That's a good question huh?"

01:44:37 — **Melano:** "Boss do you think your car has an alternator or nah?"

01:44:40 — **Plaintiff:** "I don't think electric vehicles have alternators."

01:44:42 — **Melano:** "That's what I'm saying 'cause it doesn't get—"

01:44:43 — **Meza-Gonzalez:** "The alternator is used to start up the car."

01:44:47 — **Melano:** "No, the battery is used to start the car. The alternator—"

01:44:53 — **Plaintiff:** "Teslas have motors."

01:44:54 — **Melano:** "Oh. Dual motors. That part OK."

01:44:57 — **Plaintiff:** "They get charged up."

01:44:59 — **Melano:** "They don't need to be recharged?"

01:45:01 — **Plaintiff:** "Just like your phone gets charged."

01:45:02 — **Melano:** "Oh that's why you have a charger."

01:45:04 — **Meza-Gonzalez:** "Yeah."

01:45:05 — **Melano:** "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — **Plaintiff:** "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — **Plaintiff:** "Just like your phone."

01:45:37 — **Melano:** "Yeah thank you. I'm not a—"

01:45:45 — **Melano:** "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 — [Squad car leaves the scene with Plaintiff.]

01:57:10 — [Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

The original recording is in the possession of the California Highway Patrol and/or has been produced through discovery in this matter. This transcript was prepared from that recording and accurately reflects the statements and events captured therein.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: **April 9, 2026**

/s/ Brendan Ngehsi Newanforbi

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NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 6

CHP Arrest-Investigation Report

CHP Arrest-Investigation Report

(CHP Form 202, Case No. RJ68845)

authored by Officer Santiago Meza-Gonzalez

(Badge No. 023295)

Referenced at Petition ¶¶ 38, 44–48, 62–63

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)

COURT	FILE NUMBER	EVIDENCE/PROPERTY
East County Hall of Justice	202400898	☐ YES ☒ NO

AREA	BEAT	CRASH REPORT NUMBER
390	052	N/A

E-

DATE/TIME OF ARREST/REPORT	DATE/TIME OF INCIDENT ☐ SAME	LOCATION OF ARREST/INCIDENT	WMVARS/MVARS
11/01/2024 0112	11/01/2024 0055	I-580 eastbound, west of Isabel Avenue	WMVARS ☒ YES ☐ NO

CAD NUMBER ☐ NONE	CITATION NUMBER	OFFENSE(S) CHARGED OR INVESTIGATED	JUS 8715 REQUIRED
241101GG0064	RJ68845	23152(a) VC, 23152(b) VC	☒ YES ☐ NO NUMBER:

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: Newanforbi, Brendan, Ngehsi

SUBJECT NO 1 OF 1

NAME (last, first, middle)	RESIDENCE ADDRESS
Newanforbi, Brendan, Ngehsi	1455 Cat Tail Drive Stockton CA, 95204

AKA	HOME PHONE	MAILING ADDRESS
Not asked	Not asked	☒ SAME

RACE	ETHNICITY	SEX	BIRTHDATE	DISPATCH NOTIFIED
Black or African American	Not Hispanic or Latino	Male	09/16/1996	☒ YES ☐ NO TIME: 0326

DRIVER LICENSE NUMBER	STATE	DDL STATUS	HAIR	EYES	HEIGHT	WEIGHT	PLACE OF BIRTH (city, state, country)
F7953179	CA	Valid	BLK	BRN	508	225	Camaroon

EMPLOYER	BUSINESS PHONE	BUSINESS ADDRESS	MISC. (SSN, INS #, ETC.)
Self employed	Not asked	Not asked	Not asked ID: A13903

BOOKING, CII, FBI, ETC., NUMBER(S)	WHERE BOOKED/CONFINED	DATE/TIME	FINGERPRINTED
CAR913358	Santa Rita Jail	11/01/2024 0325	☒ YES ☐ NO

NOTIFICATION (*Who, How, When*), EXPLAIN IN NARRATIVE — NOTIFIED BY

☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

VEHICLE

LICENSE	STATE	REG. YEAR	VIN/EN NUMBER	VEHICLE WAS	STORAGE AUTHORITY
9EAX768	CA	2025	7SAYGDEE3PF638736	☒ STORED ☐ PARKED ☐ RELEASED ☐ RECOVERED ☐ IMPOUNDED	22651(h)(1) VC

VEH YEAR	MAKE	MODEL	COLOR	BODY TYPE	LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER
2023	Tesla	Model Y	Gray	SUV	United Towing - (925) 888-8880

NAME OF REGISTERED OWNER ☐ SAME AS SUBJECT	ADDRESS ☐ SAME AS SUBJECT
PV Holding Corp.	5721 W. 96th Street Los Angeles CA, 90045

NAME OF LEGAL OWNER ☐ SAME AS R/O	ADDRESS	LOCATION OF KEYS
The bank of New York Mellow Trust Company	26933 Northwestern Hwy Southfield MI, 48033	With tow

WITNESS/PASSENGER/VICTIM

BIRTHDATE	SEX	NAME	ADDRESS/AGENCY	PHONE
	M	☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054	4999 Gleason Drive Dublin CA, 94568	RES: N/A BUS: (925) 828-0466
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:

ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU?	HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW?	WAIVER STATEMENT
☐ YES ☐ NO	☐ YES ☐ NO	

MISDEMEANOR INCARCERATION (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

ARRESTING/INVESTIGATING OFFICER (*Print name/rank*)	ID NUMBER	REVIEWED BY (*Print name/rank*)	ID NUMBER	DATE
Meza / Officer	023295	SGT. DEAL	17747	11/5/24

Newanforbi, Brendan, Ngehsi | **RJ68845**

* Asked prior to FSTs

INVESTIGATION INTERVIEW

DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO			ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO: Pre-Diabetic		
ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO	DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO		DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO		
WHEN DID YOU LAST SLEEP? Right now	HOW LONG? 7 Minutes	WHEN DID YOU LAST EAT? 11:30 PM	DESCRIBE: Hot dog		
WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A	IF NO, WHO?		WHERE DID YOU START DRIVING? Oakland	WHERE WERE YOU GOING? Stockton	
WHERE WERE YOU STOPPED? Livermore	WHAT HAVE YOU BEEN DRINKING? Nothing		HOW MUCH? Not asked	TIME STARTED? Not asked	TIME STOPPED? Not asked
LOCATION WHERE YOU WERE DRINKING? NAME/ADDRESS: Not asked			DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE. ☐ YES ☐ NO: Not asked		
DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A	HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A		IF YES, WHAT?		HOW MUCH?
ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO	IF YES, NAME/ADDRESS				RECENT SURGERY PERFORMED? ☐ YES ☒ NO *(Explain In Narrative)*
HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO	IF YES, WHAT?		HOW MUCH?	TIME OF LAST DOSAGE?	

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT:	GLASSES/LENSES	EYES (appearance)	DEMEANOR	SPEECH
Strong ☒ YES ☐ NO	☐ YES ☒ NO	Red and watery	Compliant	Slurred

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

PRELIMINARY ALCOHOL SCREEN INFORMATION

P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

PAS SERIAL NUMBER	TEMPERATURE	ZEROED	RESULTS NO. 1	TIME 1	RESULTS NO. 2	TIME 2	RESULTS NO. 3 *(If needed)*	TIME 3
		☐ YES ☐ NO	☒ Refused					

LOCATION OF TEST	☐ At scene	BREATH SAMPLE	OFFICER ADMINISTERING PAS TEST	ID NUMBER	AREA
		☐ Automatic ☐ Manual	☐ ARRESTING OFFICER ☐ OR		

CHEMICAL TEST INFORMATION

☒ Implied Consent Admonishment, Section 23612 CVC
☒ Refused Test(s) (Complete DS 367)

DRUG ADMONISHMENT ☒ N/A ☐ Yes ☐ Refused (Complete DS 367)

ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER

TYPE OF TEST	TIME	ID OF SAMPLE(S)	RESULTS, IF AVAILABLE	DISPOSITION OF SAMPLE(S)
1 ☐ Breath				
2 ☒ Blood	0238	RJ68845	Pending	CHP Dublin Area Blood Evidence Locker
3 ☐ Urine				

TEST GIVEN	LOCATION WHERE TEST WAS CONDUCTED	NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE
1		☐ ARRESTING OFFICER ☐ OR
2	CHP Dublin Area Office	☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb
3		☐ ARRESTING OFFICER ☐ OR

CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.
B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.
C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

FIELD SOBRIETY TESTS:

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

Horizontal Gaze Nystagmus: Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

Modified Romberg Balance: Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

One Leg Stand: Newanforbi chose not to perform this test and related it was difficult.

Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.

Preliminary Alcohol Screening Device (PAS): I advised Newanforbi of the PAS admonishment and he refused to take the test.

FIRST OBSERVATIONS:

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

OBSERVATIONS UPON CONTACT:

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B 09/16/1996 by his California Driver License ID F7953179. I asked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

ARREST:

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

ARREST (Continued):

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole for 289(a)(1) PC. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

RECOMMENDATIONS:

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal

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EXHIBIT 7

Penal Code Section 851.6 Detention Certificate

California Penal Code Section 851.6

Detention Certificate

(Dublin CHP-01991)

dated November 5, 2024

Reclassifying arrest as "detention only" for

"insufficient grounds for making a criminal complaint"

Referenced at Petition ¶¶ 42, 48–49, 62–63

BRENDAN NGEHSI NEWANFORBI
1455 CAT TAIL DR
STOCKTON, CA 95204

DEPARTMENT OF JUSTICE
STATE OF CALIFORNIA
(Rev. 07/2016)

DUBLIN CHP - 01991 - DETENTION CERTIFICATE

Penal Code section 849 provides:

(a) When an arrest is made without a warrant by a peace officer or private person, the person arrested, if not otherwise released, shall, without unnecessary delay, be taken before the nearest or most accessible magistrate in the county in which the offense is triable, and a complaint stating the charge against the arrested person shall be laid before the magistrate.

(b) A peace officer may release from custody, instead of taking the person before a magistrate, a person arrested without a warrant in the following circumstances:

(1) The officer is satisfied that there are insufficient grounds for making a criminal complaint against the person arrested.

(2) The person arrested was arrested for intoxication only, and no further proceedings are desirable.

(3) The person was arrested only for being under the influence of a controlled substance or drug and the person is delivered to a facility or hospital for treatment and no further proceedings are desirable.

(4) The person arrested was arrested for driving under the influence of alcohol or drugs and the person is delivered to a hospital for medical treatment that prohibits immediate delivery before a magistrate.

(c) The record of arrest of a person released pursuant to paragraphs (1) and (3) of subdivision (b) shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 849.5 provides:

In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, any record of arrest of the person shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 851.6 provides, in part:

(a) In any case in which a person is arrested and released pursuant to paragraph (1) or (3) of subdivision (b) of Section 849, the person shall be issued a certificate, signed by the releasing officer or his superior officer, describing the action as a detention.

(b) In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, the person shall be issued a certificate by the law enforcement agency which arrested him describing the action as a detention.

As required by Penal Code section 851.6, I hereby certify that the taking into custody of

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN — Subject's Name (Subject's True Name)

on 11/01/2024 — Date

by the DUBLIN CHP - 01991 — Name of Agency Taking Custody

RJ68845 — Agency Report Number

was a detention only, not an arrest.

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN NGEHSI) — Subject's Name (Subject's True Name)

was released on 11/05/2024 — Date

by the DUBLIN CHP - 01991 — Name of Releasing Agency

[signature] — Signature

DEL CARLO, L — Printed Name

022511 — Badge or Identification Number

OFFICER — Title

Detention Certificate was prepared by chp22511 (CALIFORNIA HIGHWAY PATROL, DUBLIN) on 05/12/2025 11:53 AM.

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 8

Petitioner's Sworn Declaration

Declaration of Brendan Ngehsi Newanforbi

executed under penalty of perjury

detailing physical, emotional, and economic

harm suffered as a result of the qualifying

criminal activity

Referenced at Petition ¶¶ 41, 51

DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF COMPLAINT

I, Brendan Ngehsi Newanforbi, declare as follows:

1. I am the Plaintiff in the above-entitled action. I am a resident of the State of California and am competent to make this declaration. All facts stated herein are based on my personal knowledge and, if called as a witness, I could and would testify competently thereto.

2. On November 1, 2024, I was approached by CHP officers while parked on a dirt shoulder along Interstate 580 East in Livermore, California. I had pulled over to rest due to fatigue from a long drive, consistent with my safety training as a licensed commercial truck driver. I was not engaged in any criminal activity and had no intention of violating the law.

3. Without probable cause, a warrant, or my consent, CHP officers initiated contact under the pretext of a welfare check and escalated the encounter into a DUI investigation. I was forcibly removed from my vehicle, subjected to sobriety tests, and eventually arrested despite no evidence of impairment or illegal behavior.

4. The arrest led to a chemical test refusal allegation, which automatically triggered the suspension of my Class A commercial driver's license. This administrative penalty has disqualified me from my profession and deprived me of income since the incident. The suspension is scheduled to remain in effect until February 2026. Based on my average income, I estimate the total lost wages from the date of the suspension through February 2026 to be approximately $112,000.

5. Additionally, the arrest resulted in a parole violation hold. I was detained from Friday until the following Wednesday without arraignment. During this period, I was held in unsafe conditions and forced to share close quarters with individuals accused of serious violent crimes, including homicide. One individual became increasingly hostile and threatening, creating a situation in which I feared for my personal safety. I was never informed of my arraignment rights and was not brought before a judge.

6. As a result of these events, I have suffered severe emotional distress, humiliation, reputational harm, and economic loss. After my license was suspended, I lost access to my rental vehicle and was forced to walk long distances, rely on public buses, and spend money I could not afford on rideshares just to meet basic responsibilities. These circumstances have been deeply humiliating.

7. I had also planned to financially support my mother during her nursing program so she could focus on school without needing to work. My inability to fulfill this commitment has increased family tension between myself, my mother, my father, and my adult siblings.

The strain on our relationships has become severe.

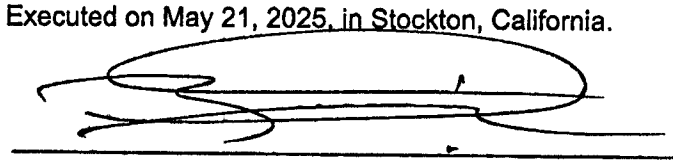
8. I have suffered from ongoing mental health symptoms including anxiety, panic attacks, flashbacks, and even suicidal ideation. My sense of stability and self-worth has deteriorated, and I often feel hopeless about making it through to February 2026 without further breakdown.

9. I also feel an ongoing sense of shame and humiliation in my spiritual and social community. Among members of my church and those who knew me as a responsible, licensed professional, I now feel judged, alienated, and spiritually isolated.

10. These harms continue to affect my life today, both personally and professionally. The inability to work in my chosen career, coupled with the stigma of an unjust DUI record and parole complications, has caused long-term instability, suffering, and continued financial hardship.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on May 21, 2025, in Stockton, California.



Brendan Ngehsi Newanforbi

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 9

Pay Stubs and Wage Notice (Centerline Drivers, LLC)

Centerline Drivers, LLC

Twenty-six consecutive weekly pay stubs

(pay periods: May 5, 2024 – January 3, 2025)

and Wage Notice

Referenced at Petition ¶¶ 33, 51

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 5/5/2024-5/11/2024
Check Date: 5/17/2024
Check Number: 9012546
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	931.20	F.I.C.A	65.18	
PREMIUM TIME	120.04	Medicare	15.24	
		CA SDI	11.56	

TOTAL EARNINGS **1,051.24** **TOTAL TAXES** **91.98**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336 1-209-642-7300	29.10	32.00					
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336 1-209-642-7300	43.65						2.75

Pg 1 of 1

TOTAL	32.00	0.00	0.00	0.00	0.00	2.75

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	34.75	1,051.24	91.98	0.00	959.26
YTD:	34.75	1,051.24	91.98	0.00	959.26

Time Off — This Check Available

State	SICK LEAVE Avail	Used
PSL	1.16	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9012546

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 05/17/24
DD Amount
100% 959.26
Net Pay 959.26

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 5/12/2024-5/18/2024
Check Date: 5/24/2024
Check Number: 9014373
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	1,134.90	F.I.C.A	83.90	
PREMIUM TIME	218.25	Medicare	19.62	
		CA SDI	14.88	

TOTAL EARNINGS	1,353.15	TOTAL TAXES	118.40

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336 1-209-642-7300	29.10	39.00					
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336 1-209-642-7300	43.65						5.00

Pg 1 of 1

TOTAL						39.00	0.00	0.00	0.00	0.00	5.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	44.00	1,353.15	118.40	0.00	1,234.75
YTD:	78.75	2,404.39	210.38	0.00	2,194.01

Time Off	This Check	Available
SICK LEAVE		
State	Avail	Used
PSL	2.63	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9014373

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION		DATE 05/24/24	AMOUNT
Bank Account Number		DD Amount	
3988 s	100%	1,234.75	*********.00
	Net Pay	1,234.75	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 5/19/2024-5/25/2024
Check Date: 5/31/2024
Check Number: 9015111
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	232.80	F.I.C.A	15.79	
PREMIUM TIME	21.83	Medicare	3.69	
		CA SDI	2.80	
TOTAL EARNINGS	**254.63**	**TOTAL TAXES**	**22.28**	

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336	1-209-642-7300	29.10	8.00					
Crothall Laundry Service, 2365 N. Airport Way, Manteca, CA 95336	1-209-642-7300	43.65						0.50

Pg 1 of 1

TOTAL								
	8.00	0.00	0.00	0.00	0.00	0.50		

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	8.50	254.63	22.28	0.00	232.35
YTD:	87.25	2,659.02	232.66	0.00	2,426.36

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	2.91	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9015111

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 s — 100% — 232.35
Net Pay — 232.35

DATE 05/31/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 5/19/2024-5/25/2024
Check Date: 5/31/2024
Check Number: 9015757
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	960.00	F.I.C.A	81.84	
PREMIUM TIME	360.00	Medicare	19.14	
		CA SDI	14.52	

TOTAL EARNINGS **1,320.00** **TOTAL TAXES** **115.50**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						8.00

Pg 1 of 1

TOTAL								
	32.00	0.00	0.00	0.00	0.00	8.00		

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	40.00	1,320.00	115.50	0.00	1,204.50
YTD:	127.25	3,979.02	348.16	0.00	3,630.86

Time Off — This Check — Available

State	SICK LEAVE Avail	Used
PSL	4.24	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9015757

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 05/31/24
DD Amount
100% 1,204.50
Net Pay 1,204.50

AMOUNT
*****.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 5/26/2024-6/1/2024
Check Date: 6/7/2024
Check Number: 9016909
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	960.00	F.I.C.A	86.02	
PREMIUM TIME	427.50	Medicare	20.12	
		CA SDI	15.26	

TOTAL EARNINGS **1,387.50** **TOTAL TAXES** **121.40**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						9.50

Pg 1 of 1

TOTAL						32.00	0.00	0.00	0.00	0.00	9.50

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	41.50	1,387.50	121.40	0.00	1,266.10			
YTD:	168.75	5,366.52	469.56	0.00	4,896.96			

SICK LEAVE	Avail	Used
State		
PSL	5.63	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9016909

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 06/07/24
DD Amount
100% 1,266.10
Net Pay 1,266.10

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 6/2/2024-6/8/2024
Check Date: 6/14/2024
Check Number: 9018199
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	1,185.00	F.I.C.A	115.78	
PREMIUM TIME	607.50	Medicare	27.08	
DOUBLETIME	60.00	CA SDI	20.54	
MINIMUM GUARANT	15.00			
TOTAL EARNINGS	**1,867.50**	**TOTAL TAXES**	**163.40**	

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	39.50					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						13.50
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	60.00			1.00			
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00						0.50

TOTAL								
	39.50	0.00	1.00	0.00	0.00	14.00		

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	54.50	1,867.50	163.40	0.00	1,704.10
YTD:	223.25	7,234.02	632.96	0.00	6,601.06

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	7.43	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9018199

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 s — 100% — 1,704.10
Net Pay — 1,704.10

DATE 06/14/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 6/9/2024-6/15/2024
Check Date: 6/21/2024
Check Number: 9019397
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	1,080.00	F.I.C.A	113.46	
PREMIUM TIME	630.00	Medicare	26.53	
MINIMUM GUARANT	120.00	CA SDI	20.13	

TOTAL EARNINGS **1,830.00** **TOTAL TAXES** **160.12**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	36.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						14.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00						4.00

Pg 1 of 1

TOTAL								
	36.00	0.00	0.00	0.00	0.00	18.00		

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	54.00	1,830.00	160.12	0.00	1,669.88
YTD:	277.25	9,064.02	793.08	0.00	8,270.94

Time Off — This Check — Available

SICK LEAVE	State	Avail	Used
	PSL	9.09	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9019397

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION **DATE** 06/21/24 **AMOUNT**

Bank Account Number		DD Amount	
3988 s	100%	1,669.88	*********.00
	Net Pay	1,669.88	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 6/16/2024-6/22/2024
Check Date: 6/28/2024
Check Number: 9020179
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	1,200.00	F.I.C.A	98.11	
PREMIUM TIME	337.50	Medicare	22.95	
MINIMUM GUARANT	45.00	CA SDI	17.41	

TOTAL EARNINGS **1,582.50** **TOTAL TAXES** **138.47**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	40.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						7.50
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						1.00

Pg 1 of 1	TOTAL	40.00	0.00	0.00	0.00	0.00	8.50

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	48.50	1,582.50	138.47	0.00	1,444.03
YTD:	325.75	10,646.52	931.55	0.00	9,714.97

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	10.68	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9020179

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number **DD Amount**
3988 s 100% 1,444.03
Net Pay 1,444.03

DATE 06/28/24 **AMOUNT**
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 6/23/2024-6/29/2024
Check Date: 7/5/2024
Check Number: 9022280
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
REGULAR TIME	960.00	F.I.C.A	92.07	
PREMIUM TIME	495.00	Medicare	21.53	
DOUBLETIME	30.00	CA SDI	16.33	

TOTAL EARNINGS 1,485.00 **TOTAL TAXES** 129.93

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						11.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	60.00			0.50			

TOTAL							
	32.00	0.00	0.50	0.00	0.00	11.00	

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	43.50	1,485.00	129.93	0.00	1,355.07
YTD:	369.25	12,131.52	1,061.48	0.00	11,070.04

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	12.13	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9022280

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 07/05/24
DD Amount
100% 1,355.07
Net Pay 1,355.07

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 6/30/2024-7/6/2024
Check Date: 7/12/2024
Check Number: 9023673
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	480.00	F.I.C.A	51.79	ESC Dental EEO	4.65
PREMIUM TIME	360.00	Medicare	12.11		
		CA SDI	9.19		
TOTAL EARNINGS	**840.00**	**TOTAL TAXES**	**73.09**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	16.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						8.00

Pg 1 of 1

TOTAL						**16.00**	**0.00**	**0.00**	**0.00**	**0.00**	**8.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	24.00	840.00	73.09	4.65	762.26
YTD:	393.25	12,971.52	1,134.57	4.65	11,836.95

Time Off — **This Check** — **Available**

SICK LEAVE

State	Avail	Used
PSL	12.93	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9023673

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 s — 100% — 762.26
Net Pay — 762.26

DATE 07/12/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 7/7/2024-7/13/2024
Check Date: 7/19/2024
Check Number: 9025092
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,200.00	F.I.C.A	130.84	ESC Dental EEO	4.65
PREMIUM TIME	855.00	Medicare	30.60		
DOUBLETIME	60.00	CA SDI	23.21		

TOTAL EARNINGS	2,115.00	TOTAL TAXES	184.65	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	40.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						19.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	60.00			1.00			
Pg 1 of 1		TOTAL	40.00	0.00	1.00	0.00	0.00	19.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	60.00	2,115.00	184.65	4.65	1,925.70			
YTD:	453.25	15,086.52	1,319.22	9.30	13,762.65			

SICK LEAVE	State	Avail	Used
	PSL	14.93	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9025092

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 07/19/24
DD Amount
100% 1,925.70
Net Pay 1,925.70

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 7/28/2024-8/3/2024
Check Date: 8/9/2024
Check Number: 9029194
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	960.00	F.I.C.A	104.80	ESC Dental EEO	4.65
PREMIUM TIME	675.00	Medicare	24.51		
DOUBLETIME	60.00	CA SDI	18.59		

TOTAL EARNINGS	**1,695.00**	**TOTAL TAXES**	**147.90**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						15.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	60.00			1.00			

Pg 1 of 1

TOTAL						
	32.00	0.00	1.00	0.00	0.00	15.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	48.00	1,695.00	147.90	4.65	1,542.45
YTD:	546.25	18,239.52	1,593.88	23.25	16,627.04

Time Off

	This Check	Available
SICK LEAVE		
State	Avail	Used
PSL	17.96	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9029194

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 08/09/24
DD Amount
100% 1,542.45
Net Pay 1,542.45

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 8/4/2024-8/10/2024
Check Date: 8/16/2024
Check Number: 9030566
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	720.00	F.I.C.A	124.57	ESC Dental EEO	4.65
REGULAR TIME	533.60	Medicare	29.13		
PREMIUM TIME	315.00	CA SDI	22.10		
OVERTIME	325.20				
DOUBLETIME	120.00				
TOTAL EARNINGS	**2,013.80**	**TOTAL TAXES**	**175.80**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	24.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						7.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	60.00			2.00			
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	33.35	16.00					
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	50.03		6.50				
TOTAL		**40.00**	**6.50**	**2.00**	**0.00**	**0.00**	**7.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	55.50	2,013.80	175.80	4.65	1,833.35
YTD:	601.75	20,253.32	1,769.68	27.90	18,460.39

Time Off

This Check	Available	
	SICK LEAVE	
State	Avail	Used
PSL	19.81	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9030566

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 08/16/24
DD Amount
100% 1,833.35
Net Pay 1,833.35

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 8/11/2024-8/17/2024
Check Date: 8/23/2024
Check Number: 9032039
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	720.00	F.I.C.A	74.11	ESC Dental EEO	4.65
PREMIUM TIME	360.00	Medicare	17.33		
DOUBLETIME	120.00	CA SDI	13.15		

TOTAL EARNINGS	1,200.00	TOTAL TAXES	104.59	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	24.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						8.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	60.00			2.00			

Pg 1 of 1	TOTAL	24.00	0.00	2.00	0.00	0.00	8.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	34.00	1,200.00	104.59	4.65	1,090.76
YTD:	635.75	21,453.32	1,874.27	32.55	19,551.15

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	20.94	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9032039

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 s — 100% — 1,090.76
Net Pay — 1,090.76

DATE 08/23/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 8/18/2024-8/24/2024
Check Date: 8/30/2024
Check Number: 9033398
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	960.00	F.I.C.A	87.13	ESC Dental EEO	4.65
PREMIUM TIME	450.00	Medicare	20.38		
		CA SDI	15.46		

TOTAL EARNINGS	1,410.00	TOTAL TAXES	122.97	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						10.00

Pg 1 of 1	TOTAL					32.00	0.00	0.00	0.00	0.00	10.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	42.00	1,410.00	122.97	4.65	1,282.38			
YTD:	677.75	22,863.32	1,997.24	37.20	20,833.53			

SICK LEAVE

State	Avail	Used
PSL	22.34	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9033398

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 08/30/24
DD Amount
100% 1,282.38
Net Pay 1,282.38

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 8/25/2024-8/31/2024
Check Date: 9/6/2024
Check Number: 9034788
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	690.00	F.I.C.A	63.88	ESC Dental EEO	4.65
PREMIUM TIME	315.00	Medicare	14.94		
MINIMUM GUARANT	30.00	CA SDI	11.33		

TOTAL EARNINGS	1,035.00	TOTAL TAXES	90.15	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	23.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						7.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00						1.00

Pg 1 of 1

TOTAL							23.00	0.00	0.00	0.00	0.00	8.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	31.00	1,035.00	90.15	4.65	940.20
YTD:	708.75	23,898.32	2,087.39	41.85	21,773.73

Time Off | This Check | Available

SICK LEAVE

State	Avail	Used
PSL	23.34	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9034788

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
3988 s

DATE 09/06/24
DD Amount
100% 940.20
Net Pay 940.20

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/1/2024-9/7/2024
Check Date: 9/13/2024
Check Number: 9036177
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	960.00	F.I.C.A	92.25	ESC Dental EEO	4.65
PREMIUM TIME	472.50	Medicare	21.57		
DOUBLETIME	60.00	CA SDI	16.37		

TOTAL EARNINGS	1,492.50	TOTAL TAXES	130.19	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	32.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						10.50
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	60.00			1.00			

TOTAL							
	32.00	0.00	1.00	0.00	0.00	10.50	

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	43.50	1,492.50	130.19	4.65	1,357.66
YTD:	752.25	25,390.82	2,217.58	46.50	23,131.39

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	24.79	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9036177

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 $ — 100% — 1,357.66
Net Pay — 1,357.66

DATE 09/13/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/8/2024-9/14/2024
Check Date: 9/20/2024
Check Number: 9037592
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,005.00	F.I.C.A	62.02	ESC Dental EEO	4.65
		Medicare	14.51		
		CA SDI	11.00		

TOTAL EARNINGS	1,005.00	TOTAL TAXES	87.53	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	33.50					
Pg 1 of 1 **TOTAL**		**33.50**	**0.00**	**0.00**	**0.00**	**0.00**	**0.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	33.50	1,005.00	87.53	4.65	912.82
YTD:	785.75	26,395.82	2,305.11	51.15	24,044.21

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	25.91	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9037592

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number **DD Amount**
3988 s 100% 912.82
Net Pay 912.82

DATE 09/20/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/15/2024-9/21/2024
Check Date: 9/27/2024
Check Number: 9038980
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,334.00	F.I.C.A	192.51	ESC Dental EEO	4.65
OVERTIME	1,025.62	Medicare	45.02		
REGULAR TIME	480.00	CA SDI	34.15		
PREMIUM TIME	270.00				

TOTAL EARNINGS	3,109.62	TOTAL TAXES	271.68	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	16.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						6.00
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	33.35	40.00					
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	50.03		20.50				
TOTAL	**56.00**	**20.50**	**0.00**	**0.00**	**0.00**	**0.00**	**6.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	82.50	3,109.62	271.68	4.65	2,833.29
YTD:	868.25	29,505.44	2,576.79	55.80	26,877.50

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	28.66	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9038980

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION		DATE 09/27/24	AMOUNT
Bank Account Number		DD Amount	
3988 s	100%	2,833.29	*********.00
	Net Pay	2,833.29	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/22/2024-9/28/2024
Check Date: 10/4/2024
Check Number: 9039714
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,334.00	F.I.C.A	135.15	ESC Dental EEO	4.65
OVERTIME	850.51	Medicare	31.61		
		CA SDI	23.98		

TOTAL EARNINGS	2,184.51	TOTAL TAXES	190.74	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	33.35	40.00					
Toyota Quality Part Express, 2451 Bishop Drive, San Ramon, CA 94583 1-925-275-3449	50.03		17.00				

Pg 1 of 1	TOTAL					40.00	17.00	0.00	0.00	0.00	0.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	57.00	2,184.51	190.74	4.65	1,989.12
YTD:	925.25	31,689.95	2,767.53	60.45	28,866.62

Time Off

	This Check	Available
		SICK LEAVE
State	Avail	Used
PSL	30.56	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9039714

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION		DATE 10/04/24	AMOUNT
Bank Account Number		DD Amount	
3988 s	100%	1,989.12	*********.00
	Net Pay	1,989.12	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/22/2024-9/28/2024
Check Date: 10/4/2024
Check Number: 9040375
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,155.00	F.I.C.A	71.32	ESC Dental EEO	4.65
		Medicare	16.68		
		CA SDI	12.65		
TOTAL EARNINGS	**1,155.00**	**TOTAL TAXES**	**100.65**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	38.50					
TOTAL		**38.50**	**0.00**	**0.00**	**0.00**	**0.00**	**0.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	38.50	1,155.00	100.65	4.65	1,049.70
YTD:	963.75	32,844.95	2,868.18	65.10	29,916.32

Time Off

	This Check	Available
		SICK LEAVE
State	Avail	Used
PSL	31.84	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9040375

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION		DATE 10/04/24	AMOUNT
Bank Account Number		DD Amount	
3988 s	100%	1,049.70	*********.00
	Net Pay	1,049.70	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/29/2024-10/5/2024
Check Date: 10/11/2024
Check Number: 9041735
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	720.00	F.I.C.A	77.83	ESC Dental EEO	4.65
PREMIUM TIME	540.00	Medicare	18.20		
		CA SDI	13.81		

TOTAL EARNINGS	1,260.00	TOTAL TAXES	109.84	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	24.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						12.00

Pg 1 of 1

TOTAL						24.00	0.00	0.00	0.00	0.00	12.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	36.00	1,260.00	109.84	4.65	1,145.51			
YTD:	999.75	34,104.95	2,978.02	69.75	31,061.83			

SICK LEAVE	Avail	Used
State		
PSL	33.04	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9041735

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION Bank Account Number		DATE 10/11/24 DD Amount	AMOUNT
3988 s	100%	1,145.51	*********.00
	Net Pay	1,145.51	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 9/29/2024-10/5/2024
Check Date: 10/14/2024
Check Number: 9042436
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS
SICK	306.80	F.I.C.A	19.02	
		Medicare	4.45	
		CA SDI	3.37	

TOTAL EARNINGS	**306.80**	**TOTAL TAXES**	**26.84**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Paid Sick Leave - CA, 1600 East 4th Street, Suite 340, Santa Ana, CA 92701 1-714-481-9310	30.68						10.00

Pg 1 of 1				TOTAL		0.00	0.00	0.00	0.00	0.00	10.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	10.00	306.80	26.84	0.00	279.96			
YTD:	999.75	34,411.75	3,004.86	69.75	31,337.14			

SICK LEAVE		
State	Avail	Used
PSL	23.04	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9042436

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION		DATE 10/14/24	AMOUNT
Bank Account Number		**DD Amount**	
3988 s	100%	279.96	*********.00
	Net Pay	279.96	

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 10/13/2024-10/19/2024
Check Date: 10/25/2024
Check Number: 9044530
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	480.00	F.I.C.A	57.84	ESC Dental EEO	4.65
PREMIUM TIME	337.50	Medicare	13.53		
DOUBLETIME	120.00	CA SDI	10.26		

TOTAL EARNINGS	937.50	TOTAL TAXES	81.63	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	30.00	16.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	45.00						7.50
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377	1-209-855-8178	60.00			2.00			

Pg 1 of 1	TOTAL					16.00	0.00	2.00	0.00	0.00	7.50

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	25.50	937.50	81.63	4.65	851.22			
YTD:	1,072.25	36,879.25	3,219.96	79.05	33,584.89			

SICK LEAVE		
State	Avail	Used
PSL	25.46	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9044530

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number **DD Amount**
3988 s 100% 851.22
Net Pay 851.22

DATE 10/25/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 10/20/2024-10/26/2024
Check Date: 11/1/2024
Check Number: 9045924
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	480.00	F.I.C.A	59.23	ESC Dental EEO	4.65
PREMIUM TIME	360.00	Medicare	13.85		
DOUBLETIME	120.00	CA SDI	10.51		

TOTAL EARNINGS	960.00	TOTAL TAXES	83.59	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	30.00	16.00					
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	45.00						8.00
RJ Schinner, 25000 S. Schulte Road, Tracy, CA 95377 1-209-855-8178	60.00			2.00			

Pg 1 of 1	TOTAL	16.00	0.00	2.00	0.00	0.00	8.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	26.00	960.00	83.59	4.65	871.76
YTD:	1,098.25	37,839.25	3,303.55	83.70	34,456.65

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9045924

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
3988 s — 100% — 871.76
Net Pay — 871.76

DATE 11/01/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 11/3/2024-11/9/2024
Check Date: 11/15/2024
Check Number: 9048728
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	266.80	F.I.C.A	30.21	ESC Dental EEO	4.65
PREMIUM TIME	225.14	Medicare	7.07		
		CA SDI	5.36		
TOTAL EARNINGS	**491.94**	**TOTAL TAXES**	**42.64**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Lily Transportation - Toyota Dedicated, 2451 Bishop Drive, San Ramon, CA 94583 1-201-919-7235	33.35	8.00					
Lily Transportation - Toyota Dedicated, 2451 Bishop Drive, San Ramon, CA 94583 1-201-919-7235	50.03						4.50
TOTAL		**8.00**	**0.00**	**0.00**	**0.00**	**0.00**	**4.50**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	12.50	491.94	42.64	4.65	444.65
YTD:	1,110.75	38,331.19	3,346.19	88.35	34,901.30

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9048728

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
8473 c — 100% — 444.65
Net Pay — 444.65

DATE 11/15/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 11/10/2024-11/16/2024
Check Date: 11/22/2024
Check Number: 9050141
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,334.00	F.I.C.A	159.97	ESC Dental EEO	4.65
PREMIUM TIME	1,250.75	Medicare	37.41		
		CA SDI	28.38		
TOTAL EARNINGS	**2,584.75**	**TOTAL TAXES**	**225.76**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Lily Transportation - Toyota Dedicated, 2451 Bishop Drive, San Ramon, CA 94583	1-201-919-7235	33.35	40.00					
Lily Transportation - Toyota Dedicated, 2451 Bishop Drive, San Ramon, CA 94583	1-201-919-7235	50.03						25.00
Pg 1 of 1	**TOTAL**		**40.00**	**0.00**	**0.00**	**0.00**	**0.00**	**25.00**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	65.00	2,584.75	225.76	4.65	2,354.34
YTD:	1,175.75	40,915.94	3,571.95	93.00	37,255.64

Time Off — This Check — Available

State	SICK LEAVE Avail	Used
PSL	26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9050141

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
6853 c — 300.00
8473 c — 2,054.34
Net Pay — 2,354.34

DATE 11/22/24
AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 11/17/2024-11/23/2024
Check Date: 11/29/2024
Check Number: 9051672
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	1,067.20	F.I.C.A	140.32	ESC Dental EEO	4.65
PREMIUM TIME	1,200.72	Medicare	32.82		
		CA SDI	24.90		

TOTAL EARNINGS	2,267.92	TOTAL TAXES	198.04	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	50.03						24.00
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	33.35	32.00					

Pg 1 of 1

TOTAL						32.00	0.00	0.00	0.00	0.00	24.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	56.00	2,267.92	198.04	4.65	2,065.23
YTD:	1,231.75	43,183.86	3,769.99	97.65	39,320.87

Time Off

	This Check	Available	
		SICK LEAVE	
State		Avail	Used
PSL		26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9051672

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
6853 c
8473 c

DATE 11/29/24
DD Amount
300.00
1,765.23
Net Pay 2,065.23

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 11/24/2024-11/30/2024
Check Date: 12/6/2024
Check Number: 9053132
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	533.60	F.I.C.A	82.42	ESC Dental EEO	4.65
PREMIUM TIME	800.48	Medicare	19.28		
		CA SDI	14.62		

TOTAL EARNINGS	1,334.08	TOTAL TAXES	116.32	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	50.03						16.00
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	33.35	16.00					

Pg 1 of 1

TOTAL								
	16.00	0.00	0.00	0.00	0.00	16.00		

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay	Time Off	This Check	Available
Current:	32.00	1,334.08	116.32	4.65	1,213.11			
YTD:	1,263.75	44,517.94	3,886.31	102.30	40,533.98			

SICK LEAVE

State	Avail	Used
PSL	26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9053132

NAME OF EMPLOYEE
****VOID****
**** Direct Deposit ****
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
6853 c
8473 c

DATE 12/06/24
DD Amount
300.00
913.11
Net Pay 1,213.11

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 12/1/2024-12/7/2024
Check Date: 12/13/2024
Check Number: 9054701
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	266.80	F.I.C.A	27.11	ESC Dental EEO	4.65
PREMIUM TIME	175.11	Medicare	6.34		
		CA SDI	4.81		
TOTAL EARNINGS	**441.91**	**TOTAL TAXES**	**38.26**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	33.35	8.00					
Lily Transportation - Toyota Dedicated, 2451 Bishop Dr, San Ramon, CA 94583	1-201-919-7235	50.03						3.50
TOTAL			**8.00**	**0.00**	**0.00**	**0.00**	**0.00**	**3.50**

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	11.50	441.91	38.26	4.65	399.00
YTD:	1,275.25	44,959.85	3,924.57	106.95	40,932.98

Time Off

	This Check	Available
SICK LEAVE		
State	Avail	Used
PSL	26.33	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9054701

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
8473 c

DATE 12/13/24
DD Amount
100% 399.00
Net Pay 399.00

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 12/8/2024-12/14/2024
Check Date: 12/20/2024
Check Number: 9056319
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	266.80	F.I.C.A	30.21	ESC Dental EEO	4.65
OVERTIME	225.14	Medicare	7.07		
		CA SDI	5.36		
TOTAL EARNINGS	**491.94**	**TOTAL TAXES**	**42.64**	**TOTAL DEDUCTIONS**	**4.65**

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone	Rate	Reg	OT	DT	Mile	Run	Oth/PT
Toyota Quality Part Express, 2451 Bishop Dr, San Ramon, CA 94583 1-925-275-3449	33.35	8.00					
Toyota Quality Part Express, 2451 Bishop Dr, San Ramon, CA 94583 1-925-275-3449	50.03		4.50				
TOTAL		**8.00**	**4.50**	**0.00**	**0.00**	**0.00**	**0.00**

Pg 1 of 1

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	12.50	491.94	42.64	4.65	444.65
YTD:	1,287.75	45,451.79	3,967.21	111.60	41,377.63

Time Off

	This Check	Available
SICK LEAVE		
State	Avail	Used
PSL	26.74	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9056319

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
8473 c

DATE 12/20/24
DD Amount
100% 444.65
Net Pay 444.65

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 12/15/2024-12/21/2024
Check Date: 12/27/2024
Check Number: 9057776
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	705.00	F.I.C.A	69.32	ESC Dental EEO	4.65
PREMIUM TIME	341.55	Medicare	16.21		
DOUBLETIME	76.20	CA SDI	12.30		

TOTAL EARNINGS	1,122.75	TOTAL TAXES	97.83	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	30.00	23.50					
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	45.00						7.59
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	60.00			1.27			
Pg 1 of 1		TOTAL	23.50	0.00	1.27	0.00	0.00	7.59

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	32.36	1,122.75	97.83	4.65	1,020.27
YTD:	1,320.11	46,574.54	4,065.04	116.25	42,397.90

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	27.82	10.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9057776

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
8473 c — 100% — 1,020.27
Net Pay — 1,020.27

DATE 12/27/24

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 12/22/2024-12/28/2024
Check Date: 1/3/2025
Check Number: 9059218
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	720.00	F.I.C.A	99.78	ESC Dental EEO	4.65
PREMIUM TIME	540.00	Medicare	23.34		
DOUBLETIME	354.00	CA SDI	17.70		

TOTAL EARNINGS	1,614.00	TOTAL TAXES	140.82	TOTAL DEDUCTIONS	4.65

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	30.00	24.00					
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	45.00						12.00
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	60.00			5.90			

Pg 1 of 1	TOTAL	24.00	0.00	5.90	0.00	0.00	12.00

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	41.90	1,614.00	140.82	4.65	1,468.53
YTD:	41.90	1,614.00	140.82	4.65	1,473.18

Time Off — This Check — Available

SICK LEAVE

State	Avail	Used
PSL	1.40	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9059218

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number
8473 c

DATE 01/03/25
DD Amount
100% 1,468.53
Net Pay 1,468.53

AMOUNT
*********.00

NOT NEGOTIABLE

Centerline Drivers, LLC.
1600 East 4th Street, STE 340
SANTA ANA, CA 92701
888-213-7483

Name: Brendan Ngwanforbi
Soc Sec #: XXX-XX-1726
Employee ID: 483745

Pay Period: 12/29/2024-1/4/2025
Check Date: 1/10/2025
Check Number: 9060685
St: H 3 **Add'l SWH:** 0.00

THIS PERIOD EARNINGS		THIS PERIOD TAXES		THIS PERIOD DEDUCTIONS	
REGULAR TIME	720.00	F.I.C.A	58.94	Deduction Formula	209.64
PREMIUM TIME	235.35	Medicare	13.79	ESC Dental EEO	4.65
		CA SDI	11.41		

TOTAL EARNINGS	955.35	TOTAL TAXES	84.14	TOTAL DEDUCTIONS	214.29

WORKED HOURS/UNITS BY JOB ASSIGNMENT

Customer Name, Address & Phone		Rate	Reg	OT	DT	Mile	Run	Oth/PT
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	30.00	24.00					
Penske 5242-00 C&S Grocers, 4199 Gibraltar Ct, Stockton, CA 95206	1-209-242-7618	45.00						5.23

Pg 1 of 1	TOTAL					24.00	0.00	0.00	0.00	0.00	5.23

	Worked Total Hours/Unit	Gross Pay	Taxes	Deductions	Net Pay
Current:	29.23	955.35	84.14	214.29	656.92
YTD:	71.13	2,569.35	224.96	218.94	2,339.74

Time Off — This Check Available

SICK LEAVE

Stata	Avail	Used
PSL	2.37	0.00

MESSAGES

Please remember timecards are due by 8 AM on Sunday cd-payroll@centerlinedrivers.com

VOUCHER

VOUCHER NO. 9060685

****VOID****
**** Direct Deposit ****

NAME OF EMPLOYEE
Brendan Ngehsi Ngwanforbi
1455 Cat Tail Drive
Stockton, CA 95204

NET PAY ALLOCATION
Bank Account Number — **DD Amount**
8473 c — 100% — 656.92
Net Pay — 656.92

DATE 01/10/25

AMOUNT
*********.00

NOT NEGOTIABLE

Wage Notice - For your reference only

Srivastava, Priyanshi <psrivastava3@centerlinedrivers.com> Thu, C
Reply-To: "Srivastava, Priyanshi" <psrivastava3@centerlinedrivers.com>
To: "bnn.cdl@gmail.com" <bnn.cdl@gmail.com>
Cc: Erika <Erika@centerlinedrivers.com>, "Saxena, Anusha" <Asaxena@centerlinedrivers.com>, "Arora, Aryan" <aarora7@centerlinedrivers.com>

CENTERLINE a TRUEBLUE company

1600 East 4th Street, Suite 340
Santa Ana, CA 92701
888-213-7483

Employee Name Ngwanforbi, Brendan

Job Site Information
Lily Transportation - Toyota Dedicated
2451 Bishop Drive

San Ramon, CA 94583

Date 10/31/2024

Start Date 10/30/2024

Note All assignments are on a temporary basis, therefore the shift start and end time to day and/or week to week.

Anticipated Start Time

Anticipated End Time or until route is completed

End Date (if known)

Report to

Job Description and requirements Truck Driver - Valid CDL and Medical Card required and must be in possession at all time.

Pay Period You will be paid every Friday for work performed the previous work week.

Pay Rates Regular: $33.35
PREMIUM TIME: $50.03

Pay Type

Your pay type can be based on an hourly rate and/or any one or combination of the following if allowed by law: mileage, trip/run, drops, hooks, layovers, stops or salary. Your wage statement will indicate which pay receiving

Place of Payment

If you have chosen direct deposit, you wages will be deposited into the bank account specified in your direct deposit paperwork. If you have chosen payment by cash card, you wages will be available on your card have opted to receive a check, it will be mailed from Centerline's Santa Ana, CA office on payday.

Deductions

Centerline reserves the right to deduct from an employee's wage for any company debt or obligation such as, but not limited to, employee elected insurance premiums, local, state and federal required taxes and c support and garnishments. Wage deductions will only be made as permitted under local, state and federal regulations.

Worker's Compensation Carrier

The Insurance Company of the State of Pennsylvania | 175 Water Street, 18th Floor, New York, NY 10038 | Phone No: 212-458-7000 | Policy No: 086476613

Reminders

§ If safety equipment is provided, it will be at no charge to you.

§ Centerline does not provide or charge workers for services such as transportation and/or meals unless a per-diem applies. If a per diem applies, you will receive notice about the terms of the per diem.

§ You will not be charged for any supplies or training

§ You will not perform duties for a client that is undergoing a strike and/or lockout. Notify Centerline if you become aware of strike and/or lockout

§ Your employment is at will

I hereby acknowledge that Centerline, a TrueBlue company, provided me with my employment-related notice in accordance with the state regulations.

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 10

DMV Temporary License and APS Hearing Notice

California Department of Motor Vehicles

Temporary License and Administrative Per Se

(APS) Hearing Notice

documenting suspension of Petitioner's

Class A commercial driving privileges

Referenced at Petition ¶¶ 40, 49, 51

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

TEMPORARY LICENSE

DSMS234
BRENDAN NGWANFORBI
1455 CAT TAIL DR
STOCKTON, California 95204

DRIVER LICENSE NUMBER
F7953179

DS DISTRICT OFFICE ID	CLASS/ENDORSEMENT(S)	DRIVER LICENSE NUMBER
SAC	A / DOUBLES/TRIPLES, TANK	F7953179
ISSUED AT (DRIVER SAFETY DISTRICT OFFICE)	DATE	DATE OF BIRTH
Sacramento	December 4, 2024	September 16, 1996

NAME
BRENDAN NGWANFORBI

ADDRESS
1455 CAT TAIL DR

CITY, STATE, ZIP CODE
STOCKTON, California 95204

RESTRICTION(S):
☐ Corrective Lenses ☑ Restriction(s): CLASS A/B-LIMITED TO VEHICLE WITH AUTOMATIC TRANSMISSION, DISQUALIFIED FROM DRIVING COMMERCIALLY.

REASON FOR ISSUANCE:
PENDING APS HEARING

THIS TEMPORARY LICENSE IS VALID FROM December 1, 2024 THROUGH OUTCOME OF HEARING. THIS TEMPORARY LICENSE MUST BE SIGNED BY THE LICENSEE TO BE VALID.

SIGNATURE OF LICENSEE
X

THIS SECTION ONLY APPLIES TO A STAY/HEARING

The suspension taken against your driving privilege pursuant to §13353, of the Vehicle Code, effective December 1, 2024, is hereby stayed pending the outcome of your administrative hearing/department review. You may continue to drive during the stay. ***IF YOU DO NOT RECEIVE THE DECISION PRIOR TO THE EXPIRATION DATE SHOWN ON THIS TEMPORARY LICENSE, PLEASE CONTACT THE OFFICE AT THE ABOVE ADDRESS FOR AN EXTENSION OF THIS TEMPORARY LICENSE.***

Your Remote hearing is scheduled on January 24, 2025, at 09:00 AM.

You may receive a driver license by mail while the action is stayed pending the outcome of your hearing. Upon notification of the hearing decision, you may be required to surrender your driver license.

THIS ACTION IS INDEPENDENT OF ANY OTHER ACTION TAKEN BY THE COURT OR THIS DEPARTMENT

NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

A Public Service Agency

DS 2030A (REV 05/2023)

1

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

DSMS234
BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

THE MATTER OF:	FINANCIAL RESPONSIBILITY FILE NUMBER	CLASS/ENDORSEMENT(S)
BRENDAN NGWANFORBI		A / DOUBLES/TRIPLES, TANK VEHICLE

The record(s) below is/are being provided as discovery in compliance with § 11507.6 of the Government Code.

Driving Record Printout
Notice of Hearing
Notice of Stay
Officer's Statement, DS 367 (DS 367M)
Arrest/Incident Report(s)

The following is a list of names and addresses of witnesses that may be called to testify on behalf of the Department of Motor Vehicles.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

NOTICE OF STAY

BRENDAN NGWANFORBI
1455 CAT TAIL DR
STOCKTON, California 95204

DRIVER LICENSE NUMBER
F7953179

The suspension taken against your driving privilege pursuant to §13353, of the Vehicle Code, effective December 1, 2024, is hereby stayed pending the outcome of your administrative hearing/department review.

You may continue to drive during the stay.

Your Remote hearing is scheduled on January 24, 2025, at 09:00 AM.

THIS ACTION IS INDEPENDENT OF ANY OTHER ACTION TAKEN BY THE COURT OR THIS DEPARTMENT

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

REQUEST FOR DISCOVERY

BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

STATE OF CALIFORNIA
DEPARTMENT OF MOTOR VEHICLES

In the Matter of:	}	Driver License No.:F7953179
	}	Bk. or Arrest No.:RJ68845
BRENDAN NGWANFORBI	}	
	}	NOTICE OF REQUEST FOR DISCOVERY
	}	(Title 13, Division 1, Chapter 1, Article 2.4, §115.05
	}	of the California Code of Regulations [CCR])
Respondent	}	(§11507.6 Government Code)

The department requests you to provide any statements, writings, names and addresses of witnesses or other persons with personal knowledge of the events which led to the initial action, including, but not limited to, those intended to be called to testify at the hearing; or things which are relevant to this proceeding and would be admissible in evidence following the initiation of the action pursuant to Title 13, Division 1, Chapter 1, Article 2.4, §115.05 of the CCR and §11507.6 of the Government Code.

Please forward discovery to the address noted above.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch
4700 Broadway, 2nd Floor
Sacramento, California 95820
Email: ladsacramentodso@dmv.ca.gov
Telephone: (833) 543-7703 FAX: 916-227-2901

NOTICE OF HEARING APPOINTMENT

BRENDAN NGEHSI NGWANFORBI
1455 CAT TAIL DR
Stockton, CA 95204

DRIVER LICENSE NUMBER
F7953179

The ☑ remote ☐ in-person contact which has been requested on this matter will take place as follows:

HEARING APPOINTMENT INFORMATION

DATE: **01/24/2025** TIME: **09:00 AM** HEARING OFFICER: **Diana Candelaria**

Login Instructions: **Via Microsoft Teams Remote Conference**

Join By Video: Meeting ID: **241846391884** Meeting Passcode: **sd3bj2Un**

Join By Phone: Phone Number: ***67 1 279 666 3135** Conference ID: **159660245**

The above-referenced matter will be conducted remotely via Microsoft Teams. Instructions on how to participate in the hearing are attached to this notice. You may use your home telephone or computer. All contacts are recorded.

At the time and date set for the hearing you are responsible for joining the Teams meeting. The use of cellular or pay phones is not recommended for telephone contacts.

The hearing will be conducted by a Hearing Officer under the authority of the Vehicle Code (commencing with Section 14100) Chapter 3 of Division 6. The Hearing Officer will develop the facts and render a final decision on your matter but does not advocate on behalf of the Department. The Hearing Officer will ensure that all relevant evidence is considered. The Hearing Officer will examine and admit the DMV's official records, was well as the official records of the agency that arrested you.

At the hearing you may have an attorney or other representative represent you, at your own expense. You or your representative will be given the opportunity to present any evidence that you believe should be considered, to respond to any evidence against you, to conduct an examination of witnesses, and to present rebuttal evidence. Any evidence you wish to present should be sent to the Hearing Officer prior to the hearing.

You have a right to have the assistance of a sign or language interpreter. If you need assistance, immediately notify this office in order to make arrangements to have an interpreter available at your hearing.

DEPARTMENT OF MOTOR VEHICLES
LEGAL AFFAIRS DIVISION
Driver Safety Branch

CERTIFICATE OF SERVICE

☐ presented to the person named above a true copy of this document.
☑ emailed to the person named above a true copy of this document.
☐ deposited in the United States mail ☐ at the address shown above,
☐ at ,

a true copy of this document, in a sealed envelope, with postage paid, and addressed to the person as shown on this document. I am over the age of eighteen years, an employee of the Department of Motor Vehicles at the business address as shown above in the county where the office is located, and I am not a party to the cause herein mentioned.
I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATE	NAME OF AUTHORIZED DMV EMPLOYEE	SIGNATURE OF AUTHORIZED DMV EMPLOYEE
December 4, 2024	C. Winston	**X** *C. Winston*

California Relay Telephone Service for the deaf or hard of hearing from TDD Phones: 1-800-735-2929; from Voice Phones: 1-800-735-2922

Instructions for Participating in a Hearing Via Microsoft Teams

In order to participate in the Hearing via Microsoft Teams you must ensure that your computer or other device supports the use of Microsoft Teams. Because using the computer's or tablet's internal microphone can create an unacceptable level of audio feedback, the Department recommends the use of an external headset or microphone, if possible.

You are responsible for ensuring that their devices and internet connection meet the minimum system and bandwidth requirements for using Microsoft Teams.

You can join the Hearing via Microsoft Teams and/or download Teams at https://www.microsoft.com/en-us/microsoft-teams/log-in

It is recommended, but not necessary, to install the Microsoft Teams application. More information can be found at https://learn.microsoft.com/en-us/microsoftteams/hardware-requirements-for-the-teams-app

You are responsible for connecting to and attending the Hearing using the information provided in this subpoena.

If you do not have access to a computer or other device capable of running Microsoft Teams, the party may connect to the Hearing via telephone using the phone number and phone passcode provided in this subpoena.

If you have questions regarding attending a hearing via Microsoft Teams or would like to request a meeting link by email, please contact:

4700 Broadway, 2nd Floor
Sacramento, California 95820

Email:ladsacramentodso@dmv.ca.gov
Telephone:(833) 543-7703

STATE OF CALIFORNIA
DMV
DEPARTMENT OF MOTOR VEHICLES
A Public Service Agency

NOTE FOR CUSTOMERS NEEDING INTERPRETER SERVICES

The Department of Motor Vehicles provides interpreters, including American Sign Language (ASL) interpreters, at no cost to the customer.

If you require an interpreter for your Driver Safety contact, please call the telephone number listed on the notice provided with this document, prior to your scheduled appointment date.

AVISO A LOS CLIENTES QUE NECESITEN SERVICIOS DE INTÉRPRETE

El Departamento de Vehículos Motorizados tiene a su disposición intérpretes, incluyendo intérpretes del lenguaje de señas americano (ASL), sin costo alguno para el cliente.

Si necesita un intérprete para comunicarse con un agente de seguridad vial, antes de ir a la cita programada, llame al número de teléfono que aparece en el aviso que se le proporcionó junto con este documento.

針對需要口譯服務之客戶的備註

機動車輛管理局為客戶免費提供各種語言的口譯服務，其中包括美國手語 (ASL)。

如果您需要安全駕駛聯繫方面的口譯服務，請在既定的預約日期之前，撥打隨附此文件提供之通知上所列的電話號碼。

Spanish

Chinese

LƯU Ý DÀNH CHO KHÁCH HÀNG CẦN DỊCH VỤ THÔNG DỊCH VIÊN

Cơ Quan Quản Lý Các Phương Tiện Cơ Giới cung cấp các dịch vụ thông dịch viên, bao gồm cả thông dịch viên Ngôn Ngữ Ký Hiệu Mỹ (ASL), miễn phí dành cho khách hàng.

Nếu quý vị yêu cầu thông dịch viên để liên lạc Lái Xe An Toàn, vui lòng gọi đến số điện thoại được ghi trong thông báo gửi kèm theo tài liệu này trước ngày hẹn được xếp lịch.

ԾԱՆՈԹԱԳՐՈՒԹՅՈՒՆ ԲԱՆԱՎՈՐ ԹԱՐԳՄԱՆՉԻ ԾԱՌԱՅՈՒԹՅՈՒՆՆԵՐԻ ԿԱՐԻՔ ՈՒՆԵՑՈՂ ՀԱՃԱԽՈՐԴՆԵՐԻ ՀԱՄԱՐ

Ավտոտրանսպորտի դեպարտամենտը (Department of Motor Vehicles) հաճախորդներին տրամադրում է բանավոր թարգմանիչների, այդ թվում՝ ամերիկյան ժեստերի լեզվի (ԱԺԼ) թարգմանիչների անվճար ծառայություններ:

Եթե ձեզ բանավոր թարգմանիչ է հարկավոր Վարորդի անվտանգության հարցերով հաղորդակցվելու համար, նախքան պայմանավորված տեսակցության օրը զանգահարեք այս փաստաթղթի հետ տրամադրված ծանուցագրում նշված հեռախոսահամարով:

ਦੁਭਾਸ਼ੀਏ ਦੀ ਲੋੜ ਵਾਲੇ ਗਾਹਕਾਂ ਲਈ ਸੂਚਨਾ

ਡਿਪਾਰਟਮੈਂਟ ਆਫ਼ ਮੋਟਰ ਵਹੀਕਲਜ਼ ਅਮਰੀਕੀ ਸੈਨਤ ਭਾਸ਼ਾ (ASL) ਦੇ ਦੁਭਾਸ਼ੀਏ ਸਮੇਤ, ਗਾਹਕ ਨੂੰ ਬਿਨਾਂ ਕਿਸੀ ਕੀਮਤ ਤੋਂ ਦੁਭਾਸ਼ੀਏ ਪ੍ਰਦਾਨ ਕਰਦਾ ਹੈ।

ਜੇ ਤੁਹਾਨੂੰ ਆਪਣੇ ਡਰਾਈਵਰ ਦੀ ਸੁਰੱਖਿਆ ਸੰਪਰਕ ਲਈ ਦੁਭਾਸ਼ੀਏ ਦੀ ਲੋੜ ਹੈ, ਤਾਂ ਕਿਰਪਾ ਕਰਕੇ ਆਪਣੀ ਤੈਅ ਅਪਾਇੰਟਮੈਂਟ ਤਾਰੀਖ ਤੋਂ ਪਹਿਲਾਂ ਇਸ ਦਸਤਾਵੇਜ਼ ਦੇ ਨਾਲ ਦਿੱਤੇ ਨੋਟਿਸ 'ਤੇ ਸੂਚੀਬੱਧ ਟੈਲੀਫੋਨ ਨੰਬਰ 'ਤੇ ਕਾਲ ਕਰੋ।

Vietnamese

Armenian

Punjabi

통역 서비스가 필요한 고객 참고 사항

차량국(Department of Motor Vehicles)에서는 미국 수화(ASL) 통역사를 포함하여 통역 서비스를 고객에게 무료로 제공합니다.

운전자 안전(Driver Safety) 사무실에 연락하기 위해 통역 서비스가 필요하시면, 예정된 예약 날짜 전에 본 문서와 함께 제공된 통지서에 나와 있는 전화번호 목록으로 연락하시기 바랍니다.

Korean

قابل توجه مشتریان نیازمند به خدمات مترجمی همزمان

اداره وسایل نقلیه موتوری بدون دریافت هیچ نوع هزینه‌ای، به ارائه‌ی خدمات مترجمی همزمان مراشا نابزشامل مترجمین همزمان می‌پردازد.(ASL)یاکیرما

اگر به مترجم همزمان در زمینه‌ی ایمنی راننده نیاز دارید، لطفاً پیش از زمان قرار ملاقات از پیش‌تعیین شده، با شماره‌های درج شده در بخش توجه این سند تماس بگیرید.

Farsi

ПРИМЕЧАНИЕ ДЛЯ КЛИЕНТОВ, НУЖДАЮЩИХСЯ В УСЛУГАХ УСТНОГО ПЕРЕВОДЧИКА

Департамент штата по регистрации транспортных средств (Department of Motor Vehicles) предоставляет клиентам возможность бесплатно воспользоваться услугами переводчиков, в том числе с американского языка жестов (ASL).

Если для общения со специалистом по вопросам безопасности водителей Вам требуется переводчик, заблаговременно позвоните по номеру, который указан в уведомлении, отправленном вместе с этим документом, до назначенной даты приема.

Russian

उन ग्राहकों के लिए नोट जिन्हें दुभाषिया सेवाओं की जरूरत है

डिपार्टमेंट ऑफ मोटर व्हीकल्ज़, ग्राहक को मुफ्त अमेरिकी सांकेतिक भाषा (ASL) सहित, दुभाषिया सेवाएँ प्रदान करता है।

यदि आपको अपने ड्राइवर सुरक्षा संपर्क के लिए एक दुभाषिये की जरूरत है, तो कृपया अपनी निर्धारित अपाइंटमेंट तारीख से पहले, इस दस्तावेज़ के साथ दिये गये नोटिस पर सूचीबद्ध टेलीफोन नम्बर पर कॉल करें।

Hindi

PAALALA PARA SA MGA CUSTOMER NA NANGANGAILANGAN NG MGA SERBISYO NG INTERPRETER

Nagbibigay ang Department of Motor Vehicles ng mga serbisyo ng interpreter, kabilang ang mga interpreter ng American Sign Language (ASL), nang libre para sa customer.

Kung kailangan mo ng interpreter para sa iyong Driver Safety contact, pakitawagan ang numero ng teleponong nakalista sa abisong ibinigay kasama ng dokumentong ito, bago ang iyong nakaiskedyul na petsa ng appointment.

Tagalog

通訳サービスが必要なお客様へのお知らせ

自動車管理局（Department of Motor Vehicles）ではアメリカ手話（ASL）を含め、無料でお客様に通訳を手配いたします。

運転者の安全（Driver Safety）に関する連絡の際に通訳が必要な場合には、お客様のご予約日に先立ち、本書のお知らせに記載されている電話番号までお問い合わせください。

Japanese

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 11

CHP Complaint Assignment Letter

CHP Complaint Assignment Letter

from Captain G. Serrato, Commander,

CHP Dublin Area

dated March 26, 2026

assigning Sgt. Eric Dutra as investigator

for Citizen Complaint File No. 390.18437.17620

Referenced at Petition ¶¶ 47, 49

CALIFORNIA HIGHWAY PATROL

4999 Gleason Drive, Dublin, CA 94568 | (925) 828-0466

GAVIN NEWSOM, GOVERNOR

CALIFORNIA STATE TRANSPORTATION AGENCY

March 26, 2026

File No.: 390.18437.17620

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Subject: Complaint

Dear Mr. Newanforbi,

We recently received a complaint inquire from the California Commission on Peace Officer Standards and Training, regarding the dissatisfaction with the behavior of one of our employees. When dissatisfaction is expressed regarding the operations of the California Highway Patrol and/or the actions of its employees, the Department has a well-defined procedure for assisting civilians who wish to voice a grievance.

Once a complaint is received, it is my responsibility as the involved employee's commander to ensure a thorough investigation is conducted. The investigation will attempt to determine whether any improprieties exist. I have assigned Dublin Area Sergeant Eric Dutra, ID 19981, as the assigned investigator. Although complaints cannot always be resolved to a civilian's satisfaction, all investigations are conducted objectively and aim to maintain public confidence through the chain of command for an impartial review. After final approval, you will be provided with a closing written response.

Should you have any questions, please contact Sergeant Dutra at (925) 828-0466.

Sincerely,

G. SERRATO, Captain
Commander

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 12

POST Letter of Acknowledgment

Commission on Peace Officer Standards

and Training (POST)

Letter of Acknowledgment

Case No. PUBLIC-26-000371

dated March 23, 2026

Referenced at Petition ¶¶ 43, 49

COMMISSION ON
PEACE OFFICER STANDARDS AND TRAINING

POST

GAVIN NEWSOM
GOVERNOR

ROB BONTA
ATTORNEY GENERAL

03/23/2026

Brendan Newanforbi
bnn.cdl@gmail.com

Re: CITIZEN COMPLAINT (PUBLIC-26-000371)

Dear Brendan Newanforbi,

The California Commission on Peace Officer Standards and Training (POST) has received your complaint concerning alleged misconduct on behalf of a peace officer in California. POST takes every complaint seriously.

POST will forward citizens' complaints of peace officer misconduct to the appropriate agency for investigation and disposition. After careful review, POST has forwarded your complaint to the agency below for follow-up.
California Highway Patrol - 34890 on 03/23/2026
You may contact this agency should you have additional information or questions regarding the status of your complaint.

If the allegation(s) meets the definition of serious misconduct pursuant to California Penal Code Section 13510.8, POST will conduct an independent review upon completion of the agency's investigation.

Thank you for bringing this matter to our attention.

Sincerely,

Intake and Disposition Bureau
Commission on POST
Peace Officer Standards Accountability Division
ComplaintIntake@post.ca.gov
(916) 227-2822

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 13

Lt. Paul E-mail — Receipt of Certification Request

E-mail from Lieutenant Gary Paul (Badge No. 17620),

California Highway Patrol, Dublin Area

dated April 10, 2026 at 10:33 a.m.

acknowledging receipt of Petitioner's

April 9, 2026 U Visa certification request

Referenced at Petition ¶¶ 50, 59

Gmail Brendan Ngwa Nforbi <bnn.cdl@gmail.com>

U Visa Certification Request — CHP File No. 390.18437.17620 / POST PUBLIC-26-000371

Paul, Gary@CHP <GPaul@chp.ca.gov> Fri, Apr 10, 2026 at 10:33 AM
To: "bnn.cdl@gmail.com" <bnn.cdl@gmail.com>

Sir,

Your email has been received and your request is under review. You will be notified the outcome of your request by written correspondence.

Thank you

Lieutenant Gary Paul, ID 17620

California Highway Patrol

Dublin Area

4999 Gleason Drive

Dublin, CA 94568

(925) 828-0466

ATTORNEY-CLIENT PRIVILEGED COMMUNICATION CONFIDENTIALITY NOTICE: This communication with its contents may contain confidential and/or legally privileged information. It is solely for the use of the intended recipient(s). Unauthorized interception, review, use or disclosure is prohibited and may violate applicable laws including the Electronic Communications Privacy Act. If you are not the intended recipient, please contact the sender and destroy all copies of the communication. Finally, this message shall not be forwarded or provided to anyone not specifically listed as an addressee unless prior permission is given.

From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Thursday, April 9, 2026 2:00:21 PM
To: Dutra, Eric@CHP <EDutra@chp.ca.gov>
Cc: Serrato, Gerardo@CHP <GSerrato@chp.ca.gov>
Subject: U Visa Certification Request — CHP File No. 390.18437.17620 / POST PUBLIC-26-000371

You don't often get email from bnn.cdl@gmail.com. Learn why this is important

[**Warning:** This email originated outside of CHP. Do not click links or attachments unless you recognize the sender and know the content is safe.]

Good morning, Sergeant Dutra,

Attached please find my formal request for execution of Form I-918 Supplement B, together with the supporting legal analysis memorandum and related supporting documents, in connection with CHP File No. 390.18437.17620 and POST Complaint No. PUBLIC-26-000371.

As reflected in Captain Serrato's March 26, 2026 correspondence, this matter is currently assigned to your review.

Pursuant to California Penal Code section 679.10(j), I respectfully request processing of this certification request within 30 days of receipt. Please see of Part 6 of Page 4 of the Form I-918 Supplement B document attached to this email for the location as to where certification is to be made via signature.

Please confirm receipt of this email and attachments at your earliest convenience. If you have any additional questions please do not hesitate to contact me via the contact information below.

Respectfully,

Brendan Ngehsi Newanforbi

(209) 801-4442

bnn.cdl@gmail.com

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 14

California Attorney General — AB 1261 Guidance Bulletin

California Attorney General

Information Bulletin No. DLE-2024-05

"AB 1261 Guidance on U Visa Certifications"

(directing all state and local law enforcement

agencies on mandatory duties under

Penal Code § 679.10 as amended by AB 1261)

Referenced at Petition ¶ 32

California Department of Justice DIVISION OF LAW ENFORCEMENT Stephen Woolery, Chief (acting)	**INFORMATION BULLETIN**	
Subject: **Update to Information Bulletin 2020-DLE-01: New and Existing State and Federal Laws Protecting Immigrant Victims of Crime**	*No.* 2024-DLE-05 *Date:* 04/03/2024	*Contact for information:* Stephen Woolery, Chief (acting) Division of Law Enforcement (916) 210-6300

TO: ALL CALIFORNIA LAW ENFORCEMENT AGENCIES

The purpose of this bulletin is to update information provided in Information Bulletin 2020-DLE-01, dated April 1, 2020, titled "Update to Information Bulletin No. 2015-DLE-04: New and Existing State and Federal Laws Protecting Immigrant Victims of Crime." Information Bulletin 2020-DLE-01 offered a detailed summary of a then new state law, Assembly Bill (AB) 917 (Stats. 2019, Ch. 576), enacted into law and effective on January 1, 2020, which required agencies that investigate or prosecute criminal matters to assist crime victims without authorized immigration status in applying for a U nonimmigrant visa (U visa) – a federal immigration visa set aside for victims of crime who have suffered substantial mental or physical abuse because of criminal activity, and who are willing to assist federal, state, and local law enforcement agencies or government officials in the investigation of that criminal activity.[1]

On October 10, 2023, Governor Gavin Newsom signed the Immigrant Rights Act, Assembly Bill (AB) 1261 (Stats. 2023, Ch. 679), into law, effective on January 1, 2024. **AB 1261 provides additional affirmative obligations for law enforcement officials when responding to requests for U visa certifications**. The United States Department of Homeland Security, United States Citizenship and Immigration Services (USCIS) requires these certifications in order to grant a qualifying immigrant a U visa.

In addition to providing guidance on the newly enacted AB 1261 this bulletin answers relevant questions regarding U Visa eligibility, and encourages state and local law enforcement agencies and officials to be vigilant in identifying and supporting immigrant crime victims who may be eligible for U visas. These visas are an important tool for encouraging the cooperation of witnesses; investigating, prosecuting, and convicting criminals; and increasing public safety.

California Law Regulating U Visa Certifications by Law Enforcement—Effective January 1, 2024

AB 1261 amends California Penal Code sections 679.10 and 679.11 and adds section 679.13 to the Penal Code. Significantly, the amendments require that certifying state and local agencies and officials:

- Complete U visa certifications, upon request, for direct victims, indirect victims, and bystander or witness victims.

[1] This bulletin only addresses U visa certifications. However, we note that AB 1261 also contains updates to the T visa certification process. More information regarding T visas can be found at: https://www.dhs.gov/sites/default/files/publications/U-and-T-Visa-Law-Enforcement-Resource%20Guide_1.4.16.pdf.

  - A **direct victim** is any person who has suffered direct harm or who is directly and proximately harmed as a result of qualifying criminal activity.
  - An **indirect victim** is a qualifying family member of a direct victim who is incompetent, incapacitated, or deceased, including spouses, unmarried children under the age of 21, parents if the direct victim was under the age of 21, and siblings under the age of 18 if the direct victim was under 21 years of age. Indirect victim cooperation includes parents who make their children available to communicate with the certifying official.
  - A **bystander** or **witness victim** is any individual who was not the direct target of a crime, but who nevertheless suffered unusually direct injury as a result of the qualifying crime.
  - An individual does not have to be present in the United States at the time of submitting the certification or request filing the petition.
- Complete U visa certifications, upon request, for immigrant crime victims who have been helpful, are being helpful, or are likely to be helpful in the detection, investigation, or prosecution of specified qualifying crimes within 30 days in most cases, and within 7 days of the first business day following the day the request was received if the individual is in removal proceedings or if the individual asserts their qualifying family member will lose eligibility to apply for a U visa within 60 days (such as if the victim's noncitizen sibling will turn 18, the victim's noncitizen child will turn 21, or the victim will turn 21).
- Certify "victim helpfulness" or "victim cooperation" if the victim reasonably asserts they were unaware of a request for cooperation. In these cases, their failure to cooperate does not rebut the presumption of helpfulness, which is described in more detail below.
- Provide a written explanation for certification denials, including specific details of any reasonable requests for cooperation and a detailed description of how the individual refused to cooperate.
- Complete certification or otherwise certify that an individual has been helpful regardless of a) the victim's criminal history, b) the victim's immigration history, c) the victim's gang membership or affiliation, d) the certifier's belief that the U visa will not be approved, e) the victim's open case with another certifying agency, f) the extent of the harm suffered, g) the victim's inability to produce a crime report, and/or h) the victim's cooperation or refusal to cooperate in a separate case.
- Return completed certifications to the immigrant crime victim or the victim's representative without requiring them to come in person or the victim to provide a government-issued identification.

Provisions of state law that have remained unchanged include that:

- A certifying official must complete U visa certifications, upon request, for immigrant crime victims who have been helpful, are being helpful, or are likely to be helpful in the detection, investigation, or prosecution of specified qualifying crimes within 30 days in most cases, and 7 days for victims in removal proceedings.
- There is still a rebuttable presumption that an immigrant victim is helpful, has been helpful, or is likely to be helpful, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement.
  - A certifying official must certify "victim helpfulness" or "victim cooperation" when requested by the victim, the victim's family member, a licensed attorney representing the victim, or a representative fully accredited by the United States Department of Justice authorized to represent the victim in immigration proceedings.
- A certifying official must provide a copy of the police report to the victim, the victim's attorney, or a

United States Department of Justice fully accredited representative of the victim within 7 days of the request.

- A certifying official may only withdraw a previously granted certification if the victim refuses to provide information and assistance when reasonably requested.
- A certifying official must fully complete and sign the U visa certification and include "specific details about the nature of the crime investigated or prosecuted and a detailed description about the victim's helpfulness or likely helpfulness to the detection or investigation or prosecution of the criminal activity."
- Certifying agencies are prohibited from disclosing the immigrant status of a victim or person requesting a U visa certification, except to comply with federal law or legal process, or if authorized by the victim or person requesting the certification.
- A current investigation, the filing of charges, and a prosecution or conviction are not required for the victim to request and obtain the certification from a certifying official.
- Certifying agencies that receive certification requests must annually report to the Legislature the number of victims that requested certifications from the particular agency, the number of certifications signed, and the number of certifications denied.

State U visa certification requirements apply to the following California state and local entities and officials:

- State and local law enforcement agencies (including the police department of the University of California, a California State University campus, or the police department of a school district);
- Prosecutors;
- Judges (civil or criminal judges who detect qualifying criminal activity);
- Agencies with criminal detection or investigative jurisdiction in their respective areas of expertise, including but not limited to child protective services, the Department of Fair Employment and Housing, and the Department of Industrial Relations; and
- Any other authority responsible for the detection or investigation or prosecution of a qualifying crime or criminal activity.

Questions and Answers Regarding U Visa Certifications

1. Who is eligible for a U visa?

Eligibility for U visas is governed by the Victims of Trafficking and Violence Protection Act (VTVPA) and determined by USCIS. Under those federal provisions, individuals without authorized immigrant status may be eligible for a U visa if they: (1) are victims of specified qualifying crimes (discussed below), (2) have suffered substantial physical or mental abuse as a result of having been a victim of criminal activity, (3) have specific knowledge and details of a qualifying crime committed within the United States, (4) are currently assisting, have previously assisted, or are likely to be helpful in the detection, investigation, or prosecution of the qualifying crime; and (5) are admissible to the United States, and if they are not admissible, they may apply for a waiver of inadmissibility. Victims may apply for a U visa even if they are no longer in the United States. Individuals presently in removal proceedings or with final orders of removal can also apply.

Where the direct victim of qualifying criminal activity is deceased due to manslaughter or murder, or is

incompetent or incapacitated and therefore unable to provide information concerning the criminal activity, a victim of qualifying criminal activity includes the direct victim of the commission of the qualifying criminal activity ***and*** the direct victim's spouse, children under 21 years of age, parents, and unmarried siblings under 18 years of age. For purposes of determining eligibility under this definition, the age of the victim will be considered at the time the qualifying criminal activity occurred.[2]

Moreover, a parent without authorized immigrant status can petition for their own U visa as an "indirect victim" of the qualifying crime, if their child is: (1) under 21 years of age, (2) the victim of a qualifying crime, and (3) incompetent or incapacitated such that she or he is unable to provide law enforcement with adequate assistance in the investigation or prosecution of the crime. (An immigrant parent can petition for a U visa regardless of his/her child's citizenship status or whether his/her child died as the victim of murder or manslaughter.)

2. What is a qualifying crime?

Under the relevant state and federal laws, qualifying crimes include rape, torture, human trafficking, incest, domestic violence (including violations of domestic violence restraining orders), sexual assault, abusive sexual conduct, prostitution, sexual exploitation, female genital mutilation, being held hostage, peonage, perjury, involuntary servitude, slavery, kidnaping, abduction, unlawful criminal restraint, false imprisonment, blackmail, extortion, manslaughter, murder, felonious assault, witness tampering, obstruction of justice, fraud in foreign labor contracting, stalking, and other related crimes which include any similar activity where the elements of the crime are substantially similar to the above specified offenses.

California law, consistent with federal law, states that a qualifying crime includes the attempt, conspiracy, or solicitation to commit any of the specified and *other related offenses*.

Bystanders who suffer unusually direct injury as a result of a qualifying crime may be considered eligible victims as well. An example provided by USCIS includes a pregnant woman who suffered a miscarriage as a result of trauma she experienced witnessing a violent crime.[3]

3. Is an arrest, prosecution, or conviction necessary to certify a U visa petition?

No. California's Immigrant Victims of Crime Equity Act makes clear that a current investigation, the filing of charges, and a prosecution or conviction are not required to sign the law enforcement certification. Many situations exist where an immigrant victim reports a crime, but an arrest or prosecution cannot take place due to evidentiary or other circumstances. For example, the perpetrator may have fled the jurisdiction, cannot be identified, or has been deported by federal law enforcement officials. In addition, neither a plea agreement nor a dismissal of a criminal case affects a victim's eligibility. Furthermore, a law enforcement certification is valid regardless of whether the crime that is eventually prosecuted is different from the crime that was investigated, as long as the individual is a victim of a qualifying crime and meets the other requirements for U visa eligibility.

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[2] 8 CFR § 214.14(a)

[3] Preamble at Federal Register, Vol. 72, No. 179, p. 53016-53017 (Sept. 17, 2017).

4. Can an agency deny a U visa certification request based on timeliness?

No. There is ***no statute of limitations*** that bars immigrant crime victims from applying for a U visa. Law enforcement agencies' duty to sign a certification is not time-limited, even if the investigation or case is already closed.

5. Will certifying a U visa petition automatically grant the victim an immigration benefit?

No. Federal, state, and local law enforcement agencies cannot legally grant or guarantee an immigrant crime victim a U visa or any other type of immigration status by signing a U visa certification (Form I-918 Supplement B). Instead, U visa petitions are adjudicated by USCIS, which conducts a full review of the victim's petition and a thorough background check of the petitioner before approving or denying the petition. USCIS will also make the determination as to whether the victim has met the "substantial physical or mental abuse" standard on a case-by-case basis during its adjudication of the petition. Additionally, USCIS makes the determination of the applicant's admissibility to the United States or eligibility for a waiver of inadmissibility.

By signing a certification, the law enforcement official states: (1) under penalty of perjury, that the individual is or has been a victim of one of the qualifying crimes, and (2) the remaining information provided in the certification is true and correct to the best of the certifying official's knowledge. **Without a completed U visa certification, victims will not be eligible for a U visa.**

6. If a certifying agency denies a U visa certification request, what information must the agency provide?

There is a rebuttable presumption that a victim is helpful, has been helpful, or is likely to be helpful, if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. To comply with the rebuttable presumption of helpfulness in the VTVPA, the reason for denial of certification should be clearly articulated and specific (i.e., non-cooperative because of three unreturned phone calls on dates X, Y, and Z). Further, any denials of certification should be based upon issues within a particular law enforcement agency's jurisdiction/investigation; each law enforcement agency should focus exclusively on its investigation to determine cooperation and should make a determination based on its investigation regardless of whether there is an investigation, referral, and/or prosecution by another law enforcement agency.

Recommendations and Additional Resources for Law Enforcement

Attorney General Rob Bonta is committed to seeking justice for every crime victim in California regardless of the victim's immigration status. Undocumented immigrants are often among the most vulnerable victims of crime across California. Fear of deportation is a significant deterrent to reporting crime for many undocumented immigrants. As such, the Attorney General encourages all agencies and officials subject to California's new law to immediately establish and implement a U visa certification policy and protocol that is consistent with California law and the guidance provided in this law enforcement bulletin. As such, a U visa certification policy and protocol may address the following:

1. Ensuring decisions are made as soon as possible within the 30-day or 7-day windows, especially in urgent cases (i.e., where a qualifying family member will otherwise lose eligibility).

2. An appeals process for certification denials through which (1) an individual other than the initial supervisor that approved the "denial" reviews the certification to ensure impartiality and (2) the appeals process is made public to provide transparency.

3. A review of the entire police report and file to independently consider whether or not all potential victims are eligible for certification (i.e., some police reports do not always list all potential victims and sometimes categorize victims as witnesses).

4. Signing single-sided I-918B U Visa Certification forms with a signature and date clearly written in blue ink, and providing the original signature to the requestor.

5. A consistent way of handling when parents of minors under 16 years of age have effectively cooperated with law enforcement by making the minor available to law enforcement or encouraged the minor's cooperation with law enforcement, and may also be eligible for obtaining certification if they have also cooperated with law enforcement in the investigation of the crime(s).

The **USCIS web site** includes useful information regarding U visa eligibility, qualifying criminal activities, and applying for a U visa. *See* https://www.uscis.gov/humanitarian/victims-of-criminal-activity-u-nonimmigrant-status. The Form I-918 Supplement B Certification can be found here: http://www.uscis.gov/i-918.

We look forward to working with you to ensure that California continues to set an example across the nation for building and preserving the relationship of trust between our peace officers and the communities we are sworn to serve, including immigrant communities.

Please direct questions regarding this bulletin to the Department of Justice, Division of Law Enforcement at (916) 210-6300.